SUSD CODE OF CONDUCT 2022 2023

Scottsdale
SCHOOL DISTRICT

WELCOME TO SCOTTSDALE UNIFIED SCHOOL DISTRICT

The Scottsdale Unified School District (SUSD) has developed the Uniform Code of Student Conduct to provide students, parents, and staff with a clear outline of students' rights and behavioral expectations. These expectations, along with the District's Vision, Mission and Goals, will help us continue to provide the highest quality education possible to the children of SUSD.

Equal Educational and Employment Opportunity

It is the policy of the Scottsdale Unified School District to maintain a nondiscriminatory learning environment and to ensure that students are free from discrimination in any District program or activity based on race, color, ethnicity, national origin, gender, religion, disability or sexual orientation.

1. The District affirms its intent to comply with all federal and state laws relating to the prevention of discrimination.
2. A lack of English skills will not be a barrier to admission and participation in the Career and Technical (vocational) Education programs of the school.
3. With respect to Title IX issues (gender-based discrimination), Legal Counsel is the District's Title IX officer. If you have questions that cannot be answered at your school, please contact the Legal Department at 8500 E. Jackrabbit Rd., Scottsdale, AZ 85250; Phone (480) 484-6239.
4. With respect to Title II issues (race, color, religion, or national origin-based discrimination), the Director of Support Services is the District's current Title II officer. If you have questions that cannot be answered at your school, please contact the Director of Support Services at 8500 E. Jackrabbit Road, Scottsdale, AZ 85250; Phone (480) 484-5094.
5. Section 504 of the Rehabilitation Act of 1973 and the Americans with Disabilities Act of 1990, which provides protections against discrimination, based on a disability. If you have questions, which cannot be answered at your school, please contact the Clinical Services Director, at 8500 E. Jackrabbit Road, Scottsdale, AZ 85250; Phone (480) 484-5094.
6. Any student who knowingly makes false accusations of discrimination may be subject to disciplinary action.

Family Educational Rights and Privacy Act (FERPA)

The Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g; 34 CFR Part 99) is a Federal law that protects the privacy of student education records. The law applies to all schools that receive funds under an applicable program of the U.S. Department of Education.

FERPA gives parents certain rights with respect to their children's education records. These rights transfer to the student when he or she reaches the age of 18 or attends a school beyond the high school level. Students to whom the rights have transferred are "eligible students."

Parents or eligible students have the right to inspect and review the student's education records maintained by the school. Schools are not required to provide copies of records unless, for reasons such as great distance, it is impossible for parents or eligible students to review the records. Schools may charge a fee for copies.

- Parents or eligible students have the right to request that a school correct record(s), which they believe to be inaccurate or misleading. If the school decides not to amend the record(s), the parent or eligible student then has the right to a formal hearing. After the hearing, if the school still decides not to amend the record, the parent or eligible student has the right to place a statement with the record(s) setting forth his or her view about the contested information.
- Generally, schools must have written permission from the parent or eligible student in order to release any information from a student's education record. However, FERPA allows schools to disclose those records, without consent, to the following parties or under the following conditions (34 CFR § 99.31):
  - » School officials with legitimate educational interest;
  - » Other schools to which a student is transferring;
  - » Specified officials for audit or evaluation purposes;

- Appropriate parties in connection with financial aid to a student;
- Organizations conducting certain studies for or on behalf of the school; Accrediting organizations;
- To comply with a judicial order or lawfully issued subpoena;
- Appropriate officials in cases of health and safety emergencies; and
- State and local authorities, within a juvenile justice system, pursuant to specific State Law.

Schools may disclose, without consent, “directory” information such as a student’s name, address, telephone number, and honors and awards. However, schools must tell parents and eligible students about directory information and allow parents and eligible students a reasonable amount of time to request that the school not disclose directory information about them. Schools must notify parents and eligible students annually of their rights under FERPA. The actual means of notification (special letter, inclusion in a PTA bulletin, student handbook, or newspaper article) is left to the discretion of each school *(see Students Rights)*.

Student Name: _____ **Grade:** _____ **Student ID#:** _____

SCOTTSDALE UNIFIED SCHOOL DISTRICT STUDENT RELEASE FORM

(This release section is necessary to meet the requirements of state statute A.R.S. §15-142.)

Please read the items listed below carefully. Unless you refuse to consent or "opt out" personally identifying student information will be made available as described or your student may be referred to a program described. Your student's personally identifying information will not be released and they will not be considered for certain programs if you refuse consent. If SUSD does not receive this form within fourteen (14) calendar days from your receipt of this form, SUSD will infer that you consent to the release of student information or to consideration for the identified programs.

I have reviewed the SUSD Code of Conduct (which can be found at www.SUSD.org) myself and with my student. I acknowledge that all students will be held accountable to the expectations outlined in the SUSD Code of Conduct. My initials below indicate my review of the SUSD Code of Conduct.

STUDENT ASSISTANCE PROGRAMS

Scottsdale Unified School District provides Student Assistance Programs (SAP's). These prevention-focused support services are available for students who either self-refer or are referred for assistance in areas such as coping with at-risk behavior, stress and personal pressures, building positive relationships, divorce adjustment, grief support, and conflict resolution. The programs are preventative and educational in nature and do not include psychological assessment, evaluation, or therapy.

■ I DO NOT Give Consent _____ Initial

STUDENT DIRECTORY INFORMATION RELEASE

This gives consent for the release of student directory information as it applies to school related activities such as athletics, musical programs, honors and awards, drama productions, commencement, etc. This release shall not apply to confidential student records such as test scores, transcripts, and evaluations. Consent will remain in effect for the current school year or until permission is revoked by the parents, requesting in writing such a revocation. Details of Governing Board policy as to the release of directory information may be secured by contacting the school office or visiting the District's website at www.susd.org. Directory information includes the student's name, the parents' names, email addresses, home addresses and telephone numbers; class/grade level; weight and height if the student is a member of an athletic team; awards received; extracurricular participation; honors and achievements.

■ I DO NOT Give Consent _____ Initial

HIGH SCHOOL – GRADES 11-12

According to state and federal law, the above-designated directory information may be publicly released to educational, occupational or military recruiting representatives without your permission. ** If you do not object to the release of any OR all of the above designated information in writing, then the school must provide military recruiters, upon request, directory information containing the student's name, addresses and telephone listings. Under the Elementary and Secondary Education Act and No Child Left Behind Act of 2001, as amended, school districts are required to comply with a request from a military recruiter for names, addresses, and telephone listings for each student who is 17 years of age or older or in the eleventh grade (or its equivalent) or higher, even if a school district has a policy of not disclosing such directory information. Additionally, educational, occupational or military recruiting representatives may request a student's GPA and Class Rank. If you agree to the release of GPA and Class Rank to educational, occupational representatives, we are required to provide the same information on an equal basis to military recruiting representatives.

■ I DO NOT Give Consent _____ Initial

STUDENT PHOTO/VIDEO RELEASE (all school-sponsored activities except athletics)

This gives consent for my student's photo/video to be used in school-related activities by representatives of media (which could include television) and for use of the school district in various media, such as newspapers, broadcasts, news releases, school/district newsletters, District website, and social media sites,(i.e. Facebook, Twitter), school plays and contests. This does not include athletic events, which are considered public events.

■ I DO NOT Give Consent _____ Initial

YEARBOOK RELEASE

This gives consent for my student to be photographed and identified by his or her name to be used in school-related activities, which include the yearbook.

■ I DO NOT Give Consent _____ Initial

PERMISSION TO RELEASE STUDENT DIRECTORY INFORMATION (School Related Organizations)

This gives consent for the release of student information to Parent Teacher Organizations and Booster Clubs. This release shall not apply to confidential student records such as test scores, transcripts, evaluations, etc.

■ I DO NOT Give Consent _____ Initial

GRADUATION

(Please read carefully, as your selections can prevent your child from receiving notifications of offerings by vendors).

The School District will release a high school student' s name, address and telephone number to entities pertaining to graduation unless parents direct otherwise. Please check **"RESTRICT INFORMATION"** to specifically denote your desire to restrict the release of your child's information; otherwise, SUSD will assume consent to the release of the information to the corresponding source for the following:

Graduation & Yearbook Portraits and/or Photographs	□ Restrict Information
Graduation Program & Diploma	□ Restrict Information
Graduation Caps and Gowns	□ Restrict Information
Project Graduation	□ Restrict Information
Senior Portraits (May include Juniors for upcoming Senior Year)	□ Restrict Information

SIGNATURE REQUIRED BELOW (only if there is a change from the prior year)

The information I have provided on this form is accurate and true. I hereby certify that I am the parent or legal guardian* (with legal custody, if separated or divorced) of the above named student. ***Copy of Court paperwork is mandatory. I hereby acknowledge that I have read the SUSD Code of Conduct and agree to abide by the rules and expectations contained therein.**

_____ _____

Parent/Guardian Signature Date

_____

Please Print Parent/Guardian Name

EMAIL ACCOUNTS

Students in grades K-12 will receive an email account provided and supported by SUSD. All rules and expectations within the Student and Parent Technology and Network Resource expectations apply.

Note: IF YOU DO NOT CHECK THE BOX BELOW, SUSD WILL PROVIDE YOUR STUDENT AN SUSD SUPPORTED EMAIL ACCOUNT

■ I DO NOT Give Consent _____ Initial

CODE OF CONDUCT HARD COPY REQUEST

In an effort to be responsive to the environment, the Code of Conduct is available online at all school sites. If an electronic version of the Code of Conduct is not accessible, **limited** hard copy versions will be available to families through the individual sites' administrative offices. If you would like to request a hard copy version of the Code of Conduct, please check below.

I would like to have a hard copy version of the Code of Conduct _____ Initial

2022/2023 PARENT/LEGAL GUARDIAN CONSENT TO PARTCIPATION IN SOCIAL EMOTIONAL BEHAVIOR SCREENING

2021/2022 PARENT/LEGAL GUARDIAN CONSENT TO PARTICIPATION IN SOCIAL EMOTIONAL BEHAVIOR SCREENING Pursuant to A.R.S. § 15-117 informed, parental consent is required to conduct screenings and/or surveys of my minor child. My signature below authorizes SUSD to complete an emotional health and wellness screening of my child (child's name).

The SAEBRS (Social, Academic, and Emotional Behavior Risk Screener) is a brief screening tool for universal screening of student risk for social-emotional and behavioral problems for students in Grades K through 12 which will be used by the district for this purpose.

I further understand that upon my request, SUSD shall provide any available information regarding the screening to me in a timely manner including the dates, methods used, information collected and reasons for administration.

I have read this Consent & Release Form and fully understand the terms and conditions outlined. I certify that I have full legal capacity to sign this Consent & Release Form on behalf of myself and my child.

YES, _____ I do give consent as described above.

NO, _____ I do not give consent as described above.

PERMISSION

The Scottsdale Unified School District has my consent as described above in this Consent & Release.

_____
Name

_____ _____
Signature Date

Name of Parent (print) _____

Signature of Parent _____

Date _____

Student Name _____

Student ID Number _____

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PURPOSE OF CODE

The purpose of the Uniform Code of Conduct is to teach students to become productive members of society. The Code establishes a standard of conduct for the Scottsdale Unified School District which will:

- Provide a supportive educational climate for all students, faculty, staff, and general public
- Assure the safety of the students and staff
- Protect school district property
- Honor and protect the rights of all individuals within the school community

The word “discipline” is from the Latin word discipline meaning “instruction and training”. The intention of the code is to first use discipline issues as teachable moments to deliver skills that are required in academia and society. Second, issues are worked through to repair and restore relationships, identify opportunities to take responsibility, and reintegrate students through restorative practices.

STANDARD OF CONDUCT

All persons upon the property of the Scottsdale Unified School District are expected to conduct themselves in a manner that is consistent with the vision, goals, and beliefs of the District.

Students are required by state law to comply with the regulations, pursue the required course of study, and submit to the authority of the teachers, the administrators, and the Governing Board (A.R.S. §15-841(A)).

This requirement includes (1) complying with all duly adopted Governing Board policies and administrative regulations, and (2) complying with the lawful directions of District officials and/or identifying oneself to such officials when lawfully requested to do so. In addition, students are required to obey all federal, state, and city laws, and must comply with the lawful directions of any law enforcement officer acting in performance of his or her duties. Students and parents are advised that there are certain instances in which Arizona law requires that school personnel contact law enforcement authorities.

Student rights and behavioral expectations apply whenever a student is on school property, including school buses, in the vicinity of the school, at school activities, at school-sponsored activities, and on the way to and from school.

The Uniform Code of Conduct is complete in its entirety and applies for the full year, inclusive of summer activities sponsored by the District.

1. RIGHT OF ACCESS TO RECORDS

A. The District's complete Student Records Policy (Board Policy JR and Regulation JR-R) is available, upon request, for review in the office of each school and in the Superintendent's office.

B. The Family Educational Rights and Privacy Act (FERPA) affords parents, guardians and students 18 years of age or older ("eligible students") certain rights with respect to the student's education records. These rights are:

1. The right to inspect and review the student's education records within 45 days to the day the school receives a written request for access. Parent, guardian or the eligible student should submit to the school principal and/or records custodian a written request identifying the records requested for inspection. The principal or designee will arrange for the inspection. Each parent has equal rights to inspect and to review a student's records unless the school has been provided with a valid court order to the contrary. Where compliance with the request includes copying records, the District may charge a fee for such copies in accordance with Regulation JR-R.

2. The right to request the amendment of the student's education records that the parent, guardian or eligible student believes are inaccurate or misleading. Obvious errors in records may be amended through oral request to the records custodian. Procedures for requesting more substantive amendments to education records are set forth in the Governing Board Policy Regulation JR-R, and may include, when necessary, a hearing before a designated hearing officer.

3. The right to consent to disclosures of personally identifiable information contained in the student's education records, except to the extent that FERPA authorizes disclosure without consent. One exception, which permits disclosure without consent, is disclosure to school officials with legitimate educational interests. For purposes of this exception, the criteria for determining whether a person is a "school official" with a "legitimate educational interest" are set forth in the Governing Board Regulation JR-R. Upon request, the District may disclose education records without consent to officials of another school district in which a student seeks or intends to enroll.

4. The right to file a complaint with the U.S. Department of Education concerning alleged failures by the District to comply with the requirements of FERPA.

C. The District may disclose the information unless the parent, guardian or eligible student opts out. Notwithstanding the above rights, the District may disclose appropriately designated "directory information" without written consent, unless the parent or eligible student has advised the District that any or all of the information designated as directory information should not be released without the parent's prior consent (see below). The primary purpose of directory information is to allow the District to include this type of information from education records in certain school publications (e.g., yearbook, honor roll, playbill, athletic programs, etc.).

The District will not disclose directory information, except as required by law, to any organization other than school-related organizations. "School-related organization" means (i) an organization whose activities support and promote the educational mission of the District, as determined by the Governing Board, or (ii) a government agency. School related organizations may include parent organizations, booster clubs, school employee organizations, Community Education Programs, the Arizona Interscholastic Association, and other organizations and clubs affiliated with the District and its schools. Government agencies may include any local, state or federal government agency.

In addition, federal laws require the District to provide military recruiters, upon request, with three directory information categories - names, addresses and telephone listings - unless parents have advised the District that they do not want their student's information disclosed without their prior written consent.

A parent, guardian or eligible student who does not want the District to disclose directory information from education records without prior written consent must notify the District in writing within two weeks after enrolling in the Scottsdale Unified School District. The District has designated the following information as directory information:

- Student's name and names of student's parents
- Student's participation in officially recognized activities and sports
- Parent's address
- Parent's telephone listing
- Parent e-mail
- Weight and height of members of athletic teams
- Student's achievements, honors and awards received
- Student's grade level

1. RIGHT TO ASSEMBLE

School-sponsored activities and meetings (student government, pep rallies, etc.) are scheduled to take place during the school day. In addition, students shall be given the opportunity to organize and hold student meetings at reasonable times, other than during those hours when classes are being held. Student meetings or gatherings in school buildings or on school grounds may function only as authorized by the school administration. Site administrators must be informed in advance and may impose reasonable restrictions on the time and place of student gatherings or assemblies.

If the site administrator denies permission for a student gathering or assembly, the site administrator shall provide a written explanation upon request. Attendance at meetings and assemblies is limited to students regularly enrolled in that building unless the school administrator has given prior approval.

2. RIGHT TO DUE PROCESS

All students have the right to due process in matters of student discipline. The extent of the due process provided depends on the nature of the violation and the proposed disciplinary action to be taken. Due process procedures for suspensions and expulsions are set forth in Articles D and E of the Uniform Code of Conduct.

3. RIGHT TO BE EDUCATED

If your family lives in any of the following situations:

- In a shelter, motel, vehicle, or campground or on the street
- In an abandoned building, trailer, or other inadequate accommodations, or
- Doubled up with friends or relatives because you cannot afford housing

You have certain rights and protections under the McKinney-Vento Homeless Education Assistance Act.
You have the right to:

- Go to school, no matter where you live or how long you have lived there. You must be given access to the same public education provided to other students.
- Continue in the school you attended before you became homeless or the school you last attended, if that is your choice and is feasible. The school district's local liaison for homeless education must assist you, if needed, and offer you the right to appeal a decision regarding your choice of school if it goes against your wishes.
- Receive transportation to the school you attended before you became homeless or the school you last attended, if you request such transportation.
- Attend a school and participate in school programs with students who are not homeless. Students cannot be separated from the regular school program because they are homeless.

- Enroll in school without giving a permanent address. Schools cannot require proof of residency that might prevent or delay school enrollment.
- Enroll and attend classes while the school arranges for the transfer of school and immunization records or any other documents required for enrollment.
- Enroll and attend classes in the school of your choice even while the school and you seek to resolve a dispute over enrollment.
- Receive the same special programs and services, if needed, as provided to all other students served in these programs.
- Receive transportation to school and to school programs.

When you move, you should do the following:

- Contact the school district's Director of Support Services for help in enrolling in a new school or arranging to continue in your former school (or someone at a shelter, social services office, or the school can direct you to the person you need to contact).
- Tell your teachers anything that you think they need to know to help you in school.
- Ask the Director of Support Services, shelter provider, district social worker, or site community specialist for assistance with clothing.

1. RIGHT TO FORM AND EXPRESS IDEAS

Every student has the right to form, hold and express his or her own ideas and beliefs. The encouragement of this right requires that each student be permitted to disclose or express an idea in the proper educational setting without penalty or embarrassment. The administration and faculty of each school have the obligation to maintain an environment conducive to the free exchange of ideas, while at the same time, maintaining a safe, orderly school environment conducive to learning. Thus, student ideas and speech need to be consistent with socially appropriate behavior.

2. RIGHT TO BE FREE FROM BULLYING, INTIMIDATION, HAZING OR HARASSMENT

Students may expect the opportunity to learn in an atmosphere free from bullying, intimidation, hazing or harassment. As set forth and defined in Article B, and Appendix A, students are prohibited from harassing, intimidating, hazing and bullying or cyber-bullying other students on school grounds, school property, school buses, at school bus stops and at school-sponsored events and activities.

Reporting Bullying, Harassment, Hazing or Intimidation

Any student who believes that he/she is, or has been subjected to bullying, intimidation, hazing or harassment by any other student, visitor, or school staff is urged to contact the Principal or designee at his or her school. There may be times, however, when a person feels uncomfortable reporting such conduct to the Principal or designee. In such cases, the person should report the conduct to a teacher or counselor. Similarly, any person who becomes aware of any bullying, intimidation, hazing or harassment should report it to the Principal or designee. Employee may initially give verbal notice to principal or designee but shall submit a written report to the principal or designee within one (1) school day of the verbal reports. School officials shall, to the extent possible, keep confidential all reports of bullying, intimidation, hazing or harassment.

Parents and guardians are also encouraged to report suspected incidents of bullying, intimidation, hazing or harassment to school officials. Such reports should be submitted in writing to the school Principal or designee. A verbal report will be documented in writing by the employee receiving the report.

ARTICLE A: STUDENT RIGHTS

Investigation of Complaints

The Principal or designee will promptly review and conduct a fair and impartial investigation on a case-by-case basis, as soon as feasible but no later than two (2) days, for every report of misconduct prohibited by this section. All such investigations will be conducted in a manner designed to protect, to the extent permitted by law, the privacy of all parties concerned.

As set forth above, any student determined, after investigation, to have violated this policy will be subject to disciplinary action as set forth in Article B. Such discipline may include expulsion. In addition to discipline by the District, individuals who engage in acts of bullying, intimidation, hazing or harassment may also be subject to civil and criminal penalties.

If the Principal or designee who conducted the investigation determines that the claim of bullying, harassment, hazing or intimidation cannot be substantiated, all documents relating to the complaint will be maintained in the school administrative office. No documents relating to the complaint shall be kept in any student file. The District will maintain documentation for at least six (6) years.

Retaliation

The District is committed to ensuring that all of its students have the opportunity to learn in an environment free from bullying, harassment, hazing and intimidation. Accordingly, the District will not tolerate retaliation by any student, employee, or other individual against any student who has made a complaint, assisted, or participated in any manner, in an investigation, proceeding, or hearing conducted in response to an internal or external investigation of bullying, harassment, hazing or intimidation. Retaliation is a serious violation of this policy and should be reported immediately to the Principal or designee.

Consequences of submitting false reports of incidents of bullying, harassment, hazing or intimidation:

The District also prohibits intentionally submitting false reports of incidents bullying, harassment, hazing or intimidation. If the Principal or designee determines that a student has intentionally submitted a false complaint, the student will be subject to discipline, up to and including expulsion. No student will be subject to discipline that makes a complaint under this section in good faith.

1. RIGHT TO A PROFESSIONAL STAFF AND FACILITIES

Each student has the right of access to a professional staff and the facilities necessary for an instructional and co-curricular program whose benefits will be available to those who participate actively.

Policies expressly prohibit behavior on District property that will damage the dignity, self-esteem, integrity, and safety, and/or disrupt the educational process, of any individual.

By accepting the right to participate in school programs on or off school property, the student shall accept the responsibility to conduct him or herself according to the rules, regulations, and provisions of these programs.

2. RIGHT TO PUBLISH

Students are entitled to express, in writing, their personal opinions and to circulate petitions. The manner of distribution of such material shall be such as not to interfere with or disrupt the educational process and shall be subject to the following provisions.

Circulation of petitions may take place during lunch and prior to and/or after school in areas designated by the site administrator, which provide reasonable access to the students. The student must be presently enrolled in the school and authorship of the material must be identified.

The superintendent, assistant superintendent, or site administrator may prohibit the posting or distribution of any material which:

- materially and substantially interferes or threatens to interfere with the requirements of good order in the operation of a school or schools;
- materially disrupts or threatens to disrupt a class, classes, or class work;
- involves or threatens to involve disorder, violence, or an invasion of the rights of other students; or,
- is libelous, defamatory, or obscene.

A. Students may distribute or post such materials in the building or on school grounds subject to administrative approval and rules published by the site administrator.

B. Students shall have access to specified bulletin boards and/or areas for the posting of notices or other communications concerning school activities or matters of general interest to students. Posted notices shall: (1) be subject to reasonable size and number limitations determined by the administration; (2) be dated; and, (3) identify the sponsoring individual organization. School authorities may remove notices in violation of any applicable restriction, outdated or posted more than ten days.

C. Students who edit, publish, or distribute handwritten, printed, duplicated or other materials among their fellow students assume full responsibility for the content of all material. By accepting the right to participate in school programs on and off school property, the student shall accept the responsibility to conduct him/herself according to the rules, regulations, and provisions of the Uniform Code of Student Conduct.

D. The school principal is the official publisher of school-sponsored publications. Student editors of school-sponsored publications shall be guided by the policies of the school district and shall ensure adherence to accepted standards of journalism, specifically those guarding against libel, intentional distortion, or reckless disregard for the facts.

Authorship shall be disclosed, and opinions shall be identified as such. Student editors of school-sponsored publications shall have an obligation to provide opportunities for fellow students, teachers, and administrators to express views, which differ from editorial policy. All articles to be published in school-sponsored publications shall be submitted for approval to the faculty sponsor before publication. Articles may be rejected by the faculty sponsor who shall prepare a written explanation to the student editor of the reasons for rejection. Within five school days after receipt of such written explanation, the rejection may be appealed in writing to the school principal, who may affirm, reverse or modify the action of the faculty sponsor.

2. RIGHT TO SPECIAL PROGRAMS

A. All children identified as qualifying for special education under the Individuals with Disabilities Education Act (IDEA), shall receive special education commensurate with their abilities and needs.

B. All children identified as qualifying for gifted services shall receive education commensurate with their abilities and needs.

C. Any student qualified according to conditions described under Section 504 of the Rehabilitation Act of 1973 shall receive accommodations prescribed by the 504 Team at his or her school.

D. An alternative education program may be available for those students who are unable to profit from the regular school curriculum and environment, or who are in need of discipline greater than short-term suspension, but short of expulsion.

ARTICLE A: STUDENT RIGHTS

1. RIGHT TO USE EDUCATIONAL RESOURCES

Students have the right to use buildings, grounds, equipment, and instructional materials necessary to meet the requirements and needs of their curricular and co-curricular programs in accordance with procedures established by the administration.

A. The site administrator shall be responsible for establishing and enforcing procedures to make the building, equipment and materials available to students. Students shall have had prior experience or instruction before using equipment.

B. The student exercising the right to use the resources provided shall also accept the responsibility for the preservation and care of the property. Any unauthorized use or deliberate destruction or defacing of the property shall be deemed a violation of the Uniform Code of Conduct.

2. STUDENT EXERCISE OF RIGHTS AND PRIVILEGES

Any student who believes his/her rights have been violated should immediately notify appropriate school personnel (teacher, counselor, or school administration).

A student shall not be punished or penalized by any member of the school faculty or administration solely because that student exercised any of the rights or privileges described in this code. Any student who deems him/herself aggrieved by a violation of this regulation may appeal, in writing, to the administrator of the building in which he/she is enrolled. The site administrator shall promptly hear and consider the request and respond appropriately.

Each student is responsible for moderating his/her own exercise of rights and privileges so as not to disrupt the educational program, the school activities or to infringe on the rights of others.

GENERAL BEHAVIOR EXPECTATION

Students are expected to conduct themselves in a manner that is consistent with the vision, goals, and beliefs of the Scottsdale Unified School District. Accordingly, students are prohibited from engaging in behavior (1) that obstructs, disrupts, or interferes with any educational, administrative, disciplinary, or other activity sponsored or approved by the District, (2) that endangers or threatens the safety of any person, or (3) that inflicts or threatens to inflict damage on property of the District, District employees, students, or others. In addition, students who have committed or are believed to have committed a crime may be subject to school discipline. A.R.S. §15-843(B)(4). Students who fail to abide by this general behavioral expectation will be subject to appropriate discipline, regardless of whether the conduct violates any specific provision of Article B.

In addition to any specifically enumerated consequences, any violation of the General Behavioral Expectation or of any Specifically Prohibited Behaviors listed below may result in the following consequences:

A. The student may be retaught the proper behavior expectation.

B. The student may be isolated from other students.

C. The student's parents will be informed of inappropriate behavior and reminded of school policy and disciplinary procedures.

D. The student may be required to make use of counseling/intervention services.

E. The student may be removed from the aggrieved teacher's class with loss of credit.

F. The student will make restitution for damages, if appropriate.

G. The student may be assigned detention, work detail, and/or in-school suspension.

H. The student may be suspended from school premises and activities.

I. For repeated or serious violations, the student may be removed from the regular school program or recommended for expulsion.

J. Administration may involve police. Legal action may be taken.

Consistent with the general behavioral expectations, the following specified behaviors are prohibited on school property (including school buses and bus stops), in the vicinity of the school, at school-sponsored activities, and on the way to and from school unless otherwise required by the Uniform Code of Conduct or Board Policy. Disciplinary decisions are at the discretion of the administrator and are expected to be connected to the misconduct in a logical and timely manner.

The violations and definitions listed on the next several pages are not to be viewed as all-inclusive. School administrators have the discretion to assign a violation category to a student's misconduct based on all evidence collected and in alignment with normal practice. While students will receive consequences for committing violations, students may also receive consequences for attempting to commit a violation or knowingly assisting or provoking a violation of the Uniform Code of Conduct.

At the school administrator's discretion, students may receive a student support strategy for Level 1 violations to reteach school expectations. Discipline is progressive as outlined by minimum and maximum consequences.

Student Support Strategies may include:

- Participating in a community building circle
- Participating in a restorative conversation

- Participating in a behavioral intervention
- Participating in a student support group with a community agency, counselor, or social worker
- Writing a reflection/ apology letter
- Performing community service to restore the harm caused

Violations such as those involving alcohol, drugs, firearms possession, sexual abuse or other abuse and other serious incidents including threats, require a report to law enforcement. Schools also have the discretion to notify police of other incidents depending on the circumstances of the misconduct.

VIOLATIONS (LEVEL I)

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Academic Dishonesty (Cheating / Plagiarism)	Making use of something valuable by the use of deceit or fraud; is to influence or lead by deceit, trick or artifice. Cheating on schoolwork is presenting the work of another as one's own. This includes but is not limited to: copying an examination, assignment, or other school work; working with others on projects and assignments that are meant to be done individually; looking at or copying another student's test, quiz or homework answers; the use of cheat sheets or other forms of visual prompts including the use of electronic devices, calculators, cell phones, and/or text messages; taking papers (or any portions thereof) from other students, publications, or the internet; viewing a video, reading a summary, or consulting study aids (Cliffs Notes or equivalent, internet sources) of a book in place of reading the book; falsifying grades; aiding Academic Dishonesty violations and inappropriately collaborating.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	"Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days and Loss of Assignment Credit	ISS/OSS 3-5 days and Loss of Assignment Credit ***Note:* M.S. students taking H.S. course may lose class credit**	ISS/OSS 3-5 days and Loss of Assignment Credit and/or loss of class credit
Attendance Policy Violation	**Refer to Article C:** Attendance Regulations				
Bus Misconduct *(continues)*	"Bus Misconduct" includes: A. Failure to abide by the Code of Conduct while being transported in a vehicle owned or operated by the District, B. Riding on a bus without permission, or C. Failure to observe any of the following specific rules while riding in a vehicle owned or operated by the District: 1. Provide proper identification when loading bus. 2. Keep the aisles clear. 3. Remain seated.	**1st offense**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		2nd offense	Loss of Bus Privileges for 5 days	Loss of Bus Privileges for 5 days	Loss of Bus Privileges for 5 days
		3rd offense	Loss of Bus Privileges for 10 days	Loss of Bus Privileges for 10 days	Loss of Bus Privileges for 10 days
		4th offense	Loss of Bus Privileges for Remainder of School Year	Loss of Bus Privileges for Remainder of School Year	Loss of Bus Privileges for Remainder of School Year

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Bus Misconduct *(continued)*	4. Keep all body parts inside the vehicle. 5. Do not throw anything inside the vehicle or from the vehicle. 6. Do not eat or drink. (Plastic water bottles are acceptable. 7. Do not transport animals, insects, glass containers, and/or other prohibited items 8. Skateboards or Longboards over 33 inches shall not be transported on a bus. 9. Maintain orderly conduct on the bus and at designated bus stops. 10. When instruments or equipment related to musical or athletic events, including skateboards and rollerblades, are transported on a school bus, such instruments or equipment: a. Shall be transported in a manner which restrains the equipment in the event of an accident; b. Shall not occupy seating space if needed for a passenger; c. Shall not be placed in the school bus driver's compartment or step well; d. Shall be placed under the passenger's control at all times or secured in the school bus; and e. Shall not block an aisle or emergency exit of school bus at any time.	**1st offense**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		2nd offense	Loss of Bus Privileges for 5 days	Loss of Bus Privileges for 5 days	Loss of Bus Privileges for 5 days
		3rd offense	Loss of Bus Privileges for 10 days	Loss of Bus Privileges for 10 days	Loss of Bus Privileges for 10 days
		4th offense	Loss of Bus Privileges for Remainder of School Year	Loss of Bus Privileges fo Remainder of School Year	Loss of Bus Privileges for Remainder of School Year
Closed Campus Violation (Leaving School Grounds Without Permission)	Occurs when a student leaves campus in violation of the District's closed campus policy (listed below): A. Elementary and Middle Schools are closed campuses from time of student drop-off to pick up. Consequences for violation are determined by the administration in accordance with Article B, Behavior. B. High School campuses are closed to all students throughout their scheduled day, including lunchtime. Students who need to leave for medical reasons or special circumstances must obtain administrative permission in advance and may not leave campus without a pass from the front office or the nurse's office. The principal or designee will have discretion to grant students permission to leave the campus during the school day.	**1st offense**	ISS/OSS 1 day	ISS/OSS 1 day	ISS/OSS 1 day
		2nd offense	ISS/OSS 3 days	ISS/OSS 3 days	ISS/OSS 3 days
		3rd offense	ISS/OSS 4-9 days	ISS/OSS 4-9 days	ISS/OSS 4-9 days

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Computer/ Network Infraction	Includes any violation of the Acceptable Use Guidelines, as set forth in the Student and Parent Computer and Network Resource Policy.	**Min.**	Student Support Strategy, Parent Contact, and Possible Restriction of Use from Computer and/ or Network	Student Support Strategy, Parent Contact, and Possible Restriction of Use from Computer and/ or Network	Student Support Strategy, Parent Contact, and Possible Restriction of Use from Computer and/ or Network
		Max.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days and possible loss of credit
Contraband	Items stated in school policy as prohibited because they may disrupt the learning environment.	**Min.**	Confiscation, Student Support Strategy, and Parent Contact	Confiscation, Student Support Strategy, and Parent Contact	Confiscation, Student Support Strategy, and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-3 days	ISS/OSS 1-3 days
Defiance, Disrespect Towards Authority	Student engages in refusal to follow directions, talks back, or delivers socially rude interactions.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days
Disruption	Student engages in behavior causing an interruption in a class or activity. Disruption includes sustained loud talking, yelling, or screaming; noise with materials, horseplay or roughhousing; sustained out-of-seat behavior, running in the building, hallways, or corridors, etc.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days
Dress Code Violation and Student ID Violation	Student wears clothing that does not fit within the dress code guidelines stated by school or District policy or refuses to comply with student ID card policy.	**Min.**	Change clothes, Student Support Strategy and Parent Contact	Change clothes, Student Support Strategy and Parent Contact	Change clothes, Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-3 days	ISS/OSS 1-3 days
Electronic and Tele-communication Devices	Inappropriate possession or use of an electronic device or toy occurs when such device is possessed or used in a way that interferes with the orderly operation of the school or otherwise constitutes disruptive behavior. “Electronic Device” includes, without limitation, MP3 Players/iPods, music player of any kind, cell phones, electronic games, smart devices, digital cameras, etc.	**Min.**	Student Support Strategy, Parent Contact, and loss of technology privileges	Student Support Strategy, Parent Contact, and loss of technology privileges	Student Support Strategy, Parent Contact, and loss of technology privileges
		Max.	ISS/OSS 1-3 days and loss of technology privileges	ISS/OSS 1-3 days and loss of technology privileges	ISS/OSS 1-3 days and loss of technology privileges
Forgery	Is falsely and fraudulently making or altering a document.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-3 days	ISS/OSS 1-3 days

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Gambling	To play games of chance for money or to bet a sum of money.	**Min.**	Confiscation, Student Support Strategy, and Parent Contact	Confiscation, Student Support Strategy, and Parent Contact	Confiscation, Student Support Strategy, and Parent Contact
		Max.	ISS/OSS 1-5 days	ISS/OSS 1-5 days	ISS/OSS 5-9 days Expulsion Hearing
Graffiti or Tagging	Writing on walls, drawings or words that are scratched painted or sprayed on walls or other surfaces in public places. *See also negative group affiliation*.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-5 days	ISS/OSS 5-9 days	ISS/OSS 5-9 days
Language, Inappropriate	Student delivers verbal messages that include swearing, profanity, racial slurs, name-calling or use of words in an inappropriate way but not rising to the level of threatening or intimidating.	**Min.**	Student Support Strategy and Parent Contact	Student Conference ISS/ OSS 1-4 days	Student Conference ISS/ OSS 1-4 days
		Max.	ISS/OSS 1-3 days	ISS/OSS 5-9 days	ISS/OSS 5-9 days
Lying	Is to make an untrue statement with intent to deceive; is to create a false or misleading impression.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-3 days	ISS/OSS 1-3 days
Minor Aggressive Act	Student engages in non-serious but inappropriate physical contact, (i.e., hitting, poking, pulling or pushing). Other behaviors that may be considered under this violation are pulling a chair out from underneath another person, or other behaviors that demonstrate low-level hostile behaviors. ***(See Disruption for additional prohibited behavior)***	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-3 days	ISS/OSS 1-3 days
Non-Compliance with Assigned Consequences	Student does not comply with assigned consequence	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days
Other Violation of School Policy	(Administration Discretion)	**Min. & Max.**	Administration Discretion	Administration Discretion	Administration Discretion
Parking Lot/ Vehicle Violation	Includes any use of a vehicle, including parking, that violates school rules or driving laws or that endangers property or personal safety.	**Min.**	Not Applicable	Not Applicable	Loss of parking permit privileges 1-3 days
		Max.	Not Applicable	Not Applicable	Loss of parking permit privileges for remainder of school year ISS/OSS 5-9 days

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Petty Theft	Arizona law does not differentiate between petty and grand theft, but school administrators may want to consider thefts under $100 as petty.	**Min.**	Student Support Strategy, Parent Contact, Pay Restitution, and /or Return Stolen Items	Student Support Strategy, Parent Contact, Pay Restitution, and /or Return Stolen Items	Student Support Strategy, Parent Contact, Pay Restitution, and /or Return Stolen Items
		Max.	OSS 1-3 days and may pay restitution and/or return stolen items	OSS 3-5 days and may pay restitution and/or return stolen items	OSS 3-5 days and may pay restitution and/or return stolen items
Pranks, Including Interschool Rivalry	"Pranks" include any act of mischief that; A. Causes a negative public image of the school; B. Is intended to, or could reasonably be interpreted as intending to, taunt or create excessive tension between groups within one school or between two or more schools; C. Disrupts or distracts from a school event (such as a homecoming parade, school assembly, etc.); or D. Is intended to stimulate similar acts of mischief by other students.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-5 days	ISS/OSS 5-9 days, Expulsion Hearing with loss of participation in related activities (i.e. extra-curicular events, graduation activities and ceremony)
Public Display of Affection	Holding hands, kissing, sexual touching or other displays of affection in violation of school policy.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-3 days	ISS/OSS 3-5 days
Recklessness	Unintentional, careless behavior that may pose a safety or health risk for others.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days
Verbal Provocation	Use of language or gestures that may incite another person or other people to fight.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days
****Alcohol Violation**	The violation of laws or ordinances prohibiting the manufacture, sale, sharing, purchase, transportation, possession or use of intoxicating alcoholic beverages or substances represented as alcohol or otherwise listed in Appendix A. This includes being intoxicated at school, at school-sponsored events or on school-sponsored transportation. **Level 1:** First Offense **Level 2:** Second Offense within 365 days; distribution; offense combined with other aggravating factors.	**Min (Level 1)**	OSS 5-9 days and Substance Awareness Program class	OSS 5-9 days and Substance Awareness Program class	OSS 5-9 days and Substance Awareness Program class
		Max. (Level 2)	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing

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VIOLATIONS (LEVEL II)

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
**Armed Robbery	**A.R.S. §13-1904(A). Armed robbery.** A person commits armed robbery if, in the course of committing robbery as defined in section 13-1902, such person or an accomplice: A. Is armed with a deadly weapon or a simulated deadly weapon; or B. Uses or threatens to use a deadly weapon or dangerous instrument or a simulated deadly weapon.	Min. Max.	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
**Arson of a Structure or Property	**A.R.S. §13-1703(A). Arson of a structure or property.** A person commits arson of a structure or property by knowingly and unlawfully damaging a structure or property by knowingly causing a fire or explosion.	Min.	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing
**Arson of an Occupied Structure	**A.R.S. §13-1704(A). Arson of an occupied structure.** A person commits arson of an occupied structure by knowingly and unlawfully damaging an occupied structure by knowingly causing a fire or explosion. "Occupied structure" means any structure as defined in A.R.S. § 13-1701(4), in which one or more human beings either is or is likely to be present or so near as to be in equivalent danger at the time the fire or explosion occurs. The term includes any dwelling house, whether occupied, unoccupied or vacant. A.R.S. §13-1701(2).	Min.	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
**Assault and Aggravated Assault	**A.R.S. §13-1203(A). Assault.** A person commits assault by: A. Intentionally, knowingly or recklessly causing any physical injury to another person; or B. Intentionally placing another person in reasonable apprehension of imminent physical injury; or C. Knowingly touching another person with the intent to injure, insult or provoke such person. **A.R.S. §13-1204(A). Assault.** A person commits aggravated assault if the person commits assault as prescribed by section 13-1204 under 11 different circumstances	Min.	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
*Bullying	Bullying is repeated acts over time that involve a real or perceived imbalance of power with the more powerful child or group attacking those who are less powerful. Bullying can be physical in form (e.g., pushing, hitting, kicking, spitting, stealing); verbal (e.g., making threats, taunting, teasing, name-calling); or psychological (e.g., social exclusion, spreading rumors, manipulating social relationships). This includes cyber bullying. (Paraphrased from: Ericson, Nels, 2001, Addressing the Problem of Bullying, U.S. Dept. of Justice, Fact Sheet #FS-200127). ***Note:*** *Also see Article A#6, pg. 15*	**Min.**	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5-9 days	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing
**Burglary (First Degree)	**A.R.S. §13-1508. Burglary in the first degree; classification.** A. A person commits burglary in the first degree if such person or an accomplice violates the provisions of either section 13-1506 or 13-1507 and knowingly possesses explosives, a deadly weapon or a dangerous instrument in the course of committing any theft or any felony. B. Burglary in the first degree of a non-residential structure or a fenced commercial or residential yard is a class 3 felony. It is a class 2 felony if committed in a residential structure.	**Min.**	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
		Max.			
*Burglary or Breaking and Entering (third degree only - second degree does not apply to schools)	**A.R.S. §13-1506. Burglary in the third degree; classification.** A. A person commits burglary in the third degree by: 1. Entering or remaining unlawfully in or on a non-residential structure or in a fenced commercial or residential yard with the intent to commit any theft or any felony therein. 2. Making entry into any part of a motor vehicle by means of a manipulation key or master key, with the intent to commit any theft or felony in the motor vehicle. B. Burglary in the third degree is a class 4 felony.	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
*Combustibles	Student is in possession of substance or object that is readily capable of causing bodily harm or property damage, i.e. matches, lighters, firecrackers, gasoline, and lighter fluid.	**Min.**	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
*Dangerous Items	The use, possession, sale, purchase, manufacture, or transportation of dangerous items such as air soft gun, BB gun, knife with a blade length of less than 2.5", laser pointer, letter opener, mace, paintball gun, pellet gun, razor blade or box cutter, simulated knife, Taser or stun gun, tear gas, or other dangerous items. A dangerous item used to cause bodily injury to, threaten, or intimidate another person may be classified as a dangerous instrument as defined below and must be reported to law enforcement. **A.R.S. §13-105(12). Dangerous instrument.** Anything that under the circumstances in which it is used, attempted to be used or threatened to be used is readily capable of causing death or serious physical injury.	**Min.**	ISS/OSS 1- 4 days	ISS/OSS 1- 4 days	ISS/OSS 1- 4 days
		Max.	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing
*Disorderly Conduct	**A.R.S. §13-2904. Disorderly conduct.** A person commits disorderly conduct if, with intent to disturb the peace or quiet of a person, or with knowledge of doing so, such person: 1. Engages in fighting, violent or seriously disruptive behavior; or 2. Makes unreasonable noise; or 3. Uses abusive or offensive language or gestures to any person present in a manner likely to provoke immediate physical retaliation by such person; or 4. Makes any protracted commotion, utterance or display with the intent to prevent the transaction of the business of a lawful meeting, gathering or procession; or 5. Refuses to obey a lawful order to disperse issued to maintain public safety in dangerous proximity to a fire, a hazard or any other emergency; or 6. Recklessly handles, displays, or discharges a deadly weapon or dangerous instrument. (Possession of a deadly weapon or dangerous instrument must also be reported as a weapons violation to ADE and to local law enforcement).	**Min.**	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
**Drug Violation	The unlawful use, cultivation, manufacture, distribution, sale, sharing, purchase, possession, transportation or importation of any controlled/prescription drug or narcotic substance or equipment and devices used for preparing or taking drugs or narcotics. Includes being under the influence of drugs at school, school sponsored events or on school-sponsored transportation. Category includes over-the-counter medications if abused by the student. This category does not include tobacco or alcohol. "Drug "means any narcotic drug, dangerous drug, marijuana or peyote (A.R.S. §13-3415), or otherwise defined in Appendix A. ***Note:*** *See Appendix A for drug paraphernalia.* **Level 1:** First Offense **Level 2:** Second Offense within 365 days; distribution; offense combined with other aggravating factors	**Min. (Level 1)**	OSS 5-9 days and Substance Awareness Program class	OSS 5-9 days and Substance Awareness Program class	OSS 5-9 days and Substance Awareness Program class
		Max. (Level 2)	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
**Endangerment	**A.R.S. §13-1201. Endangerment; classification.** A. A person commits endangerment by recklessly endangering another person with a substantial risk of imminent death or physical injury. B. Endangerment involving a substantial risk of imminent death is a class 6 felony. In all other cases, it is a class 1 misdemeanor.	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing
*Extortion	**A.R.S. §13-1804(A).Theft by extortion; classification.** A person commits theft by extortion by knowingly obtaining or seeking to obtain property or services by means of a threat to do in the future any of the following: A. Cause physical injury to anyone by means of a deadly weapon or dangerous instrument. B. Cause physical injury to anyone except as provided in paragraph one of this subsection. C. Cause damage to property. D. Engage in other conduct constituting an offense. E. Accuse anyone of a crime or bring criminal charges against anyone. F. Expose a secret or an asserted fact, whether true or false, tending to subject anyone to hatred, contempt or ridicule or to impair the person's credit or business. G. Take or withhold action as a public servant or cause a public servant to take or withhold action. H. Cause anyone to part with any property.	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
*Fighting	Mutual participation in an incident involving physical violence where there is no major injury. Verbal confrontation alone does not constitute fighting.	Min.	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing
**Fire Alarm Misuse	Intentionally ringing fire alarm when there is no fire.	Min.	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5 9 days	ISS/OSS 5 9 days	ISS/OSS 5 9 days
**Firearm (Including Destructive Devices) *(continues)*	**A.R.S. §13-3111(A). Minors prohibited from carrying or possessing firearms; exceptions; seizure and forfeiture; penalties.** Except as provided in subsection B, an emancipated person who is under eighteen years of age and who is unaccompanied by a parent, grandparent or guardian, or a certified hunter safety instructor or certified firearms safety instructor acting with the consent of the un-emancipated person's parent or guardian, shall not knowingly carry or possess on his person, within his immediate control, or in or on a means of transportation a firearm in any place that is open to the public or on any street or highway or on any private property except private property owned or leased by the minor or the minor's parent, grandparent or guardian. **A.R.S. §13-3101(4). Definitions:** **"Firearm"** means any loaded or unloaded handgun, pistol, revolver, rifle, shotgun or other weapon that will expel, is designed to expel or may be readily converted to expel, a projectile by the action of an explosive. Firearm does not include a firearm in permanently inoperable condition. **The following is paraphrased from 18 U.S.C. § 921:** **Firearm:** Any weapon, including a starter gun, which will be or is designed to or may be readily converted to expel a projectile by the action of an explosive. This includes the frame or receiver of any such weapon, any firearm muffler or silencer or any destructive device. This definition does not include antique firearms. **Other Firearms:** Firearms other than handguns, rifles or shotguns including: A. Any weapon (including a starter gun) which will or is designed to or may readily be converted to expel B. The frame or receiver of any weapon described above; a projectile by the action of any explosive; C. Any firearm muffler or firearm silencer;	Min. & Max.	OSS 9 days Expulsion Hearing	OSS 9 days Expulsion Hearing	OSS 9 days Expulsion Hearing

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
****Firearm (Including Destructive Devices)** ***(continued)***	D. Any destructive device, which includes: Any explosive, incendiary, or poison gas; bomb; grenade; rocket having a propellant charge of more than 4 oz.; missile having an explosive or incendiary charge of more than one-quarter E. Any weapon which will, or which may be readily converted to, expel a projectile by the action of an explosive or other propellant, and which has any barrel with a bore of more than one-half inch in diameter; F. Any combination or parts either designed or intended for use in converting any device into any destructive device described in the two immediately preceding examples, and from which a destructive device may be readily assembled. (This definition does not apply to items such as toy guns, cap guns, BB guns, and pellet guns. ***See Dangerous Items and Simulated Firearms)*** **Destructive Device:** A category of firearm that includes an explosive, combustible or poisonous gas. This includes bombs, grenades, mines and rockets. Any type of weapon (other than a shotgun or a shotgun shell which is generally recognized as particularly suitable for sporting purposes) which will, or which may be readily converted to expel a projectile by the action of an explosive or other propellant; and which has any barrel with a bore of more than one-half inch in diameter, and any combination of parts either designed or intended for use in converting any device into a destructive device or from which a destructive device may be readily assembled. The term "destructive device" shall not include any device, which is designed or redesigned for use as a weapon.	**Min. & Max.**	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
Harassment, Non-Sexual** ***(continues)	**A.R.S. §13-2921(A). Harassment; definition.** A person commits harassment if, with intent to harass or with knowledge that the person is harassing another person, the person: A. Anonymously or otherwise communicates or causes a communication with another person by verbal, electronic, mechanical, telegraphic, telephonic or written means in a manner that harasses.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
	B. Continues to follow another person in or about a public place for no legitimate purpose after being asked to desist. C. Repeatedly commits an act or acts that harass another person.	**Max.**	ISS/OSS 1-5 days	ISS/OSS 1-5 days	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Harassment, Non-Sexual *(continued)	D. Surveils or causes another person to surveil a person for no legitimate purpose. E. On more than one occasion makes a false report to a law enforcement, credit or social service agency. F. Interferes with the delivery of any public or regulated utility to a person. **A.R.S. § 13-2921(E). Definitions.** For the purposes of this section, "harassment" means conduct that is directed at a specific person and that would cause a reasonable person to be seriously alarmed, annoyed or harassed and the conduct in fact seriously alarms annoys or harasses the person. ***Note:*** *Bullying, hazing and sexual harassment are types of harassment. Indicate harassment if the violation is not specifically bullying, hazing or sexual harassment, or if the specific type of harassment is not known.*	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-5 days	ISS/OSS 1-5 days	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing
****Harassment, Sexual (continues)**	**U.S. Department of Education, Office of Civil Rights, Revised Sexual Harassment Guidance: Harassment of Students by School Employees, Other Students, or Third Parties, Title IX, January 2001:** Sexual harassment is unwelcome conduct of a sexual nature that denies or limits a student's ability to participate in or to receive benefits, services, or opportunities in the school's program. It can include unwelcome sexual advances, requests for sexual favors, and other verbal, nonverbal, or physical conduct of a sexual nature. Because sexual harassment of students is a form of sex discrimination prohibited by Title IX of the Education Amendments of 1972, it is governed by this statute and corresponding guidance. Title IX applies to any public or private school receiving federal funding. Does not include legitimate nonsexual touching or other non- sexual conduct, for example, a high school athletic coach hugging a student who made a goal or a kindergarten teacher's consoling hug for a child with a skinned knee.Relevant factors in determining whether behavior rises to the level of sexual harassment include: • The degree to which the conduct affected one or more students' education; • The type, frequency and duration of the conduct; • The identity of and relationship between the alleged harasser and the subject or subjects of the harassment; • The number of individuals involved;	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
****Harassment, Sexual (continued)**	• The age and sex of the alleged harasser and the subject or subjects of the harassment; • The size of the school, location of the incidents, and the context in which they occurred; other incidents at the school. ***Note:*** *Sexual harassment includes but is not limited to students, staff, parents, and community members.*	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
****Harassment, Sexual with Contact**	Sexual harassment that includes unwanted physical contact of non-sexual body parts. (Includes areas not covered in Arizona Revised Statutes). ***Note:*** *Sexual harassment includes but is not limited to students, staff, parents, and community members.*	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
***Hazing**	***(See Article A and/or Appendix A)***	**Min.**	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5-9 days	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing
****Indecent Exposure or Public Sexual Indecency**	***See A.R.S. § 13-1401 for definitions.*** **A.R.S. §13-1402. Indecent exposure; exception.** A. A person commits indecent exposure if he or she exposes his or her genitals or anus or she exposes the areola or nipple of her breast or breasts and another person is present, and the defendant is reckless about whether the other person, as a reasonable person, would be offended or alarmed by the act. B. Indecent exposure does not include an act of breast- feeding by a mother. **A.R.S. §13-1403. Public sexual indecency; public sexual indecency to a minor.** A. A person commits public sexual indecency by intentionally or knowingly engaging in any of the following acts, if another person is present, and the defendant is reckless about whether such other person, as a reasonable person, would be offended or alarmed by the act: 1. An act of sexual contact. 2. An act of oral sexual contact. 3. An act of sexual intercourse. 4. An act of bestiality. B. A person commits public sexual indecency to a minor if the person intentionally or knowingly engages in any of the acts listed in sub-section A and such person is reckless about whether a minor under the age of fifteen years is present.	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
***Negative Group Affiliation**	Specific attitudes and actions of a student affiliated with a negative group typically include most of the following: A. May or may not have a recognized leader. Do most things together, especially socially. B. Stick together on issues. C. Loitering in a restroom/location or in a group without cause or permission D. Involve themselves in each other's problems; therefore, perpetuate each other's problems. E. Claim loyalty and righteousness if reprimanded. F. All the interference they cause is in the name of friendship. G. Likely to confront authority as a group when one member has been disciplined. H. Usually uncooperative and possibly hostile. I. Conduct themselves as though no other individuals exist in the school, including other students.	**Min.**	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	IISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing
****Other Weapons**	Use, possession, sale, purchase, manufacture, or transportation of other weapons such as billy club, brass knuckles, nun chucks, or a knife with a blade length of at least 2.5". In cases where a student is in possession of a gun, unloaded or loaded, switchblade, and/or a knife with a blade which is 2.5" or longer in length, there will be an automatic 9 day OSS and a recommendation for an expulsion hearing as per A.R.S. §15-841(B).	**Min.**	OSS 1-3 days	OSS 3-5 days	OSS 3-5 days
		Max.	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing
***Over-the-Counter and Prescription Drugs**	"Unauthorized possession or Use of Medication" occurs when a student, without previously obtaining authorization pursuant to the District's medication policy *(see General Information "Medication")*, possesses or uses a prescription or over-the-counter medication in accordance with the physician's written directions (prescription medications) or the manufacturer's written directions (over-the-counter medications). ***Note:*** *Any other possession, use, or distribution of a prescription or over-the-counter medication will be treated as a violation of the drug and alcohol policy.*	**Min.**	Student Support Strategy, Parent Contact, OSS 1-4 days and Substance Awareness Program Class	Student Support Strategy, Parent Contact, OSS 1-4 days and Substance Awareness Program Class	Student Support Strategy, Parent Contact, OSS 1-4 days and Substance Awareness Program Class
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
****Pornography**	Pornography is the sexually explicit depiction of persons, in words or images, created with the primary, proximate aim, and reasonable hope, of eliciting significant sexual arousal on the part of the consumer of such materials.	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
*Robbery	Using force or threatening to use force to commit a theft or while attempting to commit a crime. **A.R.S. §13-1902(A). Robbery.** A person commits robbery if, in the course of taking any property of another from his person or immediate presence and against his will, such person threatens or uses force against any person with intent either to coerce surrender of property or to prevent resistance to such person taking or retaining property.	Min.	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
**School Threat	Threatening to use a bomb, chemical, or biological agent, or other school threat.	Min. & Max.	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
**Sexual Abuse or Sexual Conduct with a Minor or Child Molestation	**A.R.S. §13-1404(A). Sexual abuse.** A person commits sexual abuse by intentionally or knowingly engaging in sexual contact with any person who is fifteen or more years of age without consent of that person or with any person who is under fifteen years of age if the sexual contact involves only the female breast. **A.R.S. §13-1405(A). Sexual conduct with a minor.** A person commits sexual conduct with a minor by intentionally or knowingly engaging in sexual intercourse or oral sexual contact with any person who is under eighteen years of age. **A.R.S. §13-1410(A). Molestation of child.** A person commits molestation of a child by intentionally or knowingly engaging in or causing a person to engage in sexual contact, except sexual contact with the female breast, with a child under fifteen years of age.	Min. & Max.	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
**Sexual Assault	**A.R.S. §13-1406(A). Sexual assault; increased punishment.** A person commits sexual assault by intentionally or knowingly engaging in sexual intercourse or oral sexual contact with any person without consent of such person.	Min. & Max.	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
** Simulated Firearm	Any simulated firearm made of plastic, wood, metal or any other material, which is a replica, facsimile, or toy version of a firearm or any object such as a stick or finger concealed under clothing and is being portrayed as a firearm.	Min.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days
		Max.	ISS/OSS 3-5 days Expulsion Hearing	ISS/OSS 6-9 days Expulsion Hearing	ISS/OSS 6-9 days Expulsion Hearing

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**Theft	Taking or attempting to take money or property belonging to another person or the school with the intent to permanently deprive the victim of his or her possessions. **A.R.S. §13-1802(A). Theft; definitions.** A person commits theft if, without lawful authority, the person knowingly: Controls property of another with the intent to deprive the other person of such property; or A. Converts for an unauthorized term or use services or property of another entrusted to the defendant or placed in the defendant's possession for a limited, authorized term or use; or B. Obtains services or property of another by means of any material misrepresentation with intent to deprive the other person of such property or services; or C. Comes into control of lost, mislaid or misdelivered property of another under circumstances providing means of inquiry as to the true owner and appropriates such property to the person's own or another's use without reasonable efforts to notify the true owner; or D. Controls property of another knowing or having reason to know that the property was stolen; or E. Obtains services known to the defendant to be available only for compensation without paying or an agreement to pay the compensation or diverts another's services to the person's own or another's benefit without authority to do so. ***Note:** see petty theft for lesser offense.*	**Min.**	OSS 1-4 days Student Conference Parent contact, and may pay restitution and /or return stolen items	OSS 1-4 days Student Conference Parent contact, and may pay restitution and /or return stolen items	OSS 1-4 days Student Conference Parent contact, and may pay restitution and /or return stolen items
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
Threat or Intimidation *(continues)*	When a person indicates by word or conduct the intent to cause physical injury or serious damage to a person or their property. **A.R.S. §13-1202. Threatening or intimidating; classification.** A. A person commits threatening or intimidating if the person threatens or intimidates by word or conduct: 1. To cause physical injury to another person or serious damage to the property of another; or 2. To cause, or in reckless disregard to causing, serious public inconvenience including, but not limited to, evacuation of a building, place of assembly or transportation facility; or	**Min.**	OSS 1-4 days Student Conference Parent Contact	OSS 1-4 days Student Conference Parent Contact	OSS 1-4 days Student Conference Parent Contact
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Threat or Intimidation *(continued)*	3. To cause physical injury to another person or damage to the property of another in order to promote, further or assist in the interests of or to cause, induce or solicit another person to participate in a criminal street gang, a criminal syndicate or a racketeering enterprise. B. Threatening or intimidating pursuant to sub-section A, paragraph 1 or 2 is a class 1 misdemeanor, except that it is a class 6 felony if: 1. The offense is committed in retaliation for a victim's either reporting criminal activity or being involved in an organization, other than a law enforcement agency that is established for the purpose of reporting or preventing criminal activity. 2. The person is a criminal street gang member. Threatening or intimidating pursuant to subsection A, paragraph 3 is a class 4 felony	**Min.**	OSS 1-4 days Student Conference Parent Contact	OSS 1-4 days Student Conference Parent Contact	OSS 1-4 days Student Conference Parent Contact
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
***Tobacco Violation**	The possession, use, distribution or sale of tobacco or tobacco-like products (including, but not limited to, e-cigarettes) on school grounds, at school-sponsored events or on school- sponsored transportation. **A.R.S. §36-798.03.** A person, who knowingly sells, gives or furnishes a tobacco product, a vapor product or any instrument or paraphernalia that is solely designed for the smoking or ingestion of tobacco or shisha, including a hookah or water pipe, to a minor is guilty of a petty offense. **A.R.S. §13-3622.**	**Min.**	ISS/OSS 1-4 days and referral to School Resource Officer	ISS/OSS 1-4 days and referral to School Resource Officer	ISS/OSS 1-4 days and referral to School Resource Officer
		Max.	OSS 5-9 days and referral to School Resource Officer	OSS 5-9 days and referral to School Resource Officer	OSS 5-9 days and referral to School Resource Officer
Trespassing	Includes the unauthorized presence of an individual on school property, including presence in an area closed to that individual. In addition, "trespassing" includes: A. The unauthorized presence of a Scottsdale student on a campus other than his or her own; B. The unauthorized presence on campus of a student during a period in which the student is serving an out-of-school suspension or has been expelled; The presence on campus without a visitor's pass of a student who has withdrawn from a Scottsdale Unified School District School.	**Min.**	Student Conference and Parent Contact	Student Conference and Parent Contact	Student Conference and Parent Contact
		Max.	OSS 3-5 days	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
***Vandalism of School Property**	Willful destruction or defacement of school property. ***Note:*** *Ref Pg. 63 (Parent Liability) A.R.S. 15-842 (B)*	**Min.**	Student Conference and Parent Contact	Student Conference and Parent Contact ISS/OSS 1-4 days	Student Conference and Parent Contact ISS/OSS 1-4 days
		Max.	ISS/OSS 3-5 days	ISS/OSS 5-9 days	ISS/OSS 5-9 days

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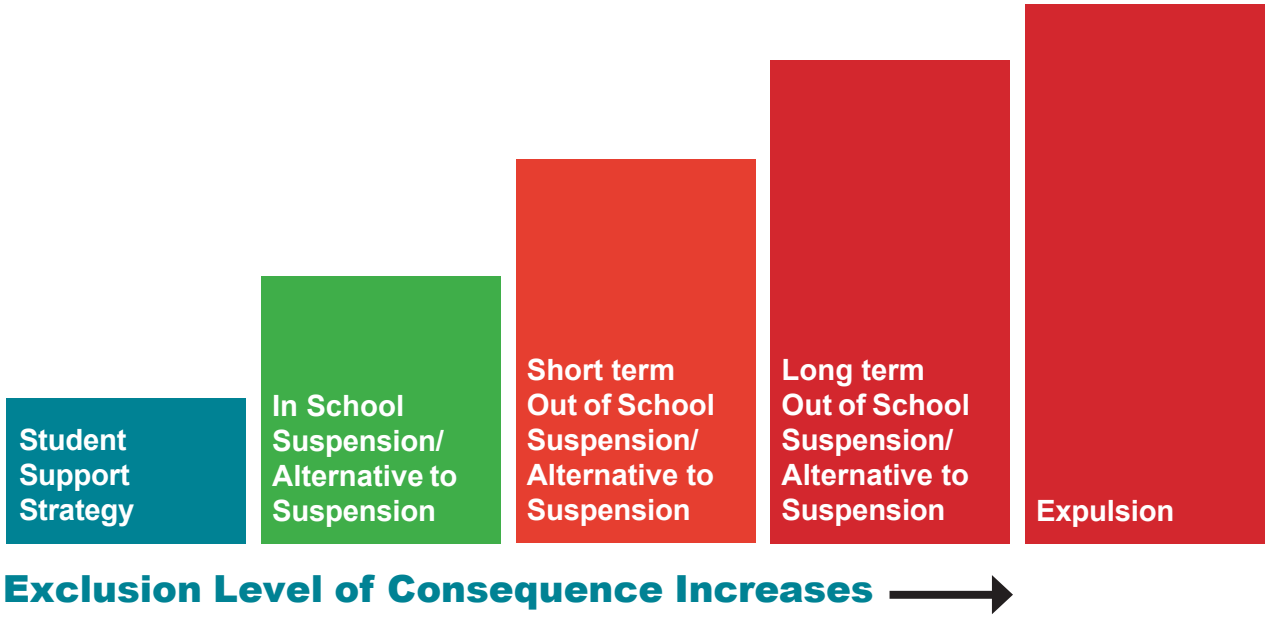
ARTICLE C: SUSPENSION AND APPEAL PROCEDURE

The Governing Board regards the use of out-of-school suspension or expulsion as an extraordinary step, which shall be utilized only when other means of bringing acceptable behavior have failed, or the nature of the offense is so serious it endangers the health, welfare, or safety of other students or school personnel.
Administration shall first attempt to address issues with:

1. reteach the proper expectation
2. a phone call home
3. student conferences and/or intervention or mediation
4. loss of privileges
5. detentions
6. behavior contracts/behavior management plan
7. In-School Suspension (May not be available at all schools)
8. Alternative to Suspension Program (if applicable)



Out of school suspension shall be a last resort when strategies from the list above have been implemented and the behaviors do not improve or unless the infraction poses a threat to the safety of any student, the campus in general, or the student him/herself.

1. AUTHORITY TO SUSPEND

A. A principal or designee has authority to impose a short-term suspension, following appropriate due process. A principal or designee also has authority to recommend to the Director of Support Services that a long-term suspension be imposed.

B. The Director of Support Services has authority to impose a long-term suspension, following appropriate due process and subject, upon request, to review by an independent hearing officer and the Governing Board. The Director of Support Services also has authority to re-assign students to an alternative educational program in place of a long-term suspension.

ARTICLE C: SUSPENSION AND APPEAL PROCEDURE

1. SHORT-TERM SUSPENSION PROCEDURES

A. Before imposing a short-term suspension, the principal or designee will inform the student of the alleged violation. If the student denies the allegation, the principal or designee will explain the evidence against the student and give the student an opportunity to present his or her side of the story. If a student's presence endangers persons or property, or otherwise threatens disruption of the academic process, the student may immediately be removed from school, with the above procedure to be implemented following as soon as practicable. There is no legal right to appeal a short-term suspension.

B. If a decision is made to suspend, the principal or designee will inform the student of the suspension, including the length of the suspension and the conditions applicable to the suspension. (Form HMES-208 Student Suspension Notification). Before returning to school, the student will be required to meet with the principal or designee and sign a readmission contract.

2. ALTERNATIVE TO SUSPENSION PROGRAM

A. A student who would otherwise be subject to a suspension, and who meets the District's requirements for participation, may participate in an alternative to suspension program in place of serving a suspension.

B. Students are eligible for participation in the alternative to suspension program if the following requirements are met:

1. No additional disciplinary action (i.e., long-term suspension, expulsion) is pending or contemplated in conjunction with the misconduct.

2. The suspension was not due to (a) fighting or violent behavior; (b) threatening an educational institution; (c) sale, use or possession of weapons, firearms, explosives, or dangerous instruments; (d) possessing, using, distributing, or being under the influence of drugs or alcohol; (e) making a bomb threat, or; (f) engaging in arson.

3. The student has not served more than one short-term suspension or alternative to suspension during the current year.

4. The student has admitted to and taken responsibility for the misconduct precipitating the short-term suspension in a written statement signed by the student and attested to by the student's parent or guardian.

5. The student and parent or guardian have received a written admonition that the suspension as originally determined will be imposed summarily and in its entirety should the student violate the conditions or requirements of the alternative to suspension program.

6. The parent or guardian agrees to participate by (a) providing transportation as necessary to and from the program location; (b) furnishing pre-packaged meals or purchasing it for the student, and; (c) establishing and monitoring, in consultation with the school, a supervisory routine limiting the student's contact to that which is necessary with other students and friends during the program.

C. Students participating in the alternative to suspension program may be transferred to a location on school premises that is isolated from other pupils or transferred to a location that is not on school premises. The alternative to suspension program shall be discipline intensive and require academic work, and may require community service, grounds keeping and litter control, parent supervision, and evaluation or other appropriate activities. Within these parameters, and those listed in Board Policy JKD (available upon request at any school or the Superintendent's office), the protocols for implementation of the alternative to suspension program may be established by the principal or designee.

ARTICLE C: SUSPENSION AND APPEAL PROCEDURE

1. ALTERNATIVE EDUCATIONAL PROGRAM

A. The Director of Support Services may, pursuant to the procedures set forth below, reassign a student to an alternative educational program if the Director of Support Services finds that good cause exists for a long-term suspension.

B. The District may also reassign a student to an alternative educational program if the student refuses to comply with the rules, refuses to pursue the required course of study or refuses to submit to the authority of teachers, administrators or the Governing Board.

C. Upon referral to an alternative educational program after the 20th day of either first or second semester, student may be required to successfully complete one full semester beyond the semester of enrollment prior to returning to the home school.

2. LONG-TERM SUSPENSION PROCEDURES

A. In addition to imposing a short-term suspension, the principal or a designee may recommend that a long-term suspension be imposed. The Director of Support Services has the authority to impose a long-term suspension, following appropriate due process.

B. Notice shall be given to the student and parent that the principal or a designee is recommending to the Director of Support Services that the student be suspended for nine school days or more. The student and parent may request a meeting with the Director of Support Services to discuss the situation in an informal setting. Any such request must be made in writing to the Director of Support Services within two school days after receiving notice that the principal has recommended long-term suspension.

C. The Director of Support Services will determine (after meeting with the student and parent, if requested) whether a long-term suspension should be imposed or, if good cause exists for a long-term suspension, whether the student should be assigned to an alternative educational program of the District in place of long-term suspension.

D. If a student is assigned to an alternative educational program in place of long-term suspension, there is no right to a formal hearing. If the Director of Support Services imposes a long-term suspension, a formal disciplinary hearing may be requested by the parent. Any such request must be made in writing to the Director of Support Services within two school days after notification that a long-term suspension has been imposed.

E. If a formal disciplinary hearing is requested, an appointed hearing officer will hold the hearing at the District level. The parent and student shall be given written notice of the time and place for the hearing at least five school days before the hearing. The hearing officer shall deliver his or her written decision to the Governing Board within five school days of the hearing.

3. RECORDS AND REPORTS

A. Documentation shall be sent to the student's parents, or to an adult student, stating the reason(s) for the length of suspension, where appropriate.

B. Counting Suspension Days: Suspension days will be counted starting on the day the student is denied participation in school activities.

1. The day the student is removed from school should be counted as a day of suspension, providing he/she was denied class participation for more than one-half of his/her scheduled classes.

2. Times when school is not officially scheduled are not to be counted as part of the suspension.

ARTICLE D: EXPULSION AND APPEAL PROCEDURE

Expulsion is the permanent withdrawal of the privilege of attending a school unless the Governing Board reinstates the privilege of attending school [A.R.S. §15-840(1)]. Administration may deny attendance to any school function on any school campus in the Scottsdale Unified School District, or at any school-sponsored activity during the time of the expulsion. Expulsion is an extremely serious sanction that may be imposed only by the Governing Board [A.R.S. §15-342(1)].

1. AUTHORITY TO EXPEL

The Governing Board may expel a student for misconduct [A.R.S. §15-342(1)]. Expulsion proceedings may be initiated by the principal or designee under any the following circumstances:

A. When repeated discipline for the same or similar infractions fails to correct the student's behavior. Such behavior includes, without limitation, continued open defiance of authority, or continued disruptive or disorderly behavior [A.R.S. §15-841(B)].

B. When the student's initial violation has been so severe as to warrant such action. Such violations may include, without limitation, use or possession of a gun, or violent behavior that includes use or display of a dangerous instrument or a deadly weapon as defined in A.R.S. §13-105 [A.R.S. §15-841(B)].

C. When the health, safety, welfare, or educational opportunities of other members of the school community are affected by the student's behavior. Such behavior includes, without limitation, threatening an educational institution as defined in A.R.S. §13-2911, or possessing, using, distributing, or being under the influence of drugs or alcohol [A.R.S. §15-841(B), (H)].

D. When the student is excessively absent and has reached the age or completed the grade after which school attendance is not required by statute [A.R.S. §15-841(B)].

E. When the District otherwise deems expulsion appropriate, as specified in Board Policies or the Uniform Code of Student Conduct [A.R.S. §15-841(B)].

2. PROCEDURE FOR EXPULSION

FOR ALL REGULAR EDUCATION STUDENTS:
The law requires that certain procedural rights be recognized prior to any expulsion. The District has adopted the following steps to ensure compliance with the due process rights of students who are subject to expulsion.

STEP 1 (INFORMAL HEARING):

When there is an accusation of wrongdoing or evidence of alleged misconduct, the student will be granted an informal hearing with the school administration. The administration will give the student oral or written notice of the alleged misconduct. If the student denies the charges, the administration will explain the evidence that it has of the alleged misconduct and will give the student an opportunity to explain his/her side of the story. The administration will make reasonable efforts to verify all facts and statements prior to making a judgment.

STEP 2 (TEMPORARY SUSPENSION PENDING EXPULSION HEARING):

If, based on the informal hearing, the student appears to be guilty of the misconduct, the administration may suspend the student, for up to nine days (school days) pending a formal expulsion hearing.

If the student presents a danger to himself/herself, to others, or to school property, the administration may immediately suspend the student, with the necessary notice and informal hearing requirements to follow as soon as practicable.

STEP 3 (PARENT NOTIFICATION/RELEASE OF STUDENT):

Before the student is allowed to leave campus, the principal or designee will (a) notify a parent of the terms of the suspension (including the fact that expulsion is being recommended), (b) explain the reasons for the suspension

and recommendation for expulsion, and (c) request a student/parent conference with the principal or designee. If the principal or designee is unable to locate a parent, the student will be isolated until the regular dismissal time and then given a written notification, including the above-described information, to deliver to the parent. In either case, a copy of the written notification will also be mailed to the parent.

STEP 4 (STUDENT/PARENT CONFERENCES):

The principal or designee will convene a student/parent conference to review the incident with the parent. During the student/parent conference, the principal or designee will review the expulsion procedures and the student's due process rights, as set forth in the Uniform Code of Conduct.

STEP 5 (FORMAL LETTER REGARDING EXPULSION PROCEDURE):

A formal letter from the Director of Support Services will be hand delivered by school staff to the parent at least five school days prior to the formal expulsion hearing. The parent will sign for receipt of the letter. If the parent cannot be located for hand delivery, the letter will be sent by certified mail with return receipt requested. The letter will contain the following:

A. A statement of charges and copies of the policy (policies), rule(s), or regulation(s) violated.

B. The date, time, and place of the hearing.

C. If a hearing officer has been appointed, the name of the hearing officer and how the hearing officer may be contacted, or a statement that the Governing Board will preside at the hearing.

D. Notification that the student may be represented by counsel at the student's expense. If the student intends to exercise this option, the District must be notified in writing at least three days prior to the hearing. If counsel is present without notification, the expulsion hearing will be rescheduled, at the District's discretion.

E. Notification that the hearing will be a closed hearing (i.e., the public will not be present) unless the parent requests the hearing be open to the public pursuant to A.R.S. §15-843(G).

F. Notification that the student may present witnesses, written statements, and other evidence at the hearing. If the student intends to exercise this option, the student must provide the District with a witness list and copies of all written statements at least three days prior to the hearing.

G. Notification that the student may cross-examine witnesses presented on behalf of the District, and that the District may cross-examine witnesses presented on behalf of the student.

H. Notification that the hearing officer or Governing Board will be asked to consider expulsion of the student.

I. A list of the District's potential witnesses and, unless such information is included in a witness statement or incident report provided to the student, a brief description of the information to which the witness will testify.

J. A copy of A.R.S. §15-840 and §15-843, District Policy, and Code of Conduct provisions related to expulsion and appeal procedures.

STEP 6 (FORMAL EXPULSION HEARING):

The Governing Board has decided, pursuant to A.R.S. §15-843, that expulsion hearings will generally be conducted by a hearing officer, selected by the District, who shall hear the evidence, prepare a record and bring a recommendation to the Governing Board. A formal expulsion hearing must comply with the following requirements:

General Requirements

A. The hearing will be a closed hearing (i.e., the public will not be present) unless the parent requests the hearing be open to the public.

A. The hearing will be recorded by tape or by an official record kept in some other appropriate manner.

B. The following participants may be present, as applicable: the hearing officer, the superintendent or designee, principal, assistant principal, school staff, school resource officer, parent/guardian, student, other witnesses, attorney for the District, and attorney for the student.

C. The burden of proof lies with the District.

Presentation by the Administration

A. The District (through counsel, if present) will be given an opportunity to present its case through presentation of witnesses and introduction of documentary or other evidence.

B. The student (through counsel, if present) will be given an opportunity to cross-examine the District's witnesses.

C. The hearing officer will be given an opportunity to ask questions of the District's witnesses.

Presentation by the Student

A. The student (through counsel, if present) will be given an opportunity to respond to the District's presentation through presentation of witnesses and introduction of documents or other evidence.

B. The District (through counsel, if present) will be given an opportunity to cross-examine the student's witnesses.

C. The hearing officer will be given an opportunity to ask questions of the student's witnesses.

STEP 7 (DISPOSITION):

Upon conclusion of the hearing, the hearing officer will consider the matter outside the presence of the student, his or her parent(s), or any other person who participated in the hearing. The hearing officer will prepare a record and bring a written recommendation to the Governing Board within five school days after the hearing. If the time of suspension exceeds the initial nine days, the student will be referred for alternative educational services, pending the final decision of the Hearing Officer and/or the Governing Board.

The administration will comply with the hearing officer's recommendation pending final consideration by the Governing Board. However, if the hearing officer recommends expulsion, the District shall provide alternative educational services pending final consideration by the Governing Board.

A formal letter will be mailed to the parent, indicating the recommendation that will be made to the Governing Board. In addition, the letter should explain the following:

A. The student may contest the hearing officer's recommendation before the Governing Board;

B. Any appeal must be submitted to the District in writing within 5 school days after receipt of the hearing officer's recommendation and at least twenty-four hours before the meeting at which the Governing Board considers the hearing officer's recommendation;

C. The written appeal must set forth any objections the student wishes to raise, must designate a spokesperson for the student, and must indicate whether an open hearing is requested;

D. The spokesperson will be given an opportunity to address the Governing Board on appeal;

E. The Governing Board may accept the hearing officer's recommendation or reject the recommendation and impose a different disciplinary action, including assignment to an alternative educational program. The Governing Board may grant a new hearing, take the matter under advisement, or take any further action deemed necessary. If the

Governing Board decides to expel the student, the expulsion will become effective the day after the Governing Board's decision; and

A. The decision of the Governing Board is final.

STEP 8 (REVIEW BY THE GOVERNING BOARD):

If the student does not wish to contest the hearing officer's recommendation, the recommendation will be considered at the next regularly scheduled meeting of the Governing Board. Parents of the student are welcome to attend the Governing Board meeting whether or not they object to the recommendation of the hearing officer. However, a parent who has filed no written objections to the hearing officer's recommendation will not be allowed to speak to the Governing Board during the meeting, except where, at the Governing Board's sole discretion, the circumstances warrant otherwise.

If the student wishes to contest the hearing officer's recommendation before the Governing Board, the following procedures will apply:

A. The parent must notify the District in writing of (I) his or her intent to contest the hearing officer's recommendation, (2) any objections he or she wishes to raise, (3) whether he or she wishes the review hearing to be open to the public. The parent must provide such notification to the District within five days of receiving the hearing officer's recommendation.

B. Upon receipt of such notification, the District will schedule a review hearing before the Governing Board. The District will notify the parent of the time and place of the review hearing at least five days prior to the review hearing.

C. At the review hearing, the Governing Board will consider the hearing officer's recommendation during executive session unless the parent requests that the hearing be open to the public.

D. The Governing Board may uphold, modify, or reject the conclusions or recommendation of a hearing officer. While the Governing Board will generally be bound by the findings of fact, it may reject findings of fact where there is no substantial evidence to support them. The Governing Board expressly reserves the right to reach its own conclusions based upon the findings of fact. The Governing Board will render the final decision relative to any recommendation of expulsion.

E. Written confirmation of the Governing Board's decision shall be mailed to the student's parent within two days after the Governing Board's meeting.

F. The decision of the Governing Board is final

FOR STUDENTS PLACED IN SPECIAL EDUCATION PROGRAMS:

1. Change in Special Education placement procedures must include: (A) Written notice to parent/guardian, (B) review of placement, including the opportunity for a Special Education due process hearing with the Multidisciplinary Team, and (C) Provision for a continuum of alternative placements, including a provision of a free, appropriate education in the least restrictive environment.

2. Procedural and due process rights required by the Individuals with Disabilities Act (IDEA) and Section 504 of the Rehabilitation Act of 1973 are to be followed.

FOR STUDENTS PROTECTED UNDER SECTION 504 OF THE REHABILITATION ACT OF 1973:

Removal from school for ten (10) or more consecutive school days constitutes a ''significant change in placement". Cumulative removals of more than ten school days within the school year may also constitute a similar change in placement. Both actions trigger procedural safeguards including the right to remain in the current educational

placement, appeals, and the need for a District reevaluation to determine if there is nexus between the student's disability and the alleged misconduct.

If the reevaluation team determines the misconduct is a manifestation of the student's disability, the student may not be suspended or expelled and the team must continue with its evaluation to determine whether the current educational placement is appropriate.

If no causation is found, the student may be excluded from school on the same basis as a non-disabled student. The District need not continue to provide educational services during the period of long-term suspension or expulsion. The school must provide the parent or guardian with prior written notice of the District's intended action. Section 504(a) of the American with Disabilities Act amended Section 504 to allow schools to take disciplinary action against disabled students to the same extent as action taken against regular education students in areas pertaining to the use or possession of illegal drugs or alcohol, or possession of a weapon.

1. READMISSION FOLLOWING EXPULSION

A student expelled from the District may request readmission by making a written application to the Governing Board pursuant to Board Policy. Readmission is at the discretion of the Governing Board and will not be granted or considered until at least one calendar year has passed since the expulsion became effective [Board Policy JKE].

ARTICLE E: ATTENDANCE REGULATIONS

Arizona law requires students between the ages of six and sixteen to attend a school. The right and privilege of attending public school carries with it certain responsibilities on the part of both parents and students.

School attendance is ultimately the responsibility of the student and his/her family. Students should be absent from school only when absolutely necessary, as much of the classroom activity cannot be made up; the benefit of lectures, discussion and participation is lost forever to those who are absent. It is the responsibility of school personnel to keep the parents informed of actions that might have a detrimental effect upon the educational growth of the student. Regular attendance is the key to much of the success a student may gain from his/her educational program.

1. DEFINITIONS AND PROCEDURES

A. Absence (Elementary, K-8 and Middle School) - is defined as an elementary and K-8 student not being present in his/her assigned classroom during the assigned period or an elementary student missing 25% or more of the school day.

B. Absence (High School Students) - is defined as missing one period during the school day. No absence will be excused without the student first checking in or out at the school office. Written verification of an appointment (i.e., medical, dental, or legal) must be provided upon return to campus..

C. Emancipated Students - Eighteen-year-old students may assume the responsibility of notifying the school of an absence with approval of the administration and appropriate emancipation documentation.

D. Excessive Absences - Per A.R.S. §15-803(B), absences may be considered excessive when the number of absent days (excused and unexcused absences combined) exceeds ten percent (18 days) of the number of required attendance days prescribed in A.R.S. §15-802(B)(1). Students absent for ten consecutive school days (or in the case of Scottsdale Online Learning- 10 consecutive days with failure to login and complete work), except for excused absences identified herein, shall be withdrawn from the school effective the last day of attendance or reported excused absence, pursuant to A.R.S. 15-901(A). The governing board may take disciplinary action that may lead to expulsion pursuant to A.R.S. 15-342. Pursuant to A.R.S. 15-805(B)(1) at attendance officer may issue a citation to the guardian or the child that is in violation of A.R.S. 15-803.

E. Excused Absence - Pursuant to A.R.S. 15-901(A)(1), excused absences are identified by the Arizona Department of Education (ADE). ADE defines an excused absence as an absence due to illness, doctor appointment, mental or behavioral health, homelessness, bereavement, family emergencies, time necessary to process for the armed forces, out-of-school suspensions, religious holidays and pre-arranged family vacation. No student may be excused from class by a parent/guardian and still remain on campus. ARS 15-807(B) states that in order for absences to be counted as excused, the Elementary, K-8, Middle-, or High school must be notified in advance or by the end of the school day of any absence by the parent or other person who has custody of the student. When excusing an absence the parent or other person who has custody of the student is expected to verify the reason for and date(s) of the absence. The school will document the date, reason, and person reporting the absence. If an absence occurs relating to any other term or condition that is not specifically designated herein, the absence shall be counted as unexcused. When a parent wishes to have a student excused before the close of the school day, the attendance office must be informed prior to the student's departure, and administrator or designee must provide permission. The parent/student must sign out at the front desk with exact time in order for the leave to be excused.

F. Habitually Truant - means a child between the ages of six and sixteen who is truant for at least five days during a single school year (A.R.S. §15-803(C)(1)). Arizona law states that it is unlawful for any child between the ages of six and sixteen to fail to attend school during the hours school is in session, unless exempt under section 15-803(A). If a parent fails to ensure that the child attends school, the law states that they are guilty of a Class III (3) Misdemeanor (A.R.S. §15-802(E)).

A. Religious Purposes - Pursuant to A.R.S., 15-806(A) Students may be granted release time to attend religion classes near the school campus. Specific to religious purposes, pursuant to A.R.S. 15-806(A)(1-2), these conditions will include a written consent from the person who has legal custody of the student and said religious exercises must take place at a suitable place away from school property.

B. Tardy (Elementary, K-8 and Middle School) - is defined as arriving after the start of the regular school day at the assigned location ready for classroom activity. The teacher must admit all tardy students upon arrival to class. If a middle school or elementary student misses more than 25% of the day, that student will be assigned an absence.

C. Tardy (High School) - is defined as arriving after the start of the class period at the assigned location ready for classroom activity. The teacher must admit all tardy students upon arrival to class. If a high school student is more than ten minutes late to class that student will be assigned an absence.

D. Truant - is an unexcused absence for at least one class period during the day (A.R.S. §15-803(C)(2)).

E. Unexcused Absence - is any absence from one or more class periods, which has not been excused by a parent or guardian. Students absent for 10 (ten) consecutive days, except for excused absences identified herein, shall be withdrawn from the school effective the last day of attendance or reported unexcused absence, pursuant to A.R.S. 15-901(a).

F. Withdrawals - includes students formally withdrawn from schools and students absent for ten consecutive school days, except for excused absences as identified by the department of education. For computation purposes, the effective date of withdrawal shall be retroactive to the last day of actual attendance or excused absence of the student.mputation purposes, the effective date of withdrawal shall be retroactive to the last day of actual attendance of the student.

2. DISCIPLINE

The District will publish attendance and/or excessive tardiness and discipline procedures and disseminate them to all students and parents. Unexcused absences and/or excessive tardiness may result in the student receiving disciplinary action. Actions taken by site may include, but are not limited to:

1. Phone and/or written notification to parents.
2. Exclusion from extra-curricular activities, i.e., dances, sports, clubs.
3. School detentions, i.e., morning, lunch, after school, and/or Saturday.
4. In-school suspension.
5. Loss of credit and/or audit status.
6. Withdrawal and re-enrollment process through each school office.
7. Citation by a law enforcement officer in accordance with Arizona truancy laws.
8. Alternative placement, adjustment of student schedule.

It is unlawful under Arizona law for any child who is between six and sixteen years of age to fail to attend school during the hours school is in session. If a child is habitually truant or has excessive absences, the parent and/or child could be issued a citation for a violation of A.R.S. §15-802 and/or §15-803. The citation could require that both you and your child appear in court regarding this matter.

ARTICLE E: ATTENDANCE REGULATIONS

1. MAKE-UP WORK

We believe that student attendance in class is critical to high levels of student learning. Thus, any absence from class has natural consequences and some (unexcused absences/truancies) have behavioral consequences.
A student who is absent for the following reasons will be permitted the same amount of time he/she was absent to complete make-up work. All work must be made up; all work will be assessed on the quality of work. Full credit will be given if full credit is earned based upon the content and standards being assessed. The reasons that qualify for make-up work are:

A. Work missed due to excused absence

B. Work missed due to suspension

2. GRADES

Grades in a course will not be reduced, per se, by excused absences from the class. However, since absences will affect the learning of the student, the interaction during class discussions, and the learning of the ability to function successfully in the business world, the overall evaluation of the student may be affected adversely. The absent student is expected to make up his/her schoolwork. Please note that tardiness may affect classroom participation credit.

HIGH SCHOOL - ABSENCES

Number of Absences per Class Period	First Semester	Second Semester
Any unexcused absence	- Auto call to parents.	- Auto call to parents.
5 total absences in a single semester	- Parent notification. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.	- Parent notification. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
10 total absences in a single semester	- Parent notification and administrator contact. Completion of loss of credit contract. - Student dropped from class (es) and/or placed on audit status for the remainder of the semester. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.	- Parent notification and administrator contact. - Completion of loss of credit contract. - Student dropped from class (es) and/or placed on audit status for the remainder of the semester. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
Total Absences During the Entire School Year		
15 total absences per year	- Parent notification and administrator contact. - Notification of state law. - Students with excessive excused absences may be required to provide medical documentation to remain in class and excuse any further absences.	
18 total absences per year	- Parent notification and administrator contact. - Refer to law enforcement for citation. - Withdrawal and re-enrollment process through the student's corresponding school. - Possible placement in alternative educational environment. - Students with excessive excused absences will be required to provide medical documentation to remain in class and excuse any further absences.	

ARTICLE E: ATTENDANCE REGULATIONS

HIGH SCHOOL - TARDIES

Number of Unexcused Tardies Per Class Period	First Semester	Second Semester
1 to 4 tardies	- Teacher intervention.	- Auto call to parents. - Teacher intervention.
5 total tardies per class in a single semester	- Parent notification. - Disciplinary consequence, such as lunch detention, etc., may occur. - Notification of future consequences.	- Parent notification. - Disciplinary consequence, such as lunch detention, etc., may occur. - Notification of future consequences.
10 total tardies per class in a single semester	- Parent notification. - Completion of loss of credit contract. - Student may be dropped from class (es) and/or placed on audit status for the remainder of the semester.	- Parent notification. - Completion of loss of credit contract. - Student may be dropped from class (es) and/or placed on audit status for the remainder of the semester.
Total Unexcused Tardies Per Semester		
15 total absences per year	- Parent notification and administrator contact. - Notification of state law. - Students with excessive excused absences may be required to provide medical documentation to remain in class and excuse any further absences.	
18 total absences per year	- Parent notification. - Disciplinary consequence, such as lunch detention, in-school suspension, etc., may occur. - Possible referral to law enforcement for citation.	

MIDDLE SCHOOL - ABSENCES

Number of Absences per Class Period	First Semester	Second Semester
Any unexcused absence	- Auto call to parents.	- Auto call to parents.
5 total absences in a single semester	- Parent notification. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.	- Parent notification. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
10 total absences in a single semester	- Parent notification and administrator contact. - Completion of loss of credit contract. - Student dropped from class (es) and/or placed on audit status for the remainder of the semester. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.	- Parent notification and administrator contact. Completion of loss of credit contract. Student dropped from class (es) and/or placed on audit status for the remainder of the semester. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
Total Absences During the Entire School Year		
15 total absences per year	- Parent notification and administrator contact. - Notification of state law. - Students with excessive excused absences may be required to provide medical documentation to remain in class and excuse any further absences.	
18 total absences per year	- Parent notification and administrator contact. - Refer to law enforcement for citation. - Withdrawal and re-enrollment process through the student's corresponding school. - Possible placement in alternative educational environment. Students with excessive excused absences will be required to provide medical documentation to remain in class and excuse any further absences.	

ARTICLE E: ATTENDANCE REGULATIONS

MIDDLE SCHOOL - TARDIES

Number of Unexcused Tardies Per Class Period	First Semester	Second Semester
1 to 4	- Teacher intervention.	- Auto call to parents.
5 total tardies per class in a single semester	- Parent notification. - Disciplinary consequence, such as lunch detention, etc., may occur. - Notification of future consequences.	- Parent notification. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
10 total tardies per class in a single semester	- Parent notification. - Disciplinary consequence, such as lunch detention, etc., may occur. - Possible in-school suspension.	- Parent notification. - Disciplinary consequence such as lunch detention, etc., may occur. - Possible in-school suspension.
Total Unexcused Tardies Per Semester		
15 total absences per year	- Parent notification. - Disciplinary consequence, such as lunch detention, in-school suspension, etc., may occur. - Notification of future consequences.	
18 total absences per year	- Parent notification. - Disciplinary consequence, such as lunch detention, in-school suspension, etc., may occur. - Possible referral to law enforcement for citation.	

ELEMENTARY (K-8) SCHOOL - ABSENCES

Number of Absences	Consequence
Any unexcused absence	- Auto call to parents.
5 total absences	- Parent notification. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
10 total absences	- Parent notification. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
15 total absences	- Parent notification and administrator contact. - If five or more are unexcused, then possible referral to SRO for habitual truancy. - Possible attendance contract.
18 total absences	- Parent notification and administrator contact. - Refer to law enforcement for citation. - Withdrawal and re-enrollment process. - Students with excessive excused absences will be required to provide medical documentation to remain in class and excuse any further absences.

ELEMENTARY (K-8) SCHOOL - TARDIES

Number of Tardies	Consequence
1 to 4	- Administrator discretion.
5	- Parent notification. - Disciplinary consequence, such as lunch detention, etc., may occur (administrator's discretion).
10	- Parent contact by administrator. - Disciplinary consequence, such as lunch detention, etc., may occur.
15	- Parent meeting. - Disciplinary consequence, such as lunch detention, etc., may occur. - Notification of future consequences.
18 (or above)	- Parent meeting. - Disciplinary consequence, such as lunch detention, etc., may occur. - Possible referral to law enforcement for citation.

ARTICLE E: ATTENDANCE REGULATIONS

1. COURSE WITHDRAWAL (PER RECORD KEEPING GUIDELINES/SUSD HIGH SCHOOL PLANNING GUIDE)

Students who withdraw from a course after the first quarter mid-grade of each semester will receive a WP (athletically eligible) or WF (athletically ineligible). Credit recovery courses (online CR courses) cannot be taken to replace a WP or WF on a transcript. WP and WF do not impact the student's grade point average. Students who withdraw from a course after quarter 1 and quarter 3 will receive a mark of F (athletically ineligible) on their transcript, regardless of the current grade in the course. This policy may be waived by administration where emergencies or legitimate education plans exist.

DEFINITION OF TERMS

A. Definition of People

Students	
Inactive student	A student who previously attended and graduated, dropped out, withdrew or was expelled
Other student	Student not enrolled at the school (this includes students currently enrolled at a different school)
Student not verified in SAIS	A student who is currently enrolled at the school, but does not yet have a known SAIS ID due to technological delay (Note: student must be verified at a later date)
Student verified in SAIS	A student who is currently enrolled at the school and has a known SAIS ID
Non-Students	
ADE	Arizona Department of Education
Administrator	School or District administrative personnel
Cafeteria Staff	School or District personnel employed to assist in the preparation and serving of meals at the school
General Public	All persons not otherwise herein defined as a student, employee, or member of the faculty or staff
Governing Board	Governing Board, Scottsdale Unified School District No. 48
Intervention Planning Team (IPT)	A collaborative problem solving and systematic process to address student academic and/or behavior needs Team may be comprised of Psychologist, Administrator, Counselor, Teacher, Parent(s)/Guardian(s)
Juvenile Probation Officer (JPO)	A court appointed juvenile probation officer assigned to school(s)
LEA	Local Education Agency
Maintenance Staff	School or District personnel responsible for the upkeep and repair of school or District property or grounds
Multi-Disciplinary Team	Team may be comprised of Psychologist, Administrator, Counselor, Teacher, Parent(s)/Guardian(s)
Nurse or other Health Care Professional	Medical personnel (includes RNs and Health Assistants)
Office Staff	School or District personnel who provide clerical or office support
Other	Defined by LEA
Parent or Guardian	A parent or guardian of a student at the school
School Counselor	A school or District employee who assists students with academic achievement, personal or social development, and career development (American School Counselor Association)
Security Personnel	Personnel who ensure the safety and security of the school district's buildings and their occupants
Social Worker	A school or District employee who can assist with individual counseling with students with mental health difficulties and meeting with parents, teachers and school support personnel (National Association of Social Workers)
School Psychologist	A school or District employee who supports students' ability to learn and teachers' ability to teach. They apply expertise in mental health, learning and behavior to help children and youth succeed academically, socially, behaviorally and emotionally (National Association of School Psychologists)

School Resource Officer (SRO)	A law enforcement officer with sworn authority to maintain public order and make arrests with an assignment to a school or schools within that district
Student Teacher	Personnel who assist the instructor in the classroom to fulfill course requirements (includes Interns)
Substitute Teacher	A teacher employed by the school or District to temporarily provide instruction to students
Teacher	A teacher employed by the school or District to provide instruction to students
Teacher's Aide	A school or District employee who assists the instructor at the school
Transportation Staff	District personnel responsible for the delivery of students to and from school and school-related events
Trespasser	Any person on school property during business or non-business school hours without permission from the school administration or District
Vendor	A business representative conducting business on school site
Visitor	A person authorized to be present on school grounds for legitimate purposes

A. Definition of Actions

A.R.S.	Arizona Revised Statute
Make-up work	1) Class work – work that is initiated or completed on the day of excused absence i.e.: lab, group assignment, etc. Alternative assignment may be given 2) Long Term Homework – long term work that has been assigned prior to the absence and the due date given at time of assignment; make-up will not be allowed unless there are extenuating circumstances with administrative approval 3) Daily Homework – homework assigned the day prior to the absence
No Action Taken	No action was taken by the LEA in response to the incident
Property	Real property, and the improvements thereupon, owned by Scottsdale Unified School District No. 48
Restorative Practices	Restorative Practices can be used by administrators and teachers to resolve problems between parties that have experienced harm. These practices focus on repairing the harm that has been done. This is a non-traditional way of dealing with problems between students, as well as between staff and students. The goal is for students to come to an understanding of the root cause of the problem and to talk about it with an administrator or teacher trained in using Restorative Practices. These practices have proven to reduce suspensions, expulsions, and repeat behavior between the parties involved. Restorative Practices can also be used in conjunction with traditional disciplinary consequences.
Actions Within Due Process The right to due process in disciplinary proceedings is applicable in all instances where the behavior of the student is being evaluated for possible suspension or expulsion. The student must always be treated with fundamental fairness, has a right to be fully informed about his/her alleged breach of behavior and must be provided with an opportunity to respond to such charges.	
Appeal Review	When an appeal under section 615(k)(3) of the IDEA has been requested by either the parent or the LEA, the state or LEA shall arrange for an expedited hearing, which shall occur within 20 school days of the date the hearing is requested and shall result in a determination within ten school days after the hearing. IDEA 2004 [615(k) (4) (B)].

Disciplinary Hearing	An official meeting that is held to gather facts about a disciplinary action imposed on a student. This hearing is often done with a designated disciplinary hearing committee, one or more hearing officers, or school board
Individualized Education Program (IEP) Team Meeting	The IDEA federal regulations mandate that certain disciplinary actions by schools trigger the need for an IEP team meeting when: • A student is suspended for more than ten consecutive or cumulative days in a school year; • A student is considered for expulsion; • The IDEA regulations are not fully included here, but in brief, they require that IEP team meetings held to address disciplinary issues must perform these tasks: » Review the child's IEP to determine if it contains all of the required parts. » Determine if the IEP is appropriate, given the child's behavioral needs. » If the IEP is not appropriate, the team must develop appropriate goals, objectives, a behavior intervention plan, and support services such as counseling, referral to area mental health services, or other appropriate service to address any deficient areas on the plan. » Determine if the educational setting is appropriate for the child. » Does he need a more structured environment, an alternative program, day treatment, or other program? If the setting is not appropriate, the team must provide an appropriate placement. » Determine if the child's behavior is related to the disability. If the child's behavior is related to the disability, schools are not to continue suspending or expelling the student without providing special education services that are required by the IEP. Instead, they must focus on providing an appropriate program to accommodate the disability. Schools are required to provide a full continuum of educational placements to meet a broad range of needs. Schools must ensure that regardless of suspensions or expulsions: • Special education students receive the same services that regular education students receive during suspension or expulsion; • Special education students receive services required by the IEP; and • Services are provided in appropriate settings. Special circumstances exist when students are disciplined for weapons, assault with serious bodily injury or drugs, and different rules will apply.
Manifestation Determination	Within 10 school days of any decision to change the placement of a child with a disability because of a violation of a code of student conduct, the LEA, the parent, and relevant members of the child's IEP team(as determined by the parent and the LEA) must review all relevant information in the student's file, including the child's IEP, any teacher observations, and any relevant information provided by the parents to determine**:** • If the conduct in question was caused by, or had a direct and substantial relationship to the child's disability; or • If the conduct in question was the direct result of the LEA's failure to implement the IEP per the Office of Special Education Programs (OSEP).

Placement Review Committee	**A.R.S. §15-841**. Responsibilities of pupils; expulsion; alternative education programs; community service; placement review committee. Each school shall establish a placement review committee to determine the placement of a pupil if a teacher refuses to readmit the pupil to the teacher's class and to make recommendations to the Governing Board regarding the readmission of expelled pupils. The process for determining the placement of a pupil in a new class or replacement in the existing class shall not exceed three business days from the date the pupil was first removed from the existing class. The principal shall not return a pupil to the classroom from which the pupil was removed without the teacher's consent unless the committee determines that the return of the pupil to that classroom is the best or only practicable alternative. The committee shall be composed of two teachers who are employed at the school and who are selected by the faculty members of the school and one administrator who is employed by the school and who is selected by the principal. The faculty members of the school shall select a third teacher to serve as an alternate member of the committee. If the teacher who refuses to readmit the pupil is a member of the committee, that teacher shall be excused from participating in the determination of the pupil's readmission and the alternate teacher member shall replace that teacher on the committee until the conclusion of all matters relating to that pupil's readmission.
Board Review	School boards have the right to review student disciplinary actions imposed by a disciplinary hearing committee.

Expulsion:

A.R.S. §15-840(1). "Expulsion" means the permanent withdrawal of the privilege of attending a school unless the Governing Board reinstates the privilege of attending the school.

A.R.S. §15-841. Responsibilities of pupils; expulsion; alternative education programs; community service; placement review committee.

A pupil may be expelled for continued open defiance of authority, continued disruptive or disorderly behavior, violent behavior that includes use or display of a dangerous instrument or a deadly weapon as defined in section 13-105, use or possession of a gun, or excessive absenteeism. A pupil may be expelled for excessive absenteeism only if the pupil has reached the age or completed the grade after which school attendance is not required as prescribed in section 15-802. A school district may expel pupils for actions other than those listed in this subsection, as the school district deems appropriate.

A school district or charter school shall expel from school for a period of not less than one year a pupil who is determined to have brought a firearm to a school within the jurisdiction of the school district or the charter school, except that the school district or charter school may modify this expulsion requirement for a pupil on a case by case basis. This subsection shall be construed consistently with the requirements of the Individuals with Disabilities Education Act (20 U.S.C. §§ 1400 - § 1420).

*Expulsion with Services	The student was expelled from and is no longer enrolled in his or her regular school setting. Arrangements made for the provision of educational services.
*Expulsion without Services	The student was expelled from and is no longer enrolled in his or her regular school setting. Total cessation of educational services.

Suspension:

A.R.S. §15-840(2). "Suspension" means the temporary withdrawal of the privilege of attending a school for a specified period of time.

DEFINITION OF TERMS

*In School Suspension (ISS)	Instances in which a child is temporarily removed from his/her regular classroom(s) for disciplinary purposes but remains under the direct supervision of school personnel. Direct supervision means school personnel are physically in the same location as students under their supervision. (OSEP)
*Out of School Suspension (OSS)	Instances in which a child is temporarily removed from his/her regular school for disciplinary purposes to another setting (e.g., home, behavior center). (OSEP)
*Long Term Suspension	Instances in which a child is temporarily removed from his/her regular school for disciplinary purposes for a period of eleven days or more. (OSEP)
*Short Term Suspension	Instances in which a child is temporarily removed from his/her regular class. This includes both removals in which no IEP services are provided because the removal is 10 days or less as well as removals in which the child continues to receive services according his or her IEP. (OSEP)
*Suspension With Services	Instances in which a child is suspended and receives educational services.
*Suspension Without Services	Instances in which a child is suspended and does not receive educational services.

ALTERNATIVE EDUCATIONAL PROGRAMS

The District may reassign students who refuse to comply with District rules, refuse to pursue a required course of study, or refuse to submit to the authority of teachers, administrators, or the Governing Board to an alternative educational program. A student may also be reassigned to an alternative educational program in lieu of long-term suspension or expulsion. A student who has been placed in an alternative program may not participate in any activities of the regular school program, including the regular summer school program, and/or return to the regular school program without the approval of the District.

ATHLETICS AND EXTRA-CURRICULAR ACTIVITIES

The District offers a wide range of opportunities for students to participate on athletic teams at the high school and middle school level. Several sports offer competition at the freshman, junior varsity, and varsity levels. The District is a member of the Arizona Interscholastic Association and has high schools in the 6A, 5A, 4A, and 3A Conferences. For information regarding athletic policies, eligibility, and participation requirements, refer to the Athletic Code of Conduct, which is provided to every athlete at the beginning of the sports season. The Athletic Code of Conduct is complete in its entirety, applies during the school year, and is not inclusive of summer activities sponsored by the District.

Eligibility Requirements

SUSD has established a 2.0 current GPA as the minimal standard for participation

- State No Pass/No Play requirements are determined by no F's at the most recent marking period
- Students below a 2.0 GPA or with an F in the current marking period will be ineligible for interscholastic competition
  - » Require frequent grade checks -minimum every 4.5 weeks to determine current GPA and any Fs
- If a student has below a 2.0 GPA and participates in AIA sanctioned athletics the following applies:
  - » Students are eligible to practice before the next grade check
  - » Students who become academically ineligible are ineligible for one week and can compete when the student presents evidence to administration that he/she has a current GPA of above a 2.0 and no Fs after that week as prescribed by the SUSD Grade Check Calendar
  - » Transfer students will be evaluated based on their current transfer grades
- The general standards shall apply to special education students, except that such eligibility shall be determined by a case-by-case basis in relationship to the respective students' Individual Education Program. The general standards shall apply to English language learners determined by a case-by-case basis in relationship to their Individual Language Learning Plan
- Students who withdraw from a brick and mortar or full semester eLearning course after the first quarter mid-grade of a semester will receive a mark of WP (athletically eligible) or WF (athletically ineligible SUSD HSPG)
- Students who withdraw from a brick and mortar or full semester eLearning course after quarter 1 and quarter 3 will receive a mark of F on their transcript, regardless of the current grade in the course (SUSD HSPG)

GENERAL INFORMATION

BIRTHDAY, OTHER CELEBRATION AND NUTRITIONAL STANDARDS

We understand that parents and friends like to celebrate various occasions. However, balloons, cakes, candy, flowers, etc. cause many distractions and are not allowed on the bus. These items are disruptive in the classroom and are a safety concern on the bus. If they are delivered, they will be kept in the office. This helps ensure that instructional time is protected and that all students are treated equally.

When planning snacks for classroom parties/celebrations, state law requires that no home-cooked food be distributed to students during school hours. This practice is intended to protect students from the spread of communicable disease. For parties/celebrations/activities during the school day that include food for students, foods must comply with the Arizona Nutrition Standards (Policy reference JL and regulation JL-R). For more detailed information on the state nutrition standards, please refer to www.ade.az.gov/health-nutrition.

BUS ASSIGNMENTS

Students may be required to carry and/or wear a school identification card issued by the administration in order to utilize busing services. Students not previously assigned to ride a particular bus must seek permission to do so. Parents must request such permission from school administration and/ or designee, who will communicate to the driver accordingly. Students shall observe District policies, regulations and rules, including those outlined in Article B, while being transported.

CHILD ABUSE REPORTING

Per state law, and Governing Board policy, school employees and certain volunteers who reasonably believe that a child has been the victim of neglect, abuse, and/or non-accidental injury, or sexual offenses must report suspected activity to Department of Child Safety (DCS) and/or local law enforcement agencies. Where a parent or guardian is the alleged abuser, school personnel are not to notify parent or guardian. DCS and law enforcement agencies are responsible for notification. Should the alleged perpetrator be other than a member of the child's family, volunteer and school personnel shall follow reasonable notification procedures.

Individuals required to report reasonable suspected abuse are protected by state law from civil or criminal liability.

Schools shall comply with request by DCS or the Police Department to question any child who is a suspected abuse victim. The investigating agency will determine whether school personnel should be with the child during questioning. The DCS worker and/or the police may interview the child and all other children residing in the home, on school grounds outside of the presence of school personnel. They may conduct interviews of the child without permission or notice to the parents where the suspected perpetrator is a family member. DCS also has the authority, upon written request, to obtain school records. (A.R.S. §13-3620).

CLOSED CAMPUS

A. Elementary and Middle Schools are closed campuses and use the "gate to gate" system from time of student drop off to pick up. Consequences for violation are determined by the administration in accordance with Article B, Behavior.

B. High School campuses are closed to all students throughout their scheduled day, including lunchtime. Students who need to leave for medical reasons or special circumstances must obtain administrative permission in advance and may not leave campus without a pass from the front office or the nurse's office.

The principal (or designee) will have discretion to grant students permission to leave the campus during the school day. Consequences for violation are determined by the administration in accordance with Article B, Behavior.

COMMUNICATION IN LANGUAGES OTHER THAN ENGLISH

Written translation services are provided upon request in Spanish. Oral interpretation services are provided upon request in Spanish by Translation Services and in languages other than Spanish through the Language Line. For further assistance, call 480-484-5060.

Español:

Este documento y otra información se encuentra disponible en la oficina de su escuela o en la página Web del Distrito www.susd.org. Si necesitan servicios de interpretación, por favor comuníquense con la oficina de su escuela o llamen a Servicios de Traducción al 480-484-5060.

Francés:

Si vous avez des questions sur des parties du présent document ou si vous désirez obtenir des explications verbales sur des renseignements concernant l'école, veuillez communiquer avec les services de traduction au 480-484-5060.

Árabe:

فضلك اتصل بـ Translation Services (خدمات الترجمة) على إذا كانت لديك أسئلة حول أقسام هذه الوثيقة أو إذا كنتَ بحاجة إلى ترجمة المعلومات المدرسية شفهيا، من الرقم: 480-484-5060.

Ruso:

Если у Вас возникли вопросы по поводу информации, указанной вразделах данного документа, или Вам необходим устный перевод информации о школе, обратитесь в Службу переводов по телефону 480-484-5060.

Farsi:

خدمات ترجمه به شماره داشتید و یا نیاز داشتید اطلاعات مربوط به مدرسه بصورت شفاهی در صورتی که در مورد قسمت های [مختلف] این سند پرسشی 480-484-5060 تماس بگیرید ترجمه شود، لطفا با مرکز

COMMUNITY SERVICE

It is the parent/guardian/student's responsibility to find appropriate Community Service opportunities when given as a school consequence. Student must receive school site administrative approval before beginning service and provide documentation of completed service to site administration.

COMPUTER AND NETWORK RESOURCES

Please refer to Technology and Network Resource Policy.

CURFEW

Both the City of Scottsdale and City of Phoenix have curfew hours of 10:00 p.m. to 5:00 a.m. for minors fifteen years old or under, and midnight to 5:00 a.m. for minors who are sixteen or seventeen years old.

CUSTODY

In cases where custody/visitation affects the school, the school shall follow the most recent court order on file with the school. It is the responsibility of the custodial parent, or parents having joint custody, to provide the school with the most recent court order.

DRESS CODE/GROOMING

Student dress and grooming are generally a matter of personal choice. Therefore, unless a campus has a school uniform, the District allows for students to express their individual style and preference as long as students' dress and/or grooming do not pose a risk to the health, safety, or general welfare of students, staff or others.

=The Scottsdale Unified School District's Guidelines for Dress are as follows:

Students Must Wear:

- Clothing that covers private body parts (genitals, buttocks, chest or nipples, and navels) with non-see-through material

- Tops
- Bottoms
- Shoes, must have hard soles **
- School IDs*

Students May Wear:

- Clothing with images/logos that adhere to dress code guidelines
- Dresses, pants, shorts, skirts, sweatpants
- Fitted or tight pants including skinny jeans, non-see-through leggings or yoga pants
- Hats and any other head coverings that allow the face and ears to be visible to school staff are allowable, except when asked for it to be removed by a staff member
- Hoodie sweatshirts (no hoods worn inside classrooms or buildings)
- Religious headwear and other religious head/face coverings
- Ripped jeans, as long as underwear is not exposed
- Strapless, sleeveless, or off-the-shoulder tops or dresses, if worn under a non-see-through garment
- Tank tops, including those with spaghetti straps

Students Cannot Wear:

- Gang-identifying clothing or tattoos
- Hate speech, profanity, nudity, or pornography
- Images or language depicting alcohol, drugs, drug paraphernalia (or any illegal item or activity)
- Violent images or language
- Visible underwear
- Some specialized programs may require specialized attire

Consequences for Violation:

In addition to any disciplinary action taken pursuant to Article B, students who do not adhere to the District's Guidelines for Dress may be asked to do any of the following: turn inappropriate clothing inside out, change into clothing that may be provided by the school, have other clothing brought to school, or remove the accessory.

* Items indicated with an asterisk may only apply to middle school and high school

** Elementary-aged students must wear closed-toe shoes

FOOD DELIVERY

Due to food allergies and safety concerns, food for students may only be delivered to the front office by a parent/guardian for their child only. Outside delivery services are not permitted at any time.

GRADUATION REQUIREMENTS

Please refer to High/Middle School Planning Guides for SUSD graduation requirements.

IDENTIFICATION CARDS

During the school day, all middle and high school students are required to wear their school identification in such a manner that it is clearly visible at all times. Elementary students may be required to wear their school identification at certain times throughout the day as deemed appropriate based on grade level, nature of the activity, etc. Students must surrender their school identification card to any school employee upon request. Students must be in possession of their identification card at all school related functions (e.g., dances, activities, and athletics.) School identification is required to ride the school bus, purchase food on a lunch account, check out a library book or access an account at the bookstore. Identification cards must be from the current school year and may not be altered.

Initial identification cards are provided free of charge. Students are required to pay $5.00 for any lost or damaged identification cards.

IMMUNIZATIONS

Arizona law requires documentary proof of immunity against certain childhood diseases for students attending Arizona schools for the first time. Students subject to this requirement who lack documentary proof of immunizations may enroll but not attend classes until proof is provided. If required, immunizations become due during attendance, failure to comply will result in exclusion from school, in accordance with state law. Exemption from immunization requirements for medical reasons or personal beliefs is available. A detailed list of immunizations required, or further immunization information is available from the school nurse or on the SUSD website (Student Services – Health Services). *See A.R.S. §15-872*.

INSURANCE

The District does not carry insurance for students' medical or dental costs if they are injured during school activities. Parents are responsible for their child's insurance. Insurance is required to participate in SUSD Athletics and options for purchase are available through SUSD.

An optional school day or 24-hour accident policy is available at school through a private agency. Like most insurance policies, there are some coverage limitations and exclusions. Information on the policy is available from each school's office. The schools issue these forms or provide contact information as a service to students and parents; the District has no other connection with the insurance company. Parents may pick up additional forms and purchase insurance at any time throughout the school year.

In an emergency, the school may call paramedics who may decide that an ambulance should be called. The parent pays for these services.

LAW ENFORCEMENT OFFICERS

If a law enforcement officer requests an interview with a student regarding a criminal investigation, the school administrator shall make reasonable efforts to notify the student's parent of the interview request, unless the law enforcement officer deems that notification would interfere with the investigation.

If the law enforcement officer refuses to allow notification prior to the interview, either the law enforcement officer or a representative of the District will notify the student's parent within a reasonable time after the interview. Unless otherwise directed by the law enforcement officer, a school official may be present during the interview.

If a student is taken into custody (arrested) while on campus, the arresting officer will be asked to notify the student's parent or legal guardian. In addition, the school administrator shall make reasonable efforts to ensure the student's parent has been notified that the student has been taken into custody. The personnel of the District shall cooperate

fully with law enforcement officers. When the arrest is formally made, the District and its employees no longer exercise jurisdiction over the student.

No student will be surrendered to a special police officer serving a private organization.

MEDICATIONS

When it is necessary for a student to take medication during school hours, school personnel may cooperate if the following conditions are met:

All Medications:

A. All medication administered by school personnel must be approved by the U.S. Food and Drug Administration (FDA). Information on dosage, side effects and contraindications of any medication or medicinal like substance, e.g., homeopathic and herbal remedies, given by school personnel must be readily available from a professionally acknowledged resource (Physician' Desk Reference or other U.S. published drug reference book, FDA or USP website, etc.).

B. A student with special written request of the physician, parent / guardian and student *(See "Special Consent to Carry Medication")* below shall keep all medication in secured storage in the Health Center with the exception of emergency medications that may be carried.

C. Before the end of the school year, the parent or legal guardian will be notified to pick up any leftover personal medication from the Health Center. Medications not returned to the family will be discarded in an appropriate and legal manner.

Prescription Medications:

A. No student will be given prescription medication except upon order from a U.S. licensed physician, nurse practitioner, physician assistant or dentist who has the responsibility for medical management of the student.

B. Written parent/guardian request and consent (Form HMES-503) is required for the administration of prescription medication. Parent/guardian consent must be renewed annually.

C. Prescription medication must be in the original container with a pharmacy label listing the student's name, medication name, dosage and the prescriber's name. (Prescriber's phone number must be on the label or on file in the Health Center)

D. A written order from the prescriber must accompany any change in medication dosage.

E. No sample medication will be given unless accompanied by a written note from the prescribing physician/ healthcare provider.

F. Administration of the medication during the school day must be medically necessary. The school nurse will determine the schedule for medication administration unless specified by the prescriber.

G. The parent/guardian assumes full responsibility for the supply, appropriate transportation and maintenance of prescription medication.

H. Reasonable efforts will be made to ensure that the student receives his/her medication. If a student persistently skips medication doses, the parent will be notified.

I. Pursuant to the Arizona Medical Marijuana Act, ARS 36-2801, et seq., the District will not refuse to enroll a student or otherwise penalize a student for being a medical marijuana cardholder unless failure to do so would cause the school to lose a monetary or licensing benefit under federal law or regulations. A student medical marijuana cardholder shall not possess or engage in the use of marijuana on District property, in a District vehicle, or at a District-sponsored event.

Special Consent to Carry and Self-Administer Medication:

A. In cases of life-saving medication when time is of the essence, particularly asthma inhalers and self-injectable epinephrine, students may be allowed to carry and self-administer such medication on school grounds and/or at school functions.

B. Such situations require a release form signed by the healthcare provider, the parent/guardian and the student.

C. The above policy shall not be interpreted to allow a student to carry any medication a physician and parent should decide upon. This policy gives authorization for life saving/emergency medication only.

D. Students who have obtained permission for self-administration as set forth above must take extraordinary precautions to keep the medication secure, and must not, under any circumstances, make available, provide, or give the medication to another person. The student must immediately report the theft or loss of any medication brought on campus.

Non-prescription/Over-the-Counter (OTC) Medications:

A. If a parent/guardian wishes administration of an OTC medication, the parent/guardian will complete a "Parent Request for Administration of Medication" Form HMES-503 and supply the school with the medication.

B. Parent-supplied OTC medication must meet the guidelines of paragraph A of "All Medications" set forth above and must be in its original, unopened container and labeled with the student's name.

C. Administration of parent-supplied medication will be at the discretion of the school nurse and at a dosage in keeping with manufacturer's recommendations.

PARENT LIABILITY

Under Arizona law, upon complaint of the Governing Board, the parents of minors who cut, deface, or otherwise damage any school property shall be liable for all damages caused by their children. *See A.R.S. § 15-842(B)*.

PAYMENT FOR OPTIONAL MATERIALS/SERVICES AND/OR LOST AND DAMAGED ITEMS

When students enroll in school, there are some required and non-required materials and services. Basic course materials, identification cards, and some lockers are required and are provided free of charge. No student will be denied an education because of an inability to pay these supplementary charges. Some lockers and locks, activity cards, parking permits, yearbooks, and supplemental course materials and services are not required and are not provided free of charge.

Students are required to pay for any lost or damaged textbooks, identification cards, and/or other course materials. If students do not meet their financial obligations for lost or damaged materials, they may not be allowed to participate in extracurricular activities or graduation exercises.

PESTICIDES

Schools periodically apply pesticides. Information concerning these applications may be obtained by calling your school office.

PRODUCT SALES

Groups wishing to sell products on campus must be officially recognized school organizations and must have the sale approved by the principal and student council. All funds collected must be deposited in the school's student funds account.

GENERAL INFORMATION

SCIENCE/PERFORMING ARTS/VISUAL ARTS SAFETY

The Scottsdale Unified School District prioritizes safety for all students while providing hands on technical experience in science, performing arts and visual arts. It is imperative that all students comply with Science and Fine Arts Safety Contracts based on Occupational Safety and Health Administration (OSHA) Safety Standards within the Science, Visual Arts Photography, Auditorium and Theater Labs. In general, all students must (a) follow the teacher's instructions and safety procedures on the operation of lighting equipment, power saws and any additional electrical machinery; (b)understand the labels and the information of chemicals based on Material Safety Data Sheets posted in the classrooms; (c) protect their eyes, face, and hands during equipment manipulation and labs; (d) conduct themselves in a responsible manner at all times in the classroom, labs and on the stage; (e) abide by all of the safety regulations specified by OSHA Safety Standards.

SCOOTERS, SKATEBOARDS, OR ROLLERBLADES/SHOES

In order to protect the safety and well-being of students, faculty and others, students are prohibited from using scooters, skateboards, roller blades/shoes, hover-boards or similar devices used as a means of transportation on campus at any time. Violation of this rule will subject the student to discipline as set forth in Article B.

SEARCH AND SEIZURE

School administrators have the right to search students and seize property when administrators have a reasonable suspicion that the search will turn up evidence that the student has violated or is in violation of either the law or the rules of the school. District Security staff may also conduct student searches at the direction of a school or district administrator. Any search will be reasonable in scope and not excessively intrusive on the student, considering the age, sex of the student, and nature of the infraction. Inspections of school-provided storage space are not subject to the reasonable suspicion standard, and canines and/or other detection resources may be used to assist in these inspections. Application of this policy in selected contexts is discussed below, Board Policy JIH.

1. School-Provided Storage Space: Students have no reasonable expectation of privacy in school-provided storage space, such as lockers and desks. Such storage space, which is provided only as a convenience to students, remains the property of the school and is subject to its control and supervision. Thus, school authorities may inspect randomly at any time, with or without reason, without notice, without student consent, and without a search warrant, lockers, desks, and other school-provided storage space. However, personal belongings contained in backpacks or purses and stored in school-provided storage will be searched only if reasonable suspicion exists for such a search as provided below.

   Students who accept lockers or desks assume full responsibility for the security of their lockers or desks. Whenever a student is required to or exercises an option to provide his or her own lock to secure a school-provided storage space, the student must provide the combination or key to the school authority who issued the storage space.

2. Student's Person and Personal Belongings: Students have a reasonable expectation of privacy in the personal belongings they carry with them at school on their person or in items such as backpacks and purses. However, a search of a backpack, purse, or similar item is permissible when school authorities have a reasonable suspicion that the search will turn up evidence that the student has violated or is violating either the law or the rules of the school. Searches of a student's person are also permitted, based upon reasonable suspicion. Such searches may include a request to empty one's pockets or a request to remove outer garments, such as jackets or sweaters, but such a search will not include removal of other clothing. Strip searches are prohibited.

3. Vehicles in School Parking Lots: The school retains authority to conduct routine patrols of student parking lots and inspections of the exteriors of student automobiles on school property. Such patrols and inspections may be conducted without notice, without student consent, and without a search warrant. The interiors of student vehicles may be inspected whenever a school authority has a reasonable suspicion the search will turn up evidence that the student has violated or is violating either the law or the rules of the school, Board Policy JLIE-R. The school is not liable for items left in vehicles.

STUDENT CELL PHONES

While on campus, students will keep cell phones turned off and stored unless use is permitted by an administrator or teacher. If the use of the cell phone is permitted, it must remain on silent mode. The cell phone may not make any sounds that disrupt learning, cause a disturbance or jeopardize the safety of students. Students will be responsible for their own cell phone. Students will be responsible for the daily storing, carrying and taking home of their cell phone. The school/district is not responsible for lost, stolen or damaged cell phones. Students will charge their cell phone prior to use on campus. Student cell phone numbers may be requested as part of the registration process. Student cell phone numbers will be used by administrators only for emergencies, safety issues, etc. Teachers will not use student cell phone numbers for any reason.

SURVEILLANCE

Scottsdale Unified School District authorizes the use of surveillance cameras in school buses and on District property to ensure the health, welfare and safety of all students, employees and visitors, and to safeguard District facilities, vehicles and equipment. Video and/or audio recordings may be used as evidence in any disciplinary action, administrative proceeding or criminal proceeding, and, during certain circumstances, may become a part of a student's educational record.

TECHNOLOGY AND NETWORK RESOURCE POLICY

Expectations

Please read this document carefully. When you enroll in the Scottsdale Unified School District (SUSD), the Uniform Code of Student Conduct becomes an agreement between you and SUSD whereas the parent(s)/guardian(s) and students agree to abide by the conditions and guidelines established herein.

Terms and Conditions of This Agreement

These policies shall apply to:

1. Students who use computers located within, or issued by, the Scottsdale Unified School District.
2. Students who access network resources available through the Scottsdale Unified School District.
3. Students who use personal computing devices such as laptops, cell phones, smartphones, tablets, slates, etc. Students should refer to the SUSD Technology Responsible Use Agreement.

A. Personal Responsibility

Students will accept personal responsibility for reporting misuse of the network. Misuse can come in many forms, but it is commonly viewed as sending or receiving material that exhibits or promotes pornography or violence, unethical or illegal behavior, racism, sexism, or inappropriate language, or constitutes a violation of the guidelines set forth below. The District is not responsible for loss, damage or expenses incurred through the use of personal computing devices by a student. The District may restrict or prohibit the use of personal computing devices as appropriate. Uses of personal computing devices are subject to the Acceptable Use Guidelines as defined by this policy.

B. Acceptable Use Guidelines

- Student will use computers, network resources, and personal technology devices for educational purposes only.
- Student will not submit, publish, display, retrieve, distribute, or attempt to retrieve or distribute any defamatory, inaccurate, abusive, obscene, profane, threatening, sexually oriented, racially offensive, or illegal material.
- Student will abide by all copyright and trademark laws and regulations.

- Student will not reveal logins or passwords, nor will attempt to discover the login or password of others nor enter, modify or delete unauthorized computer files.
- Student will not reveal home addresses, personal phone numbers or personally, identifiable data unless authorized to do so by designated school authorities.
- Student will not use the network in any way that would disrupt the use of the network by others.
- Student will not use the network to earn money.
- Student will not attempt to harm, modify, add or destroy hardware or software, nor interfere with system security, including but not limited to, uploading or creating computer viruses, using anonymizing proxy site or software to bypass content filtering.
- Student understands that using non-educational gaming sites or making credit card purchases is prohibited. Further, use of electronic communication (i.e. email and texting) must comply with guidelines set forth in the SUSD Technology Responsible Use Agreement.

A. Privilege

The use of District computers and network resources is a privilege, not a right, and may be revoked at any time

B. Service

The Scottsdale Unified School District reserves the right to monitor use of District computers and network resources. In particular, electronic mail or direct electronic communication is not private and may be read and monitored by school employees. Should it become necessary, files may be deleted. All files are public records.

The Scottsdale Unified School District is not responsible or liable for any service interruptions, changes or consequences resulting from system use, even if these arise from circumstances under the control of the District.

The Scottsdale Unified School District may impose additional rules as needed for the operation of the system.

C. Consequences

Infractions of the provisions set forth in this agreement may result in suspension or termination of access privileges and/or appropriate disciplinary action, up to and including expulsion.

D. Parental Agreement

Technology and Network Policy and the SUSD Technology Responsibility Use Agreement. I understand that access to computers and network resources is provided for educational purposes only and that students are required to refrain from sending or receiving illegal or offensive material. I also accept full responsibility for supervision if and when my child's use is not in a school setting. I hereby give permission for my child to use network resources.

SUSD TECHNOLOGY RESPONSIBLE USE AGREEMENT

SUSD Technology Responsible Use Agreement applies to both district-owned technology and personal electronic devices. Personal electronic devices may include (but are not limited to) cell phones, laptops, tablets, smart watches, eReaders, iPods, iPads, gaming devices, and digital cameras. Parent(s) and/or guardian(s) are responsible for giving permission for their child to bring a personal electronic device to school for the purpose of instructional use. Students will not be required to bring a personal electronic device to school. Parents and students agree to take full responsibility for the device if it is brought onto a campus. SUSD Uniform Code of Conduct outlines the agreement students and parents make to abide by conditions and guidelines for personal responsibility, acceptable use, privileges, services and consequences established to ensure responsible use of District and personal devices. Agreements for using a personal electronic device at school include respectful use, responsible use, and safe and proper use.

Respectful Use:

Agreement #1:	While on campus, students will keep personal electronic devices off and stored unless use is permitted by an administrator or teacher.
Agreement #2:	If the use of a personal electronic device is permitted, the device must remain on silent mode. The device may not make sounds that disrupt learning, cause a disturbance or jeopardize the safety of students.
Agreement #3:	All media, messages and use of applications must be course related and used for instructional purposes.
Agreement #4:	Students will respect the property of others and not take or use another person's property without permission.
Agreement #5:	All media published about others, including (but not limited to) video, audio or images, must first be approved by the people involved and a teacher or administrator.

Responsible Use:

Agreement #6:	Students will treat all devices with respect and care.
Agreement #7:	Students shall be responsible for their own property. Students will be responsible for the daily storing, carrying and taking home of their personal device. The school/District is not responsible for lost, stolen or damaged property.
Agreement #8:	Harassment, cheating, plagiarism, bullying (including cyber-bullying) or any form of inappropriate use of a personal communication device and social media will not be tolerated. Students may lose usage privileges and be subject to school, District, and legal consequences for inappropriate use.
Agreement #9:	Students will charge their personal electronic devices prior to use on campus

Safe and Proper Use:

Agreement #10:	Students will follow safe and appropriate usage guidelines. [Always remember no message/ media is private – your digital footprint is permanent]
Agreement #11:	Students will work only with documents/materials that they have created and abide by all applicable copyright laws.
Agreement #12:	Students will only access the internet through the SUSD Secure Wi-Fi server while on campus. The school/District is not responsible for additional charges incurred for use during school while not on the SUSD server. Students will pay all fees for their data plan.
Agreement #13:	Students will keep logins, passwords and personal information confidential.
Agreement #14:	Students will access only legal, ethical and school appropriate material on the internet.
Agreement #15:	Students will report any misuse or inappropriate use of the SUSD network to a teacher or administrator.

GENERAL INFORMATION

TELEPHONE MESSAGES

Due to the disruptive impact on staff and the operations of the school, except in emergencies, telephone messages for students will not be accepted.

TRIP REDUCTION

As required by the Maricopa County Trip Reduction Plan, this serves as formal notification that SUSD supports ride sharing. For more information go to: www.sharetheride.com.

UNIVERSAL PRECAUTIONS (COMMUNICABLE/ INFECTIOUS DISEASES)

To prevent the spread of communicable diseases, the District has instituted "universal precautions" which are recommended by the Center for Disease Control http://www.cdc.gov and Maricopa County Department of Health http://www.maricopa.gov/publichealth/.

To safeguard students and staff, school-based employees regard all body fluids as potentially infectious. They are trained to avoid direct contact if possible, to wear gloves if necessary, to wash hands thoroughly and to report injuries to the nurse immediately.

Students are not to touch blood or body fluids and should seek adults for assistance.

VISITOR/GUEST PASSES

All visitors to any school during the school day must report to the school office upon arrival, must sign in on the visitor's log, and must obtain a visitor's pass. Visitors must provide identification upon request in order to obtain a visitor's pass. "Visitors" include (1) persons not enrolled in or employed by the District (including relatives of District employees), (2) District employees, when not working on District business, and (3) District students, when they are not at the site at which they are enrolled. Scottsdale Unified School District does not allow on-campus visitations by minors and non-students. Visitors who fail to comply with this rule may be in violation of criminal trespass laws, student behavioral expectations, or both. *See A.R.S. §13-1502(A)(1); see also Article B, Behavior ("Trespassing")*.

WITHDRAWN STUDENTS

Students who have been withdrawn from school and who are present on the school campus in violation of District policies and procedures regarding visitors are considered to be trespassing.

DRUG AND ALCOHOL USE BY STUDENTS

PROHIBITED CONDUCT

Students are prohibited from:

- Possessing, using, or distributing, alcohol or other drugs within the District's drug free school zone, regardless of whether the violation is sufficient to support prosecution under relevant criminal laws;
- Being under the influence of alcohol or other drugs within the District's drug free school zone, regardless of whether the level of intoxication is sufficient to support prosecution under relevant criminal laws, and regardless of whether the alcohol or drugs were consumed prior to entering the District's drug free school zone;
- Possessing, using, or distributing drug paraphernalia within the District's drug free school zone.

CONSEQUENCES

Students who violate this policy shall be subject to disciplinary actions in accordance with the Uniform Code of Conduct. In addition, students who violate this policy may be subject to prosecution in accordance with the provisions of law. If the student is a graduating senior and the offense occurs during the last 60 days of second semester, the student may participate in the graduation ceremony, only. A diploma will be granted only after drug/alcohol classes and community service hours are completed, with the following conditions:

- Student must be accompanied to the ceremony by a parent/guardian
- Student will not be allowed to participate in other graduation activities
- Student's diploma will be held until all aforementioned requirements have been completed

DEFINITIONS

"Distribution"
For purposes of this policy, the term "distribution" includes any transfer or attempted transfer of drugs or alcohol from one individual to another.

"Drugs"
For purposes of this policy, the term "drugs" means any potentially mind-altering substance or substance capable of producing a change in behavior, and includes, without limitation, the following substances:

- Any "controlled substance" as defined in A.R.S. §§ 36-2501 through 2516 (Controlled Substances, Schedules I-V);
- Any substance that may subject a person to criminal prosecution under A.R.S. §§13-3402 (Peyote), 13-3405 (Marijuana), 13-3407 (Dangerous Drugs), 13-3408 (Narcotic Drugs), and 13–3411(Possession, Use, Sale, Transfer of Drugs in a Drug Free School Zone);
- Any vapor releasing substance containing a toxic substance, as defined in A.R.S. §13–3401(38), except such vapor releasing substances properly used under the direct supervision of a District employee in connection with a school-related activity;
- Any prescription or over-the-counter medication not otherwise exempt from this definition. A prescription or over-the-counter medication is exempt from this definition if:
    1. Permission for possession and use of the prescription or over-the-counter medication in school has been granted pursuant to Board Policy JLCD *(see also Code of Conduct, General Information, "Medications")*; or
    2. Despite failure to obtain permission pursuant to Board Policy JLCD, the prescription or over-the-counter medication is:
        a. Prescribed for personal use and is used in accordance with the physician's written directions (prescription medication), or
        b. Possessed for personal use and is used in accordance with the manufacturer's written directions (over-the-counter medication).

NOTE: Such violations of Board Policy JLCD may still result in discipline under the District's "Medications" policy. See Code of Conduct, Article B, "Medications (Unauthorized Possession, Use)".

- Any substance that the user possesses, transfers, or represents to be a substance otherwise covered by this definition;
- Any alcoholic beverages.

"Drug Paraphernalia"
For purposes of this policy, the term drug paraphernalia includes, without limitation, items defined in A.R.S. § 13-3415, and any equipment, product, or material of any kind that is used, intended for use, or designed for use in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, containing, concealing, injecting, inhaling, or otherwise introducing into the human body a drug in violation of the law or this policy.

"Drug Free School Zone"
For purposes of this policy, the term "drug free school zone" includes, without limitation,

- Any property owned or leased by the District, including, without limitation, school grounds, school buildings, school parking lots, and school playing fields;
- The area within 300 hundred feet of a school or its accompanying grounds, and any public property within one thousand feet of a school or its accompanying grounds;
- Any off-campus property when used for a District function or school-related activity;
- School buses and other vehicles used by District employees to transport students to and from school or school-related activities; School bus stops;
- Any violation of this policy that occurs on the way to or from school;
- Any violation of this policy that is deemed to have a direct impact on the safety or general welfare of the school, staff, or students, or that otherwise adversely affects the school order, regardless of where or when the violation occurs.

"Possession"
For purposes of this policy, "possession" includes, without limitation, (1) having under one's control (e.g., on one's person, in one's personal belongings, in one's locker, in one's car), (2) purchasing, or (3) otherwise receiving drugs or alcohol.

"Under the Influence"
For the purposes of this policy, a student is "under the influence" if he or she exhibits one or more commonly accepted signs of intoxication.

LEGAL REFERENCES:
A.R.S.
4-241 and 4-244
15-345
13-3401 through 13-3408
13-3411
36-2501 through 36-2516
36-2802

CROSS REFERENCES:
JICH – Drug and Alcohol Use by Students
JLC – Students Health Services and Requirements
JLCD – Administering Medicines to Students
KF – Community Use of School Facilities

HAZING

There shall be no hazing, solicitation to engage in hazing, or aiding and abetting another who is engaged in hazing of any person enrolled, accepted for or promoted to enrollment, or intending to enroll or be promoted to District schools within twelve (12) calendar months. For purposes of this policy, a person as specified above shall be considered a "student" until graduation, transfer, promotion or withdrawal from the District school.

"Hazing" means any intentional, knowing or reckless act committed by a student, whether individually or in concert with other persons, against another student, and in which both of the following apply:

- The act was committed in connection with an initiation into, an affiliation with, or the maintenance of membership in any organization that is affiliated with an education institution.
- The act contributes to a substantial risk of potential physical injury, mental harm or degradation, or causes physical injury, mental harm or personal degradation.

"Organization" means an athletic team, association, order, society, corps, cooperative, club, or similar group that is affiliated with an educational institution and whose membership consists primarily of students enrolled at that educational institution.

It is not a defense to a violation of this policy that the act occurs during either of the following cases:

- Customary athletic events, contests or competitions that are sponsored by an educational institution.
- Any activity or conduct that furthers the goals of a legitimate educational curriculum, a legitimate extracurricular program, or a legitimate military training program.

All students, teachers and staff shall take reasonable measures within the scope of their individual authority to prevent violations of this policy.

Students and others may report hazing to any professional staff member.

Professional staff members must report the incident to the school administrator or next higher administrative supervisor, in writing, with such details as may have been provided. A failure by a staff member to timely inform the school administrator or next higher administrative supervisor of a hazing allegation or their observation of an incident of hazing may subject the staff member to disciplinary action in accord with District policies. The staff member shall preserve the confidentiality of those involved, disclosing the incident only to the appropriate school administrator or next higher administrative supervisor or as otherwise required by law. Any instance of reported or observed hazing which includes possible child abuse or violations of statutes known to the staff member shall be treated in accord with statutory requirements and be reported to a law enforcement agency. Any teacher or staff who knowingly permitted, authorized, or condoned the hazing activity is subject to disciplinary action by the educational institution.

School District Action

To assure that students and staff are aware of its content and intent, a notice of this policy and procedure shall be posted conspicuously in each school building and shall be made a part of the rights and responsibilities section of the student handbook. Forms for submitting complaints are to be available to students and staff in the school offices.

Upon receipt of a complaint or report of hazing, the District shall undertake or authorize an investigation by District officials or a third party designated by the District.

The School District may take immediate steps to protect the complainant, reporter, student(s), or others pending completion of an investigation of hazing.

Upon completion of the investigation, if the District determines that this policy has been violated, the District shall take appropriate action, which may include, but is not limited to, warning, suspension, exclusion, expulsion, transfer, or remediation (Ref. Code of Conduct, Article B). Disciplinary consequences will be sufficiently severe to deter

violations and to appropriately discipline prohibited behavior. District action taken for violation of this policy will be consistent with District policies and regulations and statutory authority.

If the investigation reveals that a group, club, or association knowingly permitted, authorized, or condoned the hazing activity, the entity's permission to conduct operations at the school in which the student victim was enrolled shall be revoked or suspended.

If the investigation reveals either direct violation of federal or state law, or that a student was caused or required to perform a task that violated federal or state law, the District will notify the local police department or the appropriate federal law enforcement agency.

Disposition of all reports/complaints shall be reported to the Superintendent. The Superintendent will determine if the policies of the District have been appropriately implemented and will make such reports and/or referrals to the Governing Board as may be necessary.

HARRASSMENT/INAPPROPRIATE LANGUAGE/VERBAL PROVOCATION

Students shall not harass or intimidate others because of race, color, religion, sex, age, national origin, ancestry, gender identity, sexual orientation or on the basis of a disability. Students shall not harass or intimidate others by name calling, using racial or derogatory slurs, or by wearing or possessing items depicting or implying racial prejudice or hatred. Students shall not wear or have in their possession any written material, either printed or in their own handwriting, that is racially divisive or creates ill will or hatred. Examples: any item that denotes the Ku Klux Klan, Aryan Nation, white supremacy, Confederate flags, Neo-Nazi groups or any other similar groups. This list is not intended to be all-inclusive.

NOTES

Scottsdale Unified School District
8500 E. Jackrabbit Rd.
Scottsdale, AZ 85250

(480) 484-6100
www.susd.org/

Arizona Department of Education

Office of English Language Acquisition Services

Home Language Survey

The responses to this Home Language Survey (HLS) are used by the school to provide the most appropriate instructional programs and services for the student. **The answers below will determine if a student will take the Arizona English Learner Assessment (AZELLA).** Please respond to each of the three questions as accurately as possible. If you need to correct any of your responses, this must be done **before** the student takes the AZELLA Placement Test.

1. **What language do people speak in the home *most* of the time?**

   Japanese

2. **What language does the student speak *most* of the time?**
   Japanese

3. **What language did the student first speak or understand?**
   Japanese

Student Name: Emilia Jean Hohl	District Student ID:
Date of Birth: 01/05/2015	SSID:
Parent/Guardian Signature: [signature]	Date: 03/14/2023 15:08:24
District or Charter: Scottsdale Unified School District	
School:	

Please provide a copy of the Home Language Survey to the EL Coordinator/Main Contact on site.
In AzEDS, please enter all three HLS responses.

These HLS questions are in compliance with Arizona Administrative Code (R7-2-306(B)(1),(2)(a-c). (Revised 01-2020)

SUSD CODE OF CONDUCT 2022 2023

Scottsdale
SCHOOL DISTRICT

WELCOME TO SCOTTSDALE UNIFIED SCHOOL DISTRICT

The Scottsdale Unified School District (SUSD) has developed the Uniform Code of Student Conduct to provide students, parents, and staff with a clear outline of students' rights and behavioral expectations. These expectations, along with the District's Vision, Mission and Goals, will help us continue to provide the highest quality education possible to the children of SUSD.

Equal Educational and Employment Opportunity

It is the policy of the Scottsdale Unified School District to maintain a nondiscriminatory learning environment and to ensure that students are free from discrimination in any District program or activity based on race, color, ethnicity, national origin, gender, religion, disability or sexual orientation.

1. The District affirms its intent to comply with all federal and state laws relating to the prevention of discrimination.
2. A lack of English skills will not be a barrier to admission and participation in the Career and Technical (vocational) Education programs of the school.
3. With respect to Title IX issues (gender-based discrimination), Legal Counsel is the District's Title IX officer. If you have questions that cannot be answered at your school, please contact the Legal Department at 8500 E. Jackrabbit Rd., Scottsdale, AZ 85250; Phone (480) 484-6239.
4. With respect to Title II issues (race, color, religion, or national origin-based discrimination), the Director of Support Services is the District's current Title II officer. If you have questions that cannot be answered at your school, please contact the Director of Support Services at 8500 E. Jackrabbit Road, Scottsdale, AZ 85250; Phone (480) 484-5094.
5. Section 504 of the Rehabilitation Act of 1973 and the Americans with Disabilities Act of 1990, which provides protections against discrimination, based on a disability. If you have questions, which cannot be answered at your school, please contact the Clinical Services Director, at 8500 E. Jackrabbit Road, Scottsdale, AZ 85250; Phone (480) 484-5094.
6. Any student who knowingly makes false accusations of discrimination may be subject to disciplinary action.

Family Educational Rights and Privacy Act (FERPA)

The Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g; 34 CFR Part 99) is a Federal law that protects the privacy of student education records. The law applies to all schools that receive funds under an applicable program of the U.S. Department of Education.

FERPA gives parents certain rights with respect to their children's education records. These rights transfer to the student when he or she reaches the age of 18 or attends a school beyond the high school level. Students to whom the rights have transferred are "eligible students."

Parents or eligible students have the right to inspect and review the student's education records maintained by the school. Schools are not required to provide copies of records unless, for reasons such as great distance, it is impossible for parents or eligible students to review the records. Schools may charge a fee for copies.

- Parents or eligible students have the right to request that a school correct record(s), which they believe to be inaccurate or misleading. If the school decides not to amend the record(s), the parent or eligible student then has the right to a formal hearing. After the hearing, if the school still decides not to amend the record, the parent or eligible student has the right to place a statement with the record(s) setting forth his or her view about the contested information.
- Generally, schools must have written permission from the parent or eligible student in order to release any information from a student's education record. However, FERPA allows schools to disclose those records, without consent, to the following parties or under the following conditions (34 CFR § 99.31):
  - » School officials with legitimate educational interest;
  - » Other schools to which a student is transferring;
  - » Specified officials for audit or evaluation purposes;

- Appropriate parties in connection with financial aid to a student;
- Organizations conducting certain studies for or on behalf of the school; Accrediting organizations;
- To comply with a judicial order or lawfully issued subpoena;
- Appropriate officials in cases of health and safety emergencies; and
- State and local authorities, within a juvenile justice system, pursuant to specific State Law.

Schools may disclose, without consent, “directory” information such as a student’s name, address, telephone number, and honors and awards. However, schools must tell parents and eligible students about directory information and allow parents and eligible students a reasonable amount of time to request that the school not disclose directory information about them. Schools must notify parents and eligible students annually of their rights under FERPA. The actual means of notification (special letter, inclusion in a PTA bulletin, student handbook, or newspaper article) is left to the discretion of each school *(see Students Rights)*.

Student Name: _____ **Grade:** _____ **Student ID#:** _____

SCOTTSDALE UNIFIED SCHOOL DISTRICT STUDENT RELEASE FORM

(This release section is necessary to meet the requirements of state statute A.R.S. §15-142.)

Please read the items listed below carefully. Unless you refuse to consent or "opt out" personally identifying student information will be made available as described or your student may be referred to a program described. Your student's personally identifying information will not be released and they will not be considered for certain programs if you refuse consent. If SUSD does not receive this form within fourteen (14) calendar days from your receipt of this form, SUSD will infer that you consent to the release of student information or to consideration for the identified programs.

I have reviewed the SUSD Code of Conduct (which can be found at www.SUSD.org) myself and with my student. I acknowledge that all students will be held accountable to the expectations outlined in the SUSD Code of Conduct. My initials below indicate my review of the SUSD Code of Conduct.

STUDENT ASSISTANCE PROGRAMS

Scottsdale Unified School District provides Student Assistance Programs (SAP's). These prevention-focused support services are available for students who either self-refer or are referred for assistance in areas such as coping with at-risk behavior, stress and personal pressures, building positive relationships, divorce adjustment, grief support, and conflict resolution. The programs are preventative and educational in nature and do not include psychological assessment, evaluation, or therapy.

■ I DO NOT Give Consent _____ Initial

STUDENT DIRECTORY INFORMATION RELEASE

This gives consent for the release of student directory information as it applies to school related activities such as athletics, musical programs, honors and awards, drama productions, commencement, etc. This release shall not apply to confidential student records such as test scores, transcripts, and evaluations. Consent will remain in effect for the current school year or until permission is revoked by the parents, requesting in writing such a revocation. Details of Governing Board policy as to the release of directory information may be secured by contacting the school office or visiting the District's website at www.susd.org. Directory information includes the student's name, the parents' names, email addresses, home addresses and telephone numbers; class/grade level; weight and height if the student is a member of an athletic team; awards received; extracurricular participation; honors and achievements.

■ I DO NOT Give Consent _____ Initial

HIGH SCHOOL – GRADES 11-12

According to state and federal law, the above-designated directory information may be publicly released to educational, occupational or military recruiting representatives without your permission. ** If you do not object to the release of any OR all of the above designated information in writing, then the school must provide military recruiters, upon request, directory information containing the student's name, addresses and telephone listings. Under the Elementary and Secondary Education Act and No Child Left Behind Act of 2001, as amended, school districts are required to comply with a request from a military recruiter for names, addresses, and telephone listings for each student who is 17 years of age or older or in the eleventh grade (or its equivalent) or higher, even if a school district has a policy of not disclosing such directory information. Additionally, educational, occupational or military recruiting representatives may request a student's GPA and Class Rank. If you agree to the release of GPA and Class Rank to educational, occupational representatives, we are required to provide the same information on an equal basis to military recruiting representatives.

■ I DO NOT Give Consent _____ Initial

STUDENT PHOTO/VIDEO RELEASE (all school-sponsored activities except athletics)

This gives consent for my student's photo/video to be used in school-related activities by representatives of media (which could include television) and for use of the school district in various media, such as newspapers, broadcasts, news releases, school/district newsletters, District website, and social media sites,(i.e. Facebook, Twitter), school plays and contests. This does not include athletic events, which are considered public events.

■ I DO NOT Give Consent _____ Initial

YEARBOOK RELEASE

This gives consent for my student to be photographed and identified by his or her name to be used in school-related activities, which include the yearbook.

■ I DO NOT Give Consent _____ Initial

PERMISSION TO RELEASE STUDENT DIRECTORY INFORMATION (School Related Organizations)

This gives consent for the release of student information to Parent Teacher Organizations and Booster Clubs. This release shall not apply to confidential student records such as test scores, transcripts, evaluations, etc.

■ I DO NOT Give Consent _____ Initial

GRADUATION

(Please read carefully, as your selections can prevent your child from receiving notifications of offerings by vendors).

The School District will release a high school student' s name, address and telephone number to entities pertaining to graduation unless parents direct otherwise. Please check **"RESTRICT INFORMATION"** to specifically denote your desire to restrict the release of your child's information; otherwise, SUSD will assume consent to the release of the information to the corresponding source for the following:

Graduation & Yearbook Portraits and/or Photographs	□ Restrict Information
Graduation Program & Diploma	□ Restrict Information
Graduation Caps and Gowns	□ Restrict Information
Project Graduation	□ Restrict Information
Senior Portraits (May include Juniors for upcoming Senior Year)	□ Restrict Information

SIGNATURE REQUIRED BELOW (only if there is a change from the prior year)

The information I have provided on this form is accurate and true. I hereby certify that I am the parent or legal guardian* (with legal custody, if separated or divorced) of the above named student. ***Copy of Court paperwork is mandatory. I hereby acknowledge that I have read the SUSD Code of Conduct and agree to abide by the rules and expectations contained therein.**

_____ _____

Parent/Guardian Signature Date

_____

Please Print Parent/Guardian Name

EMAIL ACCOUNTS

Students in grades K-12 will receive an email account provided and supported by SUSD. All rules and expectations within the Student and Parent Technology and Network Resource expectations apply.

Note: IF YOU DO NOT CHECK THE BOX BELOW, SUSD WILL PROVIDE YOUR STUDENT AN SUSD SUPPORTED EMAIL ACCOUNT

■ I DO NOT Give Consent _____ Initial

CODE OF CONDUCT HARD COPY REQUEST

In an effort to be responsive to the environment, the Code of Conduct is available online at all school sites. If an electronic version of the Code of Conduct is not accessible, **limited** hard copy versions will be available to families through the individual sites' administrative offices. If you would like to request a hard copy version of the Code of Conduct, please check below.

I would like to have a hard copy version of the Code of Conduct _____ Initial

2022/2023 PARENT/LEGAL GUARDIAN CONSENT TO PARTCIPATION IN SOCIAL EMOTIONAL BEHAVIOR SCREENING

2021/2022 PARENT/LEGAL GUARDIAN CONSENT TO PARTICIPATION IN SOCIAL EMOTIONAL BEHAVIOR SCREENING Pursuant to A.R.S. § 15-117 informed, parental consent is required to conduct screenings and/or surveys of my minor child. My signature below authorizes SUSD to complete an emotional health and wellness screening of my child (child's name).

The SAEBRS (Social, Academic, and Emotional Behavior Risk Screener) is a brief screening tool for universal screening of student risk for social-emotional and behavioral problems for students in Grades K through 12 which will be used by the district for this purpose.

I further understand that upon my request, SUSD shall provide any available information regarding the screening to me in a timely manner including the dates, methods used, information collected and reasons for administration.

I have read this Consent & Release Form and fully understand the terms and conditions outlined. I certify that I have full legal capacity to sign this Consent & Release Form on behalf of myself and my child.

YES, _____ I do give consent as described above.

NO, _____ I do not give consent as described above.

PERMISSION

The Scottsdale Unified School District has my consent as described above in this Consent & Release.

_____
Name

_____ _____
Signature Date

Name of Parent (print) _____

Signature of Parent _____

Date _____

Student Name _____

Student ID Number _____

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PURPOSE OF CODE

The purpose of the Uniform Code of Conduct is to teach students to become productive members of society. The Code establishes a standard of conduct for the Scottsdale Unified School District which will:

- Provide a supportive educational climate for all students, faculty, staff, and general public
- Assure the safety of the students and staff
- Protect school district property
- Honor and protect the rights of all individuals within the school community

The word “discipline” is from the Latin word discipline meaning “instruction and training”. The intention of the code is to first use discipline issues as teachable moments to deliver skills that are required in academia and society. Second, issues are worked through to repair and restore relationships, identify opportunities to take responsibility, and reintegrate students through restorative practices.

STANDARD OF CONDUCT

All persons upon the property of the Scottsdale Unified School District are expected to conduct themselves in a manner that is consistent with the vision, goals, and beliefs of the District.

Students are required by state law to comply with the regulations, pursue the required course of study, and submit to the authority of the teachers, the administrators, and the Governing Board (A.R.S. §15-841(A)).

This requirement includes (1) complying with all duly adopted Governing Board policies and administrative regulations, and (2) complying with the lawful directions of District officials and/or identifying oneself to such officials when lawfully requested to do so. In addition, students are required to obey all federal, state, and city laws, and must comply with the lawful directions of any law enforcement officer acting in performance of his or her duties. Students and parents are advised that there are certain instances in which Arizona law requires that school personnel contact law enforcement authorities.

Student rights and behavioral expectations apply whenever a student is on school property, including school buses, in the vicinity of the school, at school activities, at school-sponsored activities, and on the way to and from school.

The Uniform Code of Conduct is complete in its entirety and applies for the full year, inclusive of summer activities sponsored by the District.

1. RIGHT OF ACCESS TO RECORDS

A. The District's complete Student Records Policy (Board Policy JR and Regulation JR-R) is available, upon request, for review in the office of each school and in the Superintendent's office.

B. The Family Educational Rights and Privacy Act (FERPA) affords parents, guardians and students 18 years of age or older ("eligible students") certain rights with respect to the student's education records. These rights are:

1. The right to inspect and review the student's education records within 45 days to the day the school receives a written request for access. Parent, guardian or the eligible student should submit to the school principal and/or records custodian a written request identifying the records requested for inspection. The principal or designee will arrange for the inspection. Each parent has equal rights to inspect and to review a student's records unless the school has been provided with a valid court order to the contrary. Where compliance with the request includes copying records, the District may charge a fee for such copies in accordance with Regulation JR-R.

2. The right to request the amendment of the student's education records that the parent, guardian or eligible student believes are inaccurate or misleading. Obvious errors in records may be amended through oral request to the records custodian. Procedures for requesting more substantive amendments to education records are set forth in the Governing Board Policy Regulation JR-R, and may include, when necessary, a hearing before a designated hearing officer.

3. The right to consent to disclosures of personally identifiable information contained in the student's education records, except to the extent that FERPA authorizes disclosure without consent. One exception, which permits disclosure without consent, is disclosure to school officials with legitimate educational interests. For purposes of this exception, the criteria for determining whether a person is a "school official" with a "legitimate educational interest" are set forth in the Governing Board Regulation JR-R. Upon request, the District may disclose education records without consent to officials of another school district in which a student seeks or intends to enroll.

4. The right to file a complaint with the U.S. Department of Education concerning alleged failures by the District to comply with the requirements of FERPA.

C. The District may disclose the information unless the parent, guardian or eligible student opts out. Notwithstanding the above rights, the District may disclose appropriately designated "directory information" without written consent, unless the parent or eligible student has advised the District that any or all of the information designated as directory information should not be released without the parent's prior consent (see below). The primary purpose of directory information is to allow the District to include this type of information from education records in certain school publications (e.g., yearbook, honor roll, playbill, athletic programs, etc.).

The District will not disclose directory information, except as required by law, to any organization other than school-related organizations. "School-related organization" means (i) an organization whose activities support and promote the educational mission of the District, as determined by the Governing Board, or (ii) a government agency. School related organizations may include parent organizations, booster clubs, school employee organizations, Community Education Programs, the Arizona Interscholastic Association, and other organizations and clubs affiliated with the District and its schools. Government agencies may include any local, state or federal government agency.

In addition, federal laws require the District to provide military recruiters, upon request, with three directory information categories - names, addresses and telephone listings - unless parents have advised the District that they do not want their student's information disclosed without their prior written consent.

A parent, guardian or eligible student who does not want the District to disclose directory information from education records without prior written consent must notify the District in writing within two weeks after enrolling in the Scottsdale Unified School District. The District has designated the following information as directory information:

- Student's name and names of student's parents
- Student's participation in officially recognized activities and sports
- Parent's address
- Parent's telephone listing
- Parent e-mail
- Weight and height of members of athletic teams
- Student's achievements, honors and awards received
- Student's grade level

1. RIGHT TO ASSEMBLE

School-sponsored activities and meetings (student government, pep rallies, etc.) are scheduled to take place during the school day. In addition, students shall be given the opportunity to organize and hold student meetings at reasonable times, other than during those hours when classes are being held. Student meetings or gatherings in school buildings or on school grounds may function only as authorized by the school administration. Site administrators must be informed in advance and may impose reasonable restrictions on the time and place of student gatherings or assemblies.

If the site administrator denies permission for a student gathering or assembly, the site administrator shall provide a written explanation upon request. Attendance at meetings and assemblies is limited to students regularly enrolled in that building unless the school administrator has given prior approval.

2. RIGHT TO DUE PROCESS

All students have the right to due process in matters of student discipline. The extent of the due process provided depends on the nature of the violation and the proposed disciplinary action to be taken. Due process procedures for suspensions and expulsions are set forth in Articles D and E of the Uniform Code of Conduct.

3. RIGHT TO BE EDUCATED

If your family lives in any of the following situations:

- In a shelter, motel, vehicle, or campground or on the street
- In an abandoned building, trailer, or other inadequate accommodations, or
- Doubled up with friends or relatives because you cannot afford housing

You have certain rights and protections under the McKinney-Vento Homeless Education Assistance Act.
You have the right to:

- Go to school, no matter where you live or how long you have lived there. You must be given access to the same public education provided to other students.
- Continue in the school you attended before you became homeless or the school you last attended, if that is your choice and is feasible. The school district's local liaison for homeless education must assist you, if needed, and offer you the right to appeal a decision regarding your choice of school if it goes against your wishes.
- Receive transportation to the school you attended before you became homeless or the school you last attended, if you request such transportation.
- Attend a school and participate in school programs with students who are not homeless. Students cannot be separated from the regular school program because they are homeless.

- Enroll in school without giving a permanent address. Schools cannot require proof of residency that might prevent or delay school enrollment.
- Enroll and attend classes while the school arranges for the transfer of school and immunization records or any other documents required for enrollment.
- Enroll and attend classes in the school of your choice even while the school and you seek to resolve a dispute over enrollment.
- Receive the same special programs and services, if needed, as provided to all other students served in these programs.
- Receive transportation to school and to school programs.

When you move, you should do the following:

- Contact the school district's Director of Support Services for help in enrolling in a new school or arranging to continue in your former school (or someone at a shelter, social services office, or the school can direct you to the person you need to contact).
- Tell your teachers anything that you think they need to know to help you in school.
- Ask the Director of Support Services, shelter provider, district social worker, or site community specialist for assistance with clothing.

1. RIGHT TO FORM AND EXPRESS IDEAS

Every student has the right to form, hold and express his or her own ideas and beliefs. The encouragement of this right requires that each student be permitted to disclose or express an idea in the proper educational setting without penalty or embarrassment. The administration and faculty of each school have the obligation to maintain an environment conducive to the free exchange of ideas, while at the same time, maintaining a safe, orderly school environment conducive to learning. Thus, student ideas and speech need to be consistent with socially appropriate behavior.

2. RIGHT TO BE FREE FROM BULLYING, INTIMIDATION, HAZING OR HARASSMENT

Students may expect the opportunity to learn in an atmosphere free from bullying, intimidation, hazing or harassment. As set forth and defined in Article B, and Appendix A, students are prohibited from harassing, intimidating, hazing and bullying or cyber-bullying other students on school grounds, school property, school buses, at school bus stops and at school-sponsored events and activities.

Reporting Bullying, Harassment, Hazing or Intimidation

Any student who believes that he/she is, or has been subjected to bullying, intimidation, hazing or harassment by any other student, visitor, or school staff is urged to contact the Principal or designee at his or her school. There may be times, however, when a person feels uncomfortable reporting such conduct to the Principal or designee. In such cases, the person should report the conduct to a teacher or counselor. Similarly, any person who becomes aware of any bullying, intimidation, hazing or harassment should report it to the Principal or designee. Employee may initially give verbal notice to principal or designee but shall submit a written report to the principal or designee within one (1) school day of the verbal reports. School officials shall, to the extent possible, keep confidential all reports of bullying, intimidation, hazing or harassment.

Parents and guardians are also encouraged to report suspected incidents of bullying, intimidation, hazing or harassment to school officials. Such reports should be submitted in writing to the school Principal or designee. A verbal report will be documented in writing by the employee receiving the report.

ARTICLE A: STUDENT RIGHTS

Investigation of Complaints

The Principal or designee will promptly review and conduct a fair and impartial investigation on a case-by-case basis, as soon as feasible but no later than two (2) days, for every report of misconduct prohibited by this section. All such investigations will be conducted in a manner designed to protect, to the extent permitted by law, the privacy of all parties concerned.

As set forth above, any student determined, after investigation, to have violated this policy will be subject to disciplinary action as set forth in Article B. Such discipline may include expulsion. In addition to discipline by the District, individuals who engage in acts of bullying, intimidation, hazing or harassment may also be subject to civil and criminal penalties.

If the Principal or designee who conducted the investigation determines that the claim of bullying, harassment, hazing or intimidation cannot be substantiated, all documents relating to the complaint will be maintained in the school administrative office. No documents relating to the complaint shall be kept in any student file. The District will maintain documentation for at least six (6) years.

Retaliation

The District is committed to ensuring that all of its students have the opportunity to learn in an environment free from bullying, harassment, hazing and intimidation. Accordingly, the District will not tolerate retaliation by any student, employee, or other individual against any student who has made a complaint, assisted, or participated in any manner, in an investigation, proceeding, or hearing conducted in response to an internal or external investigation of bullying, harassment, hazing or intimidation. Retaliation is a serious violation of this policy and should be reported immediately to the Principal or designee.

Consequences of submitting false reports of incidents of bullying, harassment, hazing or intimidation:

The District also prohibits intentionally submitting false reports of incidents bullying, harassment, hazing or intimidation. If the Principal or designee determines that a student has intentionally submitted a false complaint, the student will be subject to discipline, up to and including expulsion. No student will be subject to discipline that makes a complaint under this section in good faith.

1. RIGHT TO A PROFESSIONAL STAFF AND FACILITIES

Each student has the right of access to a professional staff and the facilities necessary for an instructional and co-curricular program whose benefits will be available to those who participate actively.

Policies expressly prohibit behavior on District property that will damage the dignity, self-esteem, integrity, and safety, and/or disrupt the educational process, of any individual.

By accepting the right to participate in school programs on or off school property, the student shall accept the responsibility to conduct him or herself according to the rules, regulations, and provisions of these programs.

2. RIGHT TO PUBLISH

Students are entitled to express, in writing, their personal opinions and to circulate petitions. The manner of distribution of such material shall be such as not to interfere with or disrupt the educational process and shall be subject to the following provisions.

Circulation of petitions may take place during lunch and prior to and/or after school in areas designated by the site administrator, which provide reasonable access to the students. The student must be presently enrolled in the school and authorship of the material must be identified.

The superintendent, assistant superintendent, or site administrator may prohibit the posting or distribution of any material which:

- materially and substantially interferes or threatens to interfere with the requirements of good order in the operation of a school or schools;
- materially disrupts or threatens to disrupt a class, classes, or class work;
- involves or threatens to involve disorder, violence, or an invasion of the rights of other students; or,
- is libelous, defamatory, or obscene.

A. Students may distribute or post such materials in the building or on school grounds subject to administrative approval and rules published by the site administrator.

B. Students shall have access to specified bulletin boards and/or areas for the posting of notices or other communications concerning school activities or matters of general interest to students. Posted notices shall: (1) be subject to reasonable size and number limitations determined by the administration; (2) be dated; and, (3) identify the sponsoring individual organization. School authorities may remove notices in violation of any applicable restriction, outdated or posted more than ten days.

C. Students who edit, publish, or distribute handwritten, printed, duplicated or other materials among their fellow students assume full responsibility for the content of all material. By accepting the right to participate in school programs on and off school property, the student shall accept the responsibility to conduct him/herself according to the rules, regulations, and provisions of the Uniform Code of Student Conduct.

D. The school principal is the official publisher of school-sponsored publications. Student editors of school-sponsored publications shall be guided by the policies of the school district and shall ensure adherence to accepted standards of journalism, specifically those guarding against libel, intentional distortion, or reckless disregard for the facts.

Authorship shall be disclosed, and opinions shall be identified as such. Student editors of school-sponsored publications shall have an obligation to provide opportunities for fellow students, teachers, and administrators to express views, which differ from editorial policy. All articles to be published in school-sponsored publications shall be submitted for approval to the faculty sponsor before publication. Articles may be rejected by the faculty sponsor who shall prepare a written explanation to the student editor of the reasons for rejection. Within five school days after receipt of such written explanation, the rejection may be appealed in writing to the school principal, who may affirm, reverse or modify the action of the faculty sponsor.

2. RIGHT TO SPECIAL PROGRAMS

A. All children identified as qualifying for special education under the Individuals with Disabilities Education Act (IDEA), shall receive special education commensurate with their abilities and needs.

B. All children identified as qualifying for gifted services shall receive education commensurate with their abilities and needs.

C. Any student qualified according to conditions described under Section 504 of the Rehabilitation Act of 1973 shall receive accommodations prescribed by the 504 Team at his or her school.

D. An alternative education program may be available for those students who are unable to profit from the regular school curriculum and environment, or who are in need of discipline greater than short-term suspension, but short of expulsion.

ARTICLE A: STUDENT RIGHTS

1. RIGHT TO USE EDUCATIONAL RESOURCES

Students have the right to use buildings, grounds, equipment, and instructional materials necessary to meet the requirements and needs of their curricular and co-curricular programs in accordance with procedures established by the administration.

A. The site administrator shall be responsible for establishing and enforcing procedures to make the building, equipment and materials available to students. Students shall have had prior experience or instruction before using equipment.

B. The student exercising the right to use the resources provided shall also accept the responsibility for the preservation and care of the property. Any unauthorized use or deliberate destruction or defacing of the property shall be deemed a violation of the Uniform Code of Conduct.

2. STUDENT EXERCISE OF RIGHTS AND PRIVILEGES

Any student who believes his/her rights have been violated should immediately notify appropriate school personnel (teacher, counselor, or school administration).

A student shall not be punished or penalized by any member of the school faculty or administration solely because that student exercised any of the rights or privileges described in this code. Any student who deems him/herself aggrieved by a violation of this regulation may appeal, in writing, to the administrator of the building in which he/she is enrolled. The site administrator shall promptly hear and consider the request and respond appropriately.

Each student is responsible for moderating his/her own exercise of rights and privileges so as not to disrupt the educational program, the school activities or to infringe on the rights of others.

GENERAL BEHAVIOR EXPECTATION

Students are expected to conduct themselves in a manner that is consistent with the vision, goals, and beliefs of the Scottsdale Unified School District. Accordingly, students are prohibited from engaging in behavior (1) that obstructs, disrupts, or interferes with any educational, administrative, disciplinary, or other activity sponsored or approved by the District, (2) that endangers or threatens the safety of any person, or (3) that inflicts or threatens to inflict damage on property of the District, District employees, students, or others. In addition, students who have committed or are believed to have committed a crime may be subject to school discipline. A.R.S. §15-843(B)(4). Students who fail to abide by this general behavioral expectation will be subject to appropriate discipline, regardless of whether the conduct violates any specific provision of Article B.

In addition to any specifically enumerated consequences, any violation of the General Behavioral Expectation or of any Specifically Prohibited Behaviors listed below may result in the following consequences:

A. The student may be retaught the proper behavior expectation.

B. The student may be isolated from other students.

C. The student's parents will be informed of inappropriate behavior and reminded of school policy and disciplinary procedures.

D. The student may be required to make use of counseling/intervention services.

E. The student may be removed from the aggrieved teacher's class with loss of credit.

F. The student will make restitution for damages, if appropriate.

G. The student may be assigned detention, work detail, and/or in-school suspension.

H. The student may be suspended from school premises and activities.

I. For repeated or serious violations, the student may be removed from the regular school program or recommended for expulsion.

J. Administration may involve police. Legal action may be taken.

Consistent with the general behavioral expectations, the following specified behaviors are prohibited on school property (including school buses and bus stops), in the vicinity of the school, at school-sponsored activities, and on the way to and from school unless otherwise required by the Uniform Code of Conduct or Board Policy. Disciplinary decisions are at the discretion of the administrator and are expected to be connected to the misconduct in a logical and timely manner.

The violations and definitions listed on the next several pages are not to be viewed as all-inclusive. School administrators have the discretion to assign a violation category to a student's misconduct based on all evidence collected and in alignment with normal practice. While students will receive consequences for committing violations, students may also receive consequences for attempting to commit a violation or knowingly assisting or provoking a violation of the Uniform Code of Conduct.

At the school administrator's discretion, students may receive a student support strategy for Level 1 violations to reteach school expectations. Discipline is progressive as outlined by minimum and maximum consequences.

Student Support Strategies may include:

- Participating in a community building circle
- Participating in a restorative conversation

- Participating in a behavioral intervention
- Participating in a student support group with a community agency, counselor, or social worker
- Writing a reflection/ apology letter
- Performing community service to restore the harm caused

Violations such as those involving alcohol, drugs, firearms possession, sexual abuse or other abuse and other serious incidents including threats, require a report to law enforcement. Schools also have the discretion to notify police of other incidents depending on the circumstances of the misconduct.

VIOLATIONS (LEVEL I)

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Academic Dishonesty (Cheating / Plagiarism)	Making use of something valuable by the use of deceit or fraud; is to influence or lead by deceit, trick or artifice. Cheating on schoolwork is presenting the work of another as one's own. This includes but is not limited to: copying an examination, assignment, or other school work; working with others on projects and assignments that are meant to be done individually; looking at or copying another student's test, quiz or homework answers; the use of cheat sheets or other forms of visual prompts including the use of electronic devices, calculators, cell phones, and/or text messages; taking papers (or any portions thereof) from other students, publications, or the internet; viewing a video, reading a summary, or consulting study aids (Cliffs Notes or equivalent, internet sources) of a book in place of reading the book; falsifying grades; aiding Academic Dishonesty violations and inappropriately collaborating.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	"Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days and Loss of Assignment Credit	ISS/OSS 3-5 days and Loss of Assignment Credit ***Note:* M.S. students taking H.S. course may lose class credit**	ISS/OSS 3-5 days and Loss of Assignment Credit and/or loss of class credit
Attendance Policy Violation	**Refer to Article C:** Attendance Regulations				
Bus Misconduct *(continues)*	"Bus Misconduct" includes: A. Failure to abide by the Code of Conduct while being transported in a vehicle owned or operated by the District, B. Riding on a bus without permission, or C. Failure to observe any of the following specific rules while riding in a vehicle owned or operated by the District: 1. Provide proper identification when loading bus. 2. Keep the aisles clear. 3. Remain seated.	**1st offense**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		2nd offense	Loss of Bus Privileges for 5 days	Loss of Bus Privileges for 5 days	Loss of Bus Privileges for 5 days
		3rd offense	Loss of Bus Privileges for 10 days	Loss of Bus Privileges for 10 days	Loss of Bus Privileges for 10 days
		4th offense	Loss of Bus Privileges for Remainder of School Year	Loss of Bus Privileges for Remainder of School Year	Loss of Bus Privileges for Remainder of School Year

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Bus Misconduct *(continued)*	4. Keep all body parts inside the vehicle. 5. Do not throw anything inside the vehicle or from the vehicle. 6. Do not eat or drink. (Plastic water bottles are acceptable. 7. Do not transport animals, insects, glass containers, and/or other prohibited items 8. Skateboards or Longboards over 33 inches shall not be transported on a bus. 9. Maintain orderly conduct on the bus and at designated bus stops. 10. When instruments or equipment related to musical or athletic events, including skateboards and rollerblades, are transported on a school bus, such instruments or equipment: a. Shall be transported in a manner which restrains the equipment in the event of an accident; b. Shall not occupy seating space if needed for a passenger; c. Shall not be placed in the school bus driver's compartment or step well; d. Shall be placed under the passenger's control at all times or secured in the school bus; and e. Shall not block an aisle or emergency exit of school bus at any time.	**1st offense**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		2nd offense	Loss of Bus Privileges for 5 days	Loss of Bus Privileges for 5 days	Loss of Bus Privileges for 5 days
		3rd offense	Loss of Bus Privileges for 10 days	Loss of Bus Privileges for 10 days	Loss of Bus Privileges for 10 days
		4th offense	Loss of Bus Privileges for Remainder of School Year	Loss of Bus Privileges fo Remainder of School Year	Loss of Bus Privileges for Remainder of School Year
Closed Campus Violation (Leaving School Grounds Without Permission)	Occurs when a student leaves campus in violation of the District's closed campus policy (listed below): A. Elementary and Middle Schools are closed campuses from time of student drop-off to pick up. Consequences for violation are determined by the administration in accordance with Article B, Behavior. B. High School campuses are closed to all students throughout their scheduled day, including lunchtime. Students who need to leave for medical reasons or special circumstances must obtain administrative permission in advance and may not leave campus without a pass from the front office or the nurse's office. The principal or designee will have discretion to grant students permission to leave the campus during the school day.	**1st offense**	ISS/OSS 1 day	ISS/OSS 1 day	ISS/OSS 1 day
		2nd offense	ISS/OSS 3 days	ISS/OSS 3 days	ISS/OSS 3 days
		3rd offense	ISS/OSS 4-9 days	ISS/OSS 4-9 days	ISS/OSS 4-9 days

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Computer/ Network Infraction	Includes any violation of the Acceptable Use Guidelines, as set forth in the Student and Parent Computer and Network Resource Policy.	**Min.**	Student Support Strategy, Parent Contact, and Possible Restriction of Use from Computer and/ or Network	Student Support Strategy, Parent Contact, and Possible Restriction of Use from Computer and/ or Network	Student Support Strategy, Parent Contact, and Possible Restriction of Use from Computer and/ or Network
		Max.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days and possible loss of credit
Contraband	Items stated in school policy as prohibited because they may disrupt the learning environment.	**Min.**	Confiscation, Student Support Strategy, and Parent Contact	Confiscation, Student Support Strategy, and Parent Contact	Confiscation, Student Support Strategy, and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-3 days	ISS/OSS 1-3 days
Defiance, Disrespect Towards Authority	Student engages in refusal to follow directions, talks back, or delivers socially rude interactions.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days
Disruption	Student engages in behavior causing an interruption in a class or activity. Disruption includes sustained loud talking, yelling, or screaming; noise with materials, horseplay or roughhousing; sustained out-of-seat behavior, running in the building, hallways, or corridors, etc.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days
Dress Code Violation and Student ID Violation	Student wears clothing that does not fit within the dress code guidelines stated by school or District policy or refuses to comply with student ID card policy.	**Min.**	Change clothes, Student Support Strategy and Parent Contact	Change clothes, Student Support Strategy and Parent Contact	Change clothes, Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-3 days	ISS/OSS 1-3 days
Electronic and Tele-communication Devices	Inappropriate possession or use of an electronic device or toy occurs when such device is possessed or used in a way that interferes with the orderly operation of the school or otherwise constitutes disruptive behavior. “Electronic Device” includes, without limitation, MP3 Players/iPods, music player of any kind, cell phones, electronic games, smart devices, digital cameras, etc.	**Min.**	Student Support Strategy, Parent Contact, and loss of technology privileges	Student Support Strategy, Parent Contact, and loss of technology privileges	Student Support Strategy, Parent Contact, and loss of technology privileges
		Max.	ISS/OSS 1-3 days and loss of technology privileges	ISS/OSS 1-3 days and loss of technology privileges	ISS/OSS 1-3 days and loss of technology privileges
Forgery	Is falsely and fraudulently making or altering a document.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-3 days	ISS/OSS 1-3 days

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Gambling	To play games of chance for money or to bet a sum of money.	**Min.**	Confiscation, Student Support Strategy, and Parent Contact	Confiscation, Student Support Strategy, and Parent Contact	Confiscation, Student Support Strategy, and Parent Contact
		Max.	ISS/OSS 1-5 days	ISS/OSS 1-5 days	ISS/OSS 5-9 days Expulsion Hearing
Graffiti or Tagging	Writing on walls, drawings or words that are scratched painted or sprayed on walls or other surfaces in public places. *See also negative group affiliation*.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-5 days	ISS/OSS 5-9 days	ISS/OSS 5-9 days
Language, Inappropriate	Student delivers verbal messages that include swearing, profanity, racial slurs, name-calling or use of words in an inappropriate way but not rising to the level of threatening or intimidating.	**Min.**	Student Support Strategy and Parent Contact	Student Conference ISS/ OSS 1-4 days	Student Conference ISS/ OSS 1-4 days
		Max.	ISS/OSS 1-3 days	ISS/OSS 5-9 days	ISS/OSS 5-9 days
Lying	Is to make an untrue statement with intent to deceive; is to create a false or misleading impression.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-3 days	ISS/OSS 1-3 days
Minor Aggressive Act	Student engages in non-serious but inappropriate physical contact, (i.e., hitting, poking, pulling or pushing). Other behaviors that may be considered under this violation are pulling a chair out from underneath another person, or other behaviors that demonstrate low-level hostile behaviors. ***(See Disruption for additional prohibited behavior)***	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-3 days	ISS/OSS 1-3 days
Non-Compliance with Assigned Consequences	Student does not comply with assigned consequence	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days
Other Violation of School Policy	(Administration Discretion)	**Min. & Max.**	Administration Discretion	Administration Discretion	Administration Discretion
Parking Lot/ Vehicle Violation	Includes any use of a vehicle, including parking, that violates school rules or driving laws or that endangers property or personal safety.	**Min.**	Not Applicable	Not Applicable	Loss of parking permit privileges 1-3 days
		Max.	Not Applicable	Not Applicable	Loss of parking permit privileges for remainder of school year ISS/OSS 5-9 days

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Petty Theft	Arizona law does not differentiate between petty and grand theft, but school administrators may want to consider thefts under $100 as petty.	**Min.**	Student Support Strategy, Parent Contact, Pay Restitution, and /or Return Stolen Items	Student Support Strategy, Parent Contact, Pay Restitution, and /or Return Stolen Items	Student Support Strategy, Parent Contact, Pay Restitution, and /or Return Stolen Items
		Max.	OSS 1-3 days and may pay restitution and/or return stolen items	OSS 3-5 days and may pay restitution and/or return stolen items	OSS 3-5 days and may pay restitution and/or return stolen items
Pranks, Including Interschool Rivalry	"Pranks" include any act of mischief that; A. Causes a negative public image of the school; B. Is intended to, or could reasonably be interpreted as intending to, taunt or create excessive tension between groups within one school or between two or more schools; C. Disrupts or distracts from a school event (such as a homecoming parade, school assembly, etc.); or D. Is intended to stimulate similar acts of mischief by other students.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-5 days	ISS/OSS 5-9 days, Expulsion Hearing with loss of participation in related activities (i.e. extra-curicular events, graduation activities and ceremony)
Public Display of Affection	Holding hands, kissing, sexual touching or other displays of affection in violation of school policy.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 1-3 days	ISS/OSS 3-5 days
Recklessness	Unintentional, careless behavior that may pose a safety or health risk for others.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days
Verbal Provocation	Use of language or gestures that may incite another person or other people to fight.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days
****Alcohol Violation**	The violation of laws or ordinances prohibiting the manufacture, sale, sharing, purchase, transportation, possession or use of intoxicating alcoholic beverages or substances represented as alcohol or otherwise listed in Appendix A. This includes being intoxicated at school, at school-sponsored events or on school-sponsored transportation. **Level 1:** First Offense **Level 2:** Second Offense within 365 days; distribution; offense combined with other aggravating factors.	**Min (Level 1)**	OSS 5-9 days and Substance Awareness Program class	OSS 5-9 days and Substance Awareness Program class	OSS 5-9 days and Substance Awareness Program class
		Max. (Level 2)	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing

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VIOLATIONS (LEVEL II)

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
**Armed Robbery	**A.R.S. §13-1904(A). Armed robbery.** A person commits armed robbery if, in the course of committing robbery as defined in section 13-1902, such person or an accomplice: A. Is armed with a deadly weapon or a simulated deadly weapon; or B. Uses or threatens to use a deadly weapon or dangerous instrument or a simulated deadly weapon.	Min. Max.	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
**Arson of a Structure or Property	**A.R.S. §13-1703(A). Arson of a structure or property.** A person commits arson of a structure or property by knowingly and unlawfully damaging a structure or property by knowingly causing a fire or explosion.	Min.	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing
**Arson of an Occupied Structure	**A.R.S. §13-1704(A). Arson of an occupied structure.** A person commits arson of an occupied structure by knowingly and unlawfully damaging an occupied structure by knowingly causing a fire or explosion. "Occupied structure" means any structure as defined in A.R.S. § 13-1701(4), in which one or more human beings either is or is likely to be present or so near as to be in equivalent danger at the time the fire or explosion occurs. The term includes any dwelling house, whether occupied, unoccupied or vacant. A.R.S. §13-1701(2).	Min.	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
**Assault and Aggravated Assault	**A.R.S. §13-1203(A). Assault.** A person commits assault by: A. Intentionally, knowingly or recklessly causing any physical injury to another person; or B. Intentionally placing another person in reasonable apprehension of imminent physical injury; or C. Knowingly touching another person with the intent to injure, insult or provoke such person. **A.R.S. §13-1204(A). Assault.** A person commits aggravated assault if the person commits assault as prescribed by section 13-1204 under 11 different circumstances	Min.	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
*Bullying	Bullying is repeated acts over time that involve a real or perceived imbalance of power with the more powerful child or group attacking those who are less powerful. Bullying can be physical in form (e.g., pushing, hitting, kicking, spitting, stealing); verbal (e.g., making threats, taunting, teasing, name-calling); or psychological (e.g., social exclusion, spreading rumors, manipulating social relationships). This includes cyber bullying. (Paraphrased from: Ericson, Nels, 2001, Addressing the Problem of Bullying, U.S. Dept. of Justice, Fact Sheet #FS-200127). ***Note:*** *Also see Article A#6, pg. 15*	**Min.**	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5-9 days	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing
**Burglary (First Degree)	**A.R.S. §13-1508. Burglary in the first degree; classification.** A. A person commits burglary in the first degree if such person or an accomplice violates the provisions of either section 13-1506 or 13-1507 and knowingly possesses explosives, a deadly weapon or a dangerous instrument in the course of committing any theft or any felony. B. Burglary in the first degree of a non-residential structure or a fenced commercial or residential yard is a class 3 felony. It is a class 2 felony if committed in a residential structure.	**Min.**	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
		Max.			
*Burglary or Breaking and Entering (third degree only - second degree does not apply to schools)	**A.R.S. §13-1506. Burglary in the third degree; classification.** A. A person commits burglary in the third degree by: 1. Entering or remaining unlawfully in or on a non-residential structure or in a fenced commercial or residential yard with the intent to commit any theft or any felony therein. 2. Making entry into any part of a motor vehicle by means of a manipulation key or master key, with the intent to commit any theft or felony in the motor vehicle. B. Burglary in the third degree is a class 4 felony.	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
*Combustibles	Student is in possession of substance or object that is readily capable of causing bodily harm or property damage, i.e. matches, lighters, firecrackers, gasoline, and lighter fluid.	**Min.**	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
*Dangerous Items	The use, possession, sale, purchase, manufacture, or transportation of dangerous items such as air soft gun, BB gun, knife with a blade length of less than 2.5", laser pointer, letter opener, mace, paintball gun, pellet gun, razor blade or box cutter, simulated knife, Taser or stun gun, tear gas, or other dangerous items. A dangerous item used to cause bodily injury to, threaten, or intimidate another person may be classified as a dangerous instrument as defined below and must be reported to law enforcement. **A.R.S. §13-105(12). Dangerous instrument.** Anything that under the circumstances in which it is used, attempted to be used or threatened to be used is readily capable of causing death or serious physical injury.	**Min.**	ISS/OSS 1- 4 days	ISS/OSS 1- 4 days	ISS/OSS 1- 4 days
		Max.	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing
*Disorderly Conduct	**A.R.S. §13-2904. Disorderly conduct.** A person commits disorderly conduct if, with intent to disturb the peace or quiet of a person, or with knowledge of doing so, such person: 1. Engages in fighting, violent or seriously disruptive behavior; or 2. Makes unreasonable noise; or 3. Uses abusive or offensive language or gestures to any person present in a manner likely to provoke immediate physical retaliation by such person; or 4. Makes any protracted commotion, utterance or display with the intent to prevent the transaction of the business of a lawful meeting, gathering or procession; or 5. Refuses to obey a lawful order to disperse issued to maintain public safety in dangerous proximity to a fire, a hazard or any other emergency; or 6. Recklessly handles, displays, or discharges a deadly weapon or dangerous instrument. (Possession of a deadly weapon or dangerous instrument must also be reported as a weapons violation to ADE and to local law enforcement).	**Min.**	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
**Drug Violation	The unlawful use, cultivation, manufacture, distribution, sale, sharing, purchase, possession, transportation or importation of any controlled/prescription drug or narcotic substance or equipment and devices used for preparing or taking drugs or narcotics. Includes being under the influence of drugs at school, school sponsored events or on school-sponsored transportation. Category includes over-the-counter medications if abused by the student. This category does not include tobacco or alcohol. "Drug "means any narcotic drug, dangerous drug, marijuana or peyote (A.R.S. §13-3415), or otherwise defined in Appendix A. ***Note:*** *See Appendix A for drug paraphernalia.* **Level 1:** First Offense **Level 2:** Second Offense within 365 days; distribution; offense combined with other aggravating factors	**Min. (Level 1)**	OSS 5-9 days and Substance Awareness Program class	OSS 5-9 days and Substance Awareness Program class	OSS 5-9 days and Substance Awareness Program class
		Max. (Level 2)	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
**Endangerment	**A.R.S. §13-1201. Endangerment; classification.** A. A person commits endangerment by recklessly endangering another person with a substantial risk of imminent death or physical injury. B. Endangerment involving a substantial risk of imminent death is a class 6 felony. In all other cases, it is a class 1 misdemeanor.	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing
*Extortion	**A.R.S. §13-1804(A).Theft by extortion; classification.** A person commits theft by extortion by knowingly obtaining or seeking to obtain property or services by means of a threat to do in the future any of the following: A. Cause physical injury to anyone by means of a deadly weapon or dangerous instrument. B. Cause physical injury to anyone except as provided in paragraph one of this subsection. C. Cause damage to property. D. Engage in other conduct constituting an offense. E. Accuse anyone of a crime or bring criminal charges against anyone. F. Expose a secret or an asserted fact, whether true or false, tending to subject anyone to hatred, contempt or ridicule or to impair the person's credit or business. G. Take or withhold action as a public servant or cause a public servant to take or withhold action. H. Cause anyone to part with any property.	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
*Fighting	Mutual participation in an incident involving physical violence where there is no major injury. Verbal confrontation alone does not constitute fighting.	Min.	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing
**Fire Alarm Misuse	Intentionally ringing fire alarm when there is no fire.	Min.	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5 9 days	ISS/OSS 5 9 days	ISS/OSS 5 9 days
**Firearm (Including Destructive Devices) *(continues)*	**A.R.S. §13-3111(A). Minors prohibited from carrying or possessing firearms; exceptions; seizure and forfeiture; penalties.** Except as provided in subsection B, an emancipated person who is under eighteen years of age and who is unaccompanied by a parent, grandparent or guardian, or a certified hunter safety instructor or certified firearms safety instructor acting with the consent of the un-emancipated person's parent or guardian, shall not knowingly carry or possess on his person, within his immediate control, or in or on a means of transportation a firearm in any place that is open to the public or on any street or highway or on any private property except private property owned or leased by the minor or the minor's parent, grandparent or guardian. **A.R.S. §13-3101(4). Definitions:** **"Firearm"** means any loaded or unloaded handgun, pistol, revolver, rifle, shotgun or other weapon that will expel, is designed to expel or may be readily converted to expel, a projectile by the action of an explosive. Firearm does not include a firearm in permanently inoperable condition. **The following is paraphrased from 18 U.S.C. § 921:** **Firearm:** Any weapon, including a starter gun, which will be or is designed to or may be readily converted to expel a projectile by the action of an explosive. This includes the frame or receiver of any such weapon, any firearm muffler or silencer or any destructive device. This definition does not include antique firearms. **Other Firearms:** Firearms other than handguns, rifles or shotguns including: A. Any weapon (including a starter gun) which will or is designed to or may readily be converted to expel B. The frame or receiver of any weapon described above; a projectile by the action of any explosive; C. Any firearm muffler or firearm silencer;	Min. & Max.	OSS 9 days Expulsion Hearing	OSS 9 days Expulsion Hearing	OSS 9 days Expulsion Hearing

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
****Firearm (Including Destructive Devices)** ***(continued)***	D. Any destructive device, which includes: Any explosive, incendiary, or poison gas; bomb; grenade; rocket having a propellant charge of more than 4 oz.; missile having an explosive or incendiary charge of more than one-quarter E. Any weapon which will, or which may be readily converted to, expel a projectile by the action of an explosive or other propellant, and which has any barrel with a bore of more than one-half inch in diameter; F. Any combination or parts either designed or intended for use in converting any device into any destructive device described in the two immediately preceding examples, and from which a destructive device may be readily assembled. (This definition does not apply to items such as toy guns, cap guns, BB guns, and pellet guns. ***See Dangerous Items and Simulated Firearms)*** **Destructive Device:** A category of firearm that includes an explosive, combustible or poisonous gas. This includes bombs, grenades, mines and rockets. Any type of weapon (other than a shotgun or a shotgun shell which is generally recognized as particularly suitable for sporting purposes) which will, or which may be readily converted to expel a projectile by the action of an explosive or other propellant; and which has any barrel with a bore of more than one-half inch in diameter, and any combination of parts either designed or intended for use in converting any device into a destructive device or from which a destructive device may be readily assembled. The term "destructive device" shall not include any device, which is designed or redesigned for use as a weapon.	**Min. & Max.**	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
Harassment, Non-Sexual** ***(continues)	**A.R.S. §13-2921(A). Harassment; definition.** A person commits harassment if, with intent to harass or with knowledge that the person is harassing another person, the person: A. Anonymously or otherwise communicates or causes a communication with another person by verbal, electronic, mechanical, telegraphic, telephonic or written means in a manner that harasses.	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
	B. Continues to follow another person in or about a public place for no legitimate purpose after being asked to desist. C. Repeatedly commits an act or acts that harass another person.	**Max.**	ISS/OSS 1-5 days	ISS/OSS 1-5 days	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Harassment, Non-Sexual *(continued)	D. Surveils or causes another person to surveil a person for no legitimate purpose. E. On more than one occasion makes a false report to a law enforcement, credit or social service agency. F. Interferes with the delivery of any public or regulated utility to a person. **A.R.S. § 13-2921(E). Definitions.** For the purposes of this section, "harassment" means conduct that is directed at a specific person and that would cause a reasonable person to be seriously alarmed, annoyed or harassed and the conduct in fact seriously alarms annoys or harasses the person. ***Note:*** *Bullying, hazing and sexual harassment are types of harassment. Indicate harassment if the violation is not specifically bullying, hazing or sexual harassment, or if the specific type of harassment is not known.*	**Min.**	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact	Student Support Strategy and Parent Contact
		Max.	ISS/OSS 1-5 days	ISS/OSS 1-5 days	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing
****Harassment, Sexual (continues)**	**U.S. Department of Education, Office of Civil Rights, Revised Sexual Harassment Guidance: Harassment of Students by School Employees, Other Students, or Third Parties, Title IX, January 2001:** Sexual harassment is unwelcome conduct of a sexual nature that denies or limits a student's ability to participate in or to receive benefits, services, or opportunities in the school's program. It can include unwelcome sexual advances, requests for sexual favors, and other verbal, nonverbal, or physical conduct of a sexual nature. Because sexual harassment of students is a form of sex discrimination prohibited by Title IX of the Education Amendments of 1972, it is governed by this statute and corresponding guidance. Title IX applies to any public or private school receiving federal funding. Does not include legitimate nonsexual touching or other non- sexual conduct, for example, a high school athletic coach hugging a student who made a goal or a kindergarten teacher's consoling hug for a child with a skinned knee.Relevant factors in determining whether behavior rises to the level of sexual harassment include: • The degree to which the conduct affected one or more students' education; • The type, frequency and duration of the conduct; • The identity of and relationship between the alleged harasser and the subject or subjects of the harassment; • The number of individuals involved;	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
****Harassment, Sexual (continued)**	• The age and sex of the alleged harasser and the subject or subjects of the harassment; • The size of the school, location of the incidents, and the context in which they occurred; other incidents at the school. ***Note:*** *Sexual harassment includes but is not limited to students, staff, parents, and community members.*	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
****Harassment, Sexual with Contact**	Sexual harassment that includes unwanted physical contact of non-sexual body parts. (Includes areas not covered in Arizona Revised Statutes). ***Note:*** *Sexual harassment includes but is not limited to students, staff, parents, and community members.*	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
***Hazing**	***(See Article A and/or Appendix A)***	**Min.**	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5-9 days	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days and student may be recommended for Expulsion Hearing
****Indecent Exposure or Public Sexual Indecency**	***See A.R.S. § 13-1401 for definitions.*** **A.R.S. §13-1402. Indecent exposure; exception.** A. A person commits indecent exposure if he or she exposes his or her genitals or anus or she exposes the areola or nipple of her breast or breasts and another person is present, and the defendant is reckless about whether the other person, as a reasonable person, would be offended or alarmed by the act. B. Indecent exposure does not include an act of breast- feeding by a mother. **A.R.S. §13-1403. Public sexual indecency; public sexual indecency to a minor.** A. A person commits public sexual indecency by intentionally or knowingly engaging in any of the following acts, if another person is present, and the defendant is reckless about whether such other person, as a reasonable person, would be offended or alarmed by the act: 1. An act of sexual contact. 2. An act of oral sexual contact. 3. An act of sexual intercourse. 4. An act of bestiality. B. A person commits public sexual indecency to a minor if the person intentionally or knowingly engages in any of the acts listed in sub-section A and such person is reckless about whether a minor under the age of fifteen years is present.	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
***Negative Group Affiliation**	Specific attitudes and actions of a student affiliated with a negative group typically include most of the following: A. May or may not have a recognized leader. Do most things together, especially socially. B. Stick together on issues. C. Loitering in a restroom/location or in a group without cause or permission D. Involve themselves in each other's problems; therefore, perpetuate each other's problems. E. Claim loyalty and righteousness if reprimanded. F. All the interference they cause is in the name of friendship. G. Likely to confront authority as a group when one member has been disciplined. H. Usually uncooperative and possibly hostile. I. Conduct themselves as though no other individuals exist in the school, including other students.	**Min.**	ISS/OSS 1-4 days	ISS/OSS 1-4 days	ISS/OSS 1-4 days
		Max.	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	ISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	IISS/OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing
****Other Weapons**	Use, possession, sale, purchase, manufacture, or transportation of other weapons such as billy club, brass knuckles, nun chucks, or a knife with a blade length of at least 2.5". In cases where a student is in possession of a gun, unloaded or loaded, switchblade, and/or a knife with a blade which is 2.5" or longer in length, there will be an automatic 9 day OSS and a recommendation for an expulsion hearing as per A.R.S. §15-841(B).	**Min.**	OSS 1-3 days	OSS 3-5 days	OSS 3-5 days
		Max.	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing	OSS 5-9 days, threat assessment, and student may be recommended for Expulsion Hearing
***Over-the-Counter and Prescription Drugs**	"Unauthorized possession or Use of Medication" occurs when a student, without previously obtaining authorization pursuant to the District's medication policy *(see General Information "Medication")*, possesses or uses a prescription or over-the-counter medication in accordance with the physician's written directions (prescription medications) or the manufacturer's written directions (over-the-counter medications). ***Note:*** *Any other possession, use, or distribution of a prescription or over-the-counter medication will be treated as a violation of the drug and alcohol policy.*	**Min.**	Student Support Strategy, Parent Contact, OSS 1-4 days and Substance Awareness Program Class	Student Support Strategy, Parent Contact, OSS 1-4 days and Substance Awareness Program Class	Student Support Strategy, Parent Contact, OSS 1-4 days and Substance Awareness Program Class
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
****Pornography**	Pornography is the sexually explicit depiction of persons, in words or images, created with the primary, proximate aim, and reasonable hope, of eliciting significant sexual arousal on the part of the consumer of such materials.	**Min.**	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
*Robbery	Using force or threatening to use force to commit a theft or while attempting to commit a crime. **A.R.S. §13-1902(A). Robbery.** A person commits robbery if, in the course of taking any property of another from his person or immediate presence and against his will, such person threatens or uses force against any person with intent either to coerce surrender of property or to prevent resistance to such person taking or retaining property.	Min.	OSS 1-4 days	OSS 1-4 days	OSS 1-4 days
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
**School Threat	Threatening to use a bomb, chemical, or biological agent, or other school threat.	Min. & Max.	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
**Sexual Abuse or Sexual Conduct with a Minor or Child Molestation	**A.R.S. §13-1404(A). Sexual abuse.** A person commits sexual abuse by intentionally or knowingly engaging in sexual contact with any person who is fifteen or more years of age without consent of that person or with any person who is under fifteen years of age if the sexual contact involves only the female breast. **A.R.S. §13-1405(A). Sexual conduct with a minor.** A person commits sexual conduct with a minor by intentionally or knowingly engaging in sexual intercourse or oral sexual contact with any person who is under eighteen years of age. **A.R.S. §13-1410(A). Molestation of child.** A person commits molestation of a child by intentionally or knowingly engaging in or causing a person to engage in sexual contact, except sexual contact with the female breast, with a child under fifteen years of age.	Min. & Max.	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
**Sexual Assault	**A.R.S. §13-1406(A). Sexual assault; increased punishment.** A person commits sexual assault by intentionally or knowingly engaging in sexual intercourse or oral sexual contact with any person without consent of such person.	Min. & Max.	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing	OSS 9 days and student may be recommended for Expulsion Hearing
** Simulated Firearm	Any simulated firearm made of plastic, wood, metal or any other material, which is a replica, facsimile, or toy version of a firearm or any object such as a stick or finger concealed under clothing and is being portrayed as a firearm.	Min.	ISS/OSS 1-3 days	ISS/OSS 3-5 days	ISS/OSS 3-5 days
		Max.	ISS/OSS 3-5 days Expulsion Hearing	ISS/OSS 6-9 days Expulsion Hearing	ISS/OSS 6-9 days Expulsion Hearing

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
**Theft	Taking or attempting to take money or property belonging to another person or the school with the intent to permanently deprive the victim of his or her possessions. **A.R.S. §13-1802(A). Theft; definitions.** A person commits theft if, without lawful authority, the person knowingly: Controls property of another with the intent to deprive the other person of such property; or A. Converts for an unauthorized term or use services or property of another entrusted to the defendant or placed in the defendant's possession for a limited, authorized term or use; or B. Obtains services or property of another by means of any material misrepresentation with intent to deprive the other person of such property or services; or C. Comes into control of lost, mislaid or misdelivered property of another under circumstances providing means of inquiry as to the true owner and appropriates such property to the person's own or another's use without reasonable efforts to notify the true owner; or D. Controls property of another knowing or having reason to know that the property was stolen; or E. Obtains services known to the defendant to be available only for compensation without paying or an agreement to pay the compensation or diverts another's services to the person's own or another's benefit without authority to do so. ***Note:** see petty theft for lesser offense.*	**Min.**	OSS 1-4 days Student Conference Parent contact, and may pay restitution and /or return stolen items	OSS 1-4 days Student Conference Parent contact, and may pay restitution and /or return stolen items	OSS 1-4 days Student Conference Parent contact, and may pay restitution and /or return stolen items
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
Threat or Intimidation *(continues)*	When a person indicates by word or conduct the intent to cause physical injury or serious damage to a person or their property. **A.R.S. §13-1202. Threatening or intimidating; classification.** A. A person commits threatening or intimidating if the person threatens or intimidates by word or conduct: 1. To cause physical injury to another person or serious damage to the property of another; or 2. To cause, or in reckless disregard to causing, serious public inconvenience including, but not limited to, evacuation of a building, place of assembly or transportation facility; or	**Min.**	OSS 1-4 days Student Conference Parent Contact	OSS 1-4 days Student Conference Parent Contact	OSS 1-4 days Student Conference Parent Contact
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing

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ARTICLE B: BEHAVIOR

Violation	Definitions		K - 5th	6th - 8th	9th - 12th
Threat or Intimidation *(continued)*	3. To cause physical injury to another person or damage to the property of another in order to promote, further or assist in the interests of or to cause, induce or solicit another person to participate in a criminal street gang, a criminal syndicate or a racketeering enterprise. B. Threatening or intimidating pursuant to sub-section A, paragraph 1 or 2 is a class 1 misdemeanor, except that it is a class 6 felony if: 1. The offense is committed in retaliation for a victim's either reporting criminal activity or being involved in an organization, other than a law enforcement agency that is established for the purpose of reporting or preventing criminal activity. 2. The person is a criminal street gang member. Threatening or intimidating pursuant to subsection A, paragraph 3 is a class 4 felony	**Min.**	OSS 1-4 days Student Conference Parent Contact	OSS 1-4 days Student Conference Parent Contact	OSS 1-4 days Student Conference Parent Contact
		Max.	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing
***Tobacco Violation**	The possession, use, distribution or sale of tobacco or tobacco-like products (including, but not limited to, e-cigarettes) on school grounds, at school-sponsored events or on school- sponsored transportation. **A.R.S. §36-798.03.** A person, who knowingly sells, gives or furnishes a tobacco product, a vapor product or any instrument or paraphernalia that is solely designed for the smoking or ingestion of tobacco or shisha, including a hookah or water pipe, to a minor is guilty of a petty offense. **A.R.S. §13-3622.**	**Min.**	ISS/OSS 1-4 days and referral to School Resource Officer	ISS/OSS 1-4 days and referral to School Resource Officer	ISS/OSS 1-4 days and referral to School Resource Officer
		Max.	OSS 5-9 days and referral to School Resource Officer	OSS 5-9 days and referral to School Resource Officer	OSS 5-9 days and referral to School Resource Officer
Trespassing	Includes the unauthorized presence of an individual on school property, including presence in an area closed to that individual. In addition, "trespassing" includes: A. The unauthorized presence of a Scottsdale student on a campus other than his or her own; B. The unauthorized presence on campus of a student during a period in which the student is serving an out-of-school suspension or has been expelled; The presence on campus without a visitor's pass of a student who has withdrawn from a Scottsdale Unified School District School.	**Min.**	Student Conference and Parent Contact	Student Conference and Parent Contact	Student Conference and Parent Contact
		Max.	OSS 3-5 days	OSS 5-9 days and student may be recommended for Expulsion Hearing	OSS 5-9 days and student may be recommended for Expulsion Hearing

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Violation	Definitions		K - 5th	6th - 8th	9th - 12th
***Vandalism of School Property**	Willful destruction or defacement of school property. ***Note:*** *Ref Pg. 63 (Parent Liability) A.R.S. 15-842 (B)*	**Min.**	Student Conference and Parent Contact	Student Conference and Parent Contact ISS/OSS 1-4 days	Student Conference and Parent Contact ISS/OSS 1-4 days
		Max.	ISS/OSS 3-5 days	ISS/OSS 5-9 days	ISS/OSS 5-9 days

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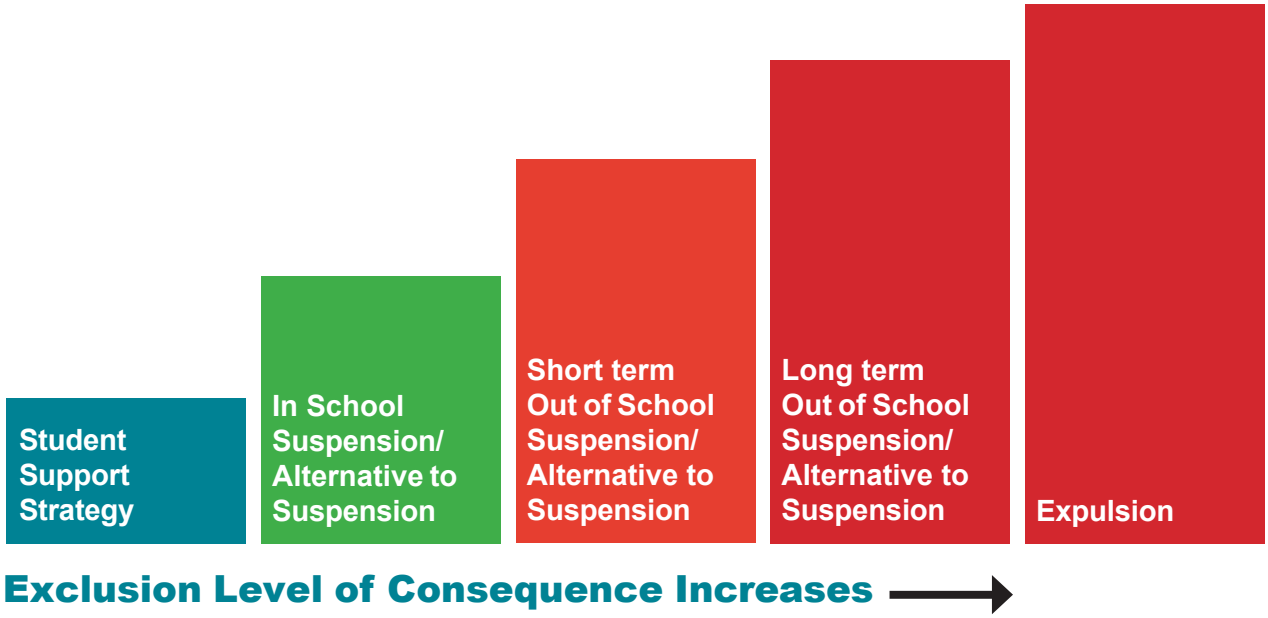
ARTICLE C: SUSPENSION AND APPEAL PROCEDURE

The Governing Board regards the use of out-of-school suspension or expulsion as an extraordinary step, which shall be utilized only when other means of bringing acceptable behavior have failed, or the nature of the offense is so serious it endangers the health, welfare, or safety of other students or school personnel.
Administration shall first attempt to address issues with:

1. reteach the proper expectation
2. a phone call home
3. student conferences and/or intervention or mediation
4. loss of privileges
5. detentions
6. behavior contracts/behavior management plan
7. In-School Suspension (May not be available at all schools)
8. Alternative to Suspension Program (if applicable)



Out of school suspension shall be a last resort when strategies from the list above have been implemented and the behaviors do not improve or unless the infraction poses a threat to the safety of any student, the campus in general, or the student him/herself.

1. AUTHORITY TO SUSPEND

A. A principal or designee has authority to impose a short-term suspension, following appropriate due process. A principal or designee also has authority to recommend to the Director of Support Services that a long-term suspension be imposed.

B. The Director of Support Services has authority to impose a long-term suspension, following appropriate due process and subject, upon request, to review by an independent hearing officer and the Governing Board. The Director of Support Services also has authority to re-assign students to an alternative educational program in place of a long-term suspension.

ARTICLE C: SUSPENSION AND APPEAL PROCEDURE

1. SHORT-TERM SUSPENSION PROCEDURES

A. Before imposing a short-term suspension, the principal or designee will inform the student of the alleged violation. If the student denies the allegation, the principal or designee will explain the evidence against the student and give the student an opportunity to present his or her side of the story. If a student's presence endangers persons or property, or otherwise threatens disruption of the academic process, the student may immediately be removed from school, with the above procedure to be implemented following as soon as practicable. There is no legal right to appeal a short-term suspension.

B. If a decision is made to suspend, the principal or designee will inform the student of the suspension, including the length of the suspension and the conditions applicable to the suspension. (Form HMES-208 Student Suspension Notification). Before returning to school, the student will be required to meet with the principal or designee and sign a readmission contract.

2. ALTERNATIVE TO SUSPENSION PROGRAM

A. A student who would otherwise be subject to a suspension, and who meets the District's requirements for participation, may participate in an alternative to suspension program in place of serving a suspension.

B. Students are eligible for participation in the alternative to suspension program if the following requirements are met:

1. No additional disciplinary action (i.e., long-term suspension, expulsion) is pending or contemplated in conjunction with the misconduct.

2. The suspension was not due to (a) fighting or violent behavior; (b) threatening an educational institution; (c) sale, use or possession of weapons, firearms, explosives, or dangerous instruments; (d) possessing, using, distributing, or being under the influence of drugs or alcohol; (e) making a bomb threat, or; (f) engaging in arson.

3. The student has not served more than one short-term suspension or alternative to suspension during the current year.

4. The student has admitted to and taken responsibility for the misconduct precipitating the short-term suspension in a written statement signed by the student and attested to by the student's parent or guardian.

5. The student and parent or guardian have received a written admonition that the suspension as originally determined will be imposed summarily and in its entirety should the student violate the conditions or requirements of the alternative to suspension program.

6. The parent or guardian agrees to participate by (a) providing transportation as necessary to and from the program location; (b) furnishing pre-packaged meals or purchasing it for the student, and; (c) establishing and monitoring, in consultation with the school, a supervisory routine limiting the student's contact to that which is necessary with other students and friends during the program.

C. Students participating in the alternative to suspension program may be transferred to a location on school premises that is isolated from other pupils or transferred to a location that is not on school premises. The alternative to suspension program shall be discipline intensive and require academic work, and may require community service, grounds keeping and litter control, parent supervision, and evaluation or other appropriate activities. Within these parameters, and those listed in Board Policy JKD (available upon request at any school or the Superintendent's office), the protocols for implementation of the alternative to suspension program may be established by the principal or designee.

ARTICLE C: SUSPENSION AND APPEAL PROCEDURE

1. ALTERNATIVE EDUCATIONAL PROGRAM

A. The Director of Support Services may, pursuant to the procedures set forth below, reassign a student to an alternative educational program if the Director of Support Services finds that good cause exists for a long-term suspension.

B. The District may also reassign a student to an alternative educational program if the student refuses to comply with the rules, refuses to pursue the required course of study or refuses to submit to the authority of teachers, administrators or the Governing Board.

C. Upon referral to an alternative educational program after the 20th day of either first or second semester, student may be required to successfully complete one full semester beyond the semester of enrollment prior to returning to the home school.

2. LONG-TERM SUSPENSION PROCEDURES

A. In addition to imposing a short-term suspension, the principal or a designee may recommend that a long-term suspension be imposed. The Director of Support Services has the authority to impose a long-term suspension, following appropriate due process.

B. Notice shall be given to the student and parent that the principal or a designee is recommending to the Director of Support Services that the student be suspended for nine school days or more. The student and parent may request a meeting with the Director of Support Services to discuss the situation in an informal setting. Any such request must be made in writing to the Director of Support Services within two school days after receiving notice that the principal has recommended long-term suspension.

C. The Director of Support Services will determine (after meeting with the student and parent, if requested) whether a long-term suspension should be imposed or, if good cause exists for a long-term suspension, whether the student should be assigned to an alternative educational program of the District in place of long-term suspension.

D. If a student is assigned to an alternative educational program in place of long-term suspension, there is no right to a formal hearing. If the Director of Support Services imposes a long-term suspension, a formal disciplinary hearing may be requested by the parent. Any such request must be made in writing to the Director of Support Services within two school days after notification that a long-term suspension has been imposed.

E. If a formal disciplinary hearing is requested, an appointed hearing officer will hold the hearing at the District level. The parent and student shall be given written notice of the time and place for the hearing at least five school days before the hearing. The hearing officer shall deliver his or her written decision to the Governing Board within five school days of the hearing.

3. RECORDS AND REPORTS

A. Documentation shall be sent to the student's parents, or to an adult student, stating the reason(s) for the length of suspension, where appropriate.

B. Counting Suspension Days: Suspension days will be counted starting on the day the student is denied participation in school activities.

1. The day the student is removed from school should be counted as a day of suspension, providing he/she was denied class participation for more than one-half of his/her scheduled classes.

2. Times when school is not officially scheduled are not to be counted as part of the suspension.

ARTICLE D: EXPULSION AND APPEAL PROCEDURE

Expulsion is the permanent withdrawal of the privilege of attending a school unless the Governing Board reinstates the privilege of attending school [A.R.S. §15-840(1)]. Administration may deny attendance to any school function on any school campus in the Scottsdale Unified School District, or at any school-sponsored activity during the time of the expulsion. Expulsion is an extremely serious sanction that may be imposed only by the Governing Board [A.R.S. §15-342(1)].

1. AUTHORITY TO EXPEL

The Governing Board may expel a student for misconduct [A.R.S. §15-342(1)]. Expulsion proceedings may be initiated by the principal or designee under any the following circumstances:

A. When repeated discipline for the same or similar infractions fails to correct the student's behavior. Such behavior includes, without limitation, continued open defiance of authority, or continued disruptive or disorderly behavior [A.R.S. §15-841(B)].

B. When the student's initial violation has been so severe as to warrant such action. Such violations may include, without limitation, use or possession of a gun, or violent behavior that includes use or display of a dangerous instrument or a deadly weapon as defined in A.R.S. §13-105 [A.R.S. §15-841(B)].

C. When the health, safety, welfare, or educational opportunities of other members of the school community are affected by the student's behavior. Such behavior includes, without limitation, threatening an educational institution as defined in A.R.S. §13-2911, or possessing, using, distributing, or being under the influence of drugs or alcohol [A.R.S. §15-841(B), (H)].

D. When the student is excessively absent and has reached the age or completed the grade after which school attendance is not required by statute [A.R.S. §15-841(B)].

E. When the District otherwise deems expulsion appropriate, as specified in Board Policies or the Uniform Code of Student Conduct [A.R.S. §15-841(B)].

2. PROCEDURE FOR EXPULSION

FOR ALL REGULAR EDUCATION STUDENTS:
The law requires that certain procedural rights be recognized prior to any expulsion. The District has adopted the following steps to ensure compliance with the due process rights of students who are subject to expulsion.

STEP 1 (INFORMAL HEARING):

When there is an accusation of wrongdoing or evidence of alleged misconduct, the student will be granted an informal hearing with the school administration. The administration will give the student oral or written notice of the alleged misconduct. If the student denies the charges, the administration will explain the evidence that it has of the alleged misconduct and will give the student an opportunity to explain his/her side of the story. The administration will make reasonable efforts to verify all facts and statements prior to making a judgment.

STEP 2 (TEMPORARY SUSPENSION PENDING EXPULSION HEARING):

If, based on the informal hearing, the student appears to be guilty of the misconduct, the administration may suspend the student, for up to nine days (school days) pending a formal expulsion hearing.

If the student presents a danger to himself/herself, to others, or to school property, the administration may immediately suspend the student, with the necessary notice and informal hearing requirements to follow as soon as practicable.

STEP 3 (PARENT NOTIFICATION/RELEASE OF STUDENT):

Before the student is allowed to leave campus, the principal or designee will (a) notify a parent of the terms of the suspension (including the fact that expulsion is being recommended), (b) explain the reasons for the suspension

and recommendation for expulsion, and (c) request a student/parent conference with the principal or designee. If the principal or designee is unable to locate a parent, the student will be isolated until the regular dismissal time and then given a written notification, including the above-described information, to deliver to the parent. In either case, a copy of the written notification will also be mailed to the parent.

STEP 4 (STUDENT/PARENT CONFERENCES):

The principal or designee will convene a student/parent conference to review the incident with the parent. During the student/parent conference, the principal or designee will review the expulsion procedures and the student's due process rights, as set forth in the Uniform Code of Conduct.

STEP 5 (FORMAL LETTER REGARDING EXPULSION PROCEDURE):

A formal letter from the Director of Support Services will be hand delivered by school staff to the parent at least five school days prior to the formal expulsion hearing. The parent will sign for receipt of the letter. If the parent cannot be located for hand delivery, the letter will be sent by certified mail with return receipt requested. The letter will contain the following:

A. A statement of charges and copies of the policy (policies), rule(s), or regulation(s) violated.

B. The date, time, and place of the hearing.

C. If a hearing officer has been appointed, the name of the hearing officer and how the hearing officer may be contacted, or a statement that the Governing Board will preside at the hearing.

D. Notification that the student may be represented by counsel at the student's expense. If the student intends to exercise this option, the District must be notified in writing at least three days prior to the hearing. If counsel is present without notification, the expulsion hearing will be rescheduled, at the District's discretion.

E. Notification that the hearing will be a closed hearing (i.e., the public will not be present) unless the parent requests the hearing be open to the public pursuant to A.R.S. §15-843(G).

F. Notification that the student may present witnesses, written statements, and other evidence at the hearing. If the student intends to exercise this option, the student must provide the District with a witness list and copies of all written statements at least three days prior to the hearing.

G. Notification that the student may cross-examine witnesses presented on behalf of the District, and that the District may cross-examine witnesses presented on behalf of the student.

H. Notification that the hearing officer or Governing Board will be asked to consider expulsion of the student.

I. A list of the District's potential witnesses and, unless such information is included in a witness statement or incident report provided to the student, a brief description of the information to which the witness will testify.

J. A copy of A.R.S. §15-840 and §15-843, District Policy, and Code of Conduct provisions related to expulsion and appeal procedures.

STEP 6 (FORMAL EXPULSION HEARING):

The Governing Board has decided, pursuant to A.R.S. §15-843, that expulsion hearings will generally be conducted by a hearing officer, selected by the District, who shall hear the evidence, prepare a record and bring a recommendation to the Governing Board. A formal expulsion hearing must comply with the following requirements:

General Requirements

A. The hearing will be a closed hearing (i.e., the public will not be present) unless the parent requests the hearing be open to the public.

A. The hearing will be recorded by tape or by an official record kept in some other appropriate manner.

B. The following participants may be present, as applicable: the hearing officer, the superintendent or designee, principal, assistant principal, school staff, school resource officer, parent/guardian, student, other witnesses, attorney for the District, and attorney for the student.

C. The burden of proof lies with the District.

Presentation by the Administration

A. The District (through counsel, if present) will be given an opportunity to present its case through presentation of witnesses and introduction of documentary or other evidence.

B. The student (through counsel, if present) will be given an opportunity to cross-examine the District's witnesses.

C. The hearing officer will be given an opportunity to ask questions of the District's witnesses.

Presentation by the Student

A. The student (through counsel, if present) will be given an opportunity to respond to the District's presentation through presentation of witnesses and introduction of documents or other evidence.

B. The District (through counsel, if present) will be given an opportunity to cross-examine the student's witnesses.

C. The hearing officer will be given an opportunity to ask questions of the student's witnesses.

STEP 7 (DISPOSITION):

Upon conclusion of the hearing, the hearing officer will consider the matter outside the presence of the student, his or her parent(s), or any other person who participated in the hearing. The hearing officer will prepare a record and bring a written recommendation to the Governing Board within five school days after the hearing. If the time of suspension exceeds the initial nine days, the student will be referred for alternative educational services, pending the final decision of the Hearing Officer and/or the Governing Board.

The administration will comply with the hearing officer's recommendation pending final consideration by the Governing Board. However, if the hearing officer recommends expulsion, the District shall provide alternative educational services pending final consideration by the Governing Board.

A formal letter will be mailed to the parent, indicating the recommendation that will be made to the Governing Board. In addition, the letter should explain the following:

A. The student may contest the hearing officer's recommendation before the Governing Board;

B. Any appeal must be submitted to the District in writing within 5 school days after receipt of the hearing officer's recommendation and at least twenty-four hours before the meeting at which the Governing Board considers the hearing officer's recommendation;

C. The written appeal must set forth any objections the student wishes to raise, must designate a spokesperson for the student, and must indicate whether an open hearing is requested;

D. The spokesperson will be given an opportunity to address the Governing Board on appeal;

E. The Governing Board may accept the hearing officer's recommendation or reject the recommendation and impose a different disciplinary action, including assignment to an alternative educational program. The Governing Board may grant a new hearing, take the matter under advisement, or take any further action deemed necessary. If the

Governing Board decides to expel the student, the expulsion will become effective the day after the Governing Board's decision; and

A. The decision of the Governing Board is final.

STEP 8 (REVIEW BY THE GOVERNING BOARD):

If the student does not wish to contest the hearing officer's recommendation, the recommendation will be considered at the next regularly scheduled meeting of the Governing Board. Parents of the student are welcome to attend the Governing Board meeting whether or not they object to the recommendation of the hearing officer. However, a parent who has filed no written objections to the hearing officer's recommendation will not be allowed to speak to the Governing Board during the meeting, except where, at the Governing Board's sole discretion, the circumstances warrant otherwise.

If the student wishes to contest the hearing officer's recommendation before the Governing Board, the following procedures will apply:

A. The parent must notify the District in writing of (I) his or her intent to contest the hearing officer's recommendation, (2) any objections he or she wishes to raise, (3) whether he or she wishes the review hearing to be open to the public. The parent must provide such notification to the District within five days of receiving the hearing officer's recommendation.

B. Upon receipt of such notification, the District will schedule a review hearing before the Governing Board. The District will notify the parent of the time and place of the review hearing at least five days prior to the review hearing.

C. At the review hearing, the Governing Board will consider the hearing officer's recommendation during executive session unless the parent requests that the hearing be open to the public.

D. The Governing Board may uphold, modify, or reject the conclusions or recommendation of a hearing officer. While the Governing Board will generally be bound by the findings of fact, it may reject findings of fact where there is no substantial evidence to support them. The Governing Board expressly reserves the right to reach its own conclusions based upon the findings of fact. The Governing Board will render the final decision relative to any recommendation of expulsion.

E. Written confirmation of the Governing Board's decision shall be mailed to the student's parent within two days after the Governing Board's meeting.

F. The decision of the Governing Board is final

FOR STUDENTS PLACED IN SPECIAL EDUCATION PROGRAMS:

1. Change in Special Education placement procedures must include: (A) Written notice to parent/guardian, (B) review of placement, including the opportunity for a Special Education due process hearing with the Multidisciplinary Team, and (C) Provision for a continuum of alternative placements, including a provision of a free, appropriate education in the least restrictive environment.

2. Procedural and due process rights required by the Individuals with Disabilities Act (IDEA) and Section 504 of the Rehabilitation Act of 1973 are to be followed.

FOR STUDENTS PROTECTED UNDER SECTION 504 OF THE REHABILITATION ACT OF 1973:

Removal from school for ten (10) or more consecutive school days constitutes a ''significant change in placement". Cumulative removals of more than ten school days within the school year may also constitute a similar change in placement. Both actions trigger procedural safeguards including the right to remain in the current educational

placement, appeals, and the need for a District reevaluation to determine if there is nexus between the student's disability and the alleged misconduct.

If the reevaluation team determines the misconduct is a manifestation of the student's disability, the student may not be suspended or expelled and the team must continue with its evaluation to determine whether the current educational placement is appropriate.

If no causation is found, the student may be excluded from school on the same basis as a non-disabled student. The District need not continue to provide educational services during the period of long-term suspension or expulsion. The school must provide the parent or guardian with prior written notice of the District's intended action. Section 504(a) of the American with Disabilities Act amended Section 504 to allow schools to take disciplinary action against disabled students to the same extent as action taken against regular education students in areas pertaining to the use or possession of illegal drugs or alcohol, or possession of a weapon.

1. READMISSION FOLLOWING EXPULSION

A student expelled from the District may request readmission by making a written application to the Governing Board pursuant to Board Policy. Readmission is at the discretion of the Governing Board and will not be granted or considered until at least one calendar year has passed since the expulsion became effective [Board Policy JKE].

ARTICLE E: ATTENDANCE REGULATIONS

Arizona law requires students between the ages of six and sixteen to attend a school. The right and privilege of attending public school carries with it certain responsibilities on the part of both parents and students.

School attendance is ultimately the responsibility of the student and his/her family. Students should be absent from school only when absolutely necessary, as much of the classroom activity cannot be made up; the benefit of lectures, discussion and participation is lost forever to those who are absent. It is the responsibility of school personnel to keep the parents informed of actions that might have a detrimental effect upon the educational growth of the student. Regular attendance is the key to much of the success a student may gain from his/her educational program.

1. DEFINITIONS AND PROCEDURES

A. Absence (Elementary, K-8 and Middle School) - is defined as an elementary and K-8 student not being present in his/her assigned classroom during the assigned period or an elementary student missing 25% or more of the school day.

B. Absence (High School Students) - is defined as missing one period during the school day. No absence will be excused without the student first checking in or out at the school office. Written verification of an appointment (i.e., medical, dental, or legal) must be provided upon return to campus..

C. Emancipated Students - Eighteen-year-old students may assume the responsibility of notifying the school of an absence with approval of the administration and appropriate emancipation documentation.

D. Excessive Absences - Per A.R.S. §15-803(B), absences may be considered excessive when the number of absent days (excused and unexcused absences combined) exceeds ten percent (18 days) of the number of required attendance days prescribed in A.R.S. §15-802(B)(1). Students absent for ten consecutive school days (or in the case of Scottsdale Online Learning- 10 consecutive days with failure to login and complete work), except for excused absences identified herein, shall be withdrawn from the school effective the last day of attendance or reported excused absence, pursuant to A.R.S. 15-901(A). The governing board may take disciplinary action that may lead to expulsion pursuant to A.R.S. 15-342. Pursuant to A.R.S. 15-805(B)(1) at attendance officer may issue a citation to the guardian or the child that is in violation of A.R.S. 15-803.

E. Excused Absence - Pursuant to A.R.S. 15-901(A)(1), excused absences are identified by the Arizona Department of Education (ADE). ADE defines an excused absence as an absence due to illness, doctor appointment, mental or behavioral health, homelessness, bereavement, family emergencies, time necessary to process for the armed forces, out-of-school suspensions, religious holidays and pre-arranged family vacation. No student may be excused from class by a parent/guardian and still remain on campus. ARS 15-807(B) states that in order for absences to be counted as excused, the Elementary, K-8, Middle-, or High school must be notified in advance or by the end of the school day of any absence by the parent or other person who has custody of the student. When excusing an absence the parent or other person who has custody of the student is expected to verify the reason for and date(s) of the absence. The school will document the date, reason, and person reporting the absence. If an absence occurs relating to any other term or condition that is not specifically designated herein, the absence shall be counted as unexcused. When a parent wishes to have a student excused before the close of the school day, the attendance office must be informed prior to the student's departure, and administrator or designee must provide permission. The parent/student must sign out at the front desk with exact time in order for the leave to be excused.

F. Habitually Truant - means a child between the ages of six and sixteen who is truant for at least five days during a single school year (A.R.S. §15-803(C)(1)). Arizona law states that it is unlawful for any child between the ages of six and sixteen to fail to attend school during the hours school is in session, unless exempt under section 15-803(A). If a parent fails to ensure that the child attends school, the law states that they are guilty of a Class III (3) Misdemeanor (A.R.S. §15-802(E)).

A. Religious Purposes - Pursuant to A.R.S., 15-806(A) Students may be granted release time to attend religion classes near the school campus. Specific to religious purposes, pursuant to A.R.S. 15-806(A)(1-2), these conditions will include a written consent from the person who has legal custody of the student and said religious exercises must take place at a suitable place away from school property.

B. Tardy (Elementary, K-8 and Middle School) - is defined as arriving after the start of the regular school day at the assigned location ready for classroom activity. The teacher must admit all tardy students upon arrival to class. If a middle school or elementary student misses more than 25% of the day, that student will be assigned an absence.

C. Tardy (High School) - is defined as arriving after the start of the class period at the assigned location ready for classroom activity. The teacher must admit all tardy students upon arrival to class. If a high school student is more than ten minutes late to class that student will be assigned an absence.

D. Truant - is an unexcused absence for at least one class period during the day (A.R.S. §15-803(C)(2)).

E. Unexcused Absence - is any absence from one or more class periods, which has not been excused by a parent or guardian. Students absent for 10 (ten) consecutive days, except for excused absences identified herein, shall be withdrawn from the school effective the last day of attendance or reported unexcused absence, pursuant to A.R.S. 15-901(a).

F. Withdrawals - includes students formally withdrawn from schools and students absent for ten consecutive school days, except for excused absences as identified by the department of education. For computation purposes, the effective date of withdrawal shall be retroactive to the last day of actual attendance or excused absence of the student.mputation purposes, the effective date of withdrawal shall be retroactive to the last day of actual attendance of the student.

2. DISCIPLINE

The District will publish attendance and/or excessive tardiness and discipline procedures and disseminate them to all students and parents. Unexcused absences and/or excessive tardiness may result in the student receiving disciplinary action. Actions taken by site may include, but are not limited to:

1. Phone and/or written notification to parents.
2. Exclusion from extra-curricular activities, i.e., dances, sports, clubs.
3. School detentions, i.e., morning, lunch, after school, and/or Saturday.
4. In-school suspension.
5. Loss of credit and/or audit status.
6. Withdrawal and re-enrollment process through each school office.
7. Citation by a law enforcement officer in accordance with Arizona truancy laws.
8. Alternative placement, adjustment of student schedule.

It is unlawful under Arizona law for any child who is between six and sixteen years of age to fail to attend school during the hours school is in session. If a child is habitually truant or has excessive absences, the parent and/or child could be issued a citation for a violation of A.R.S. §15-802 and/or §15-803. The citation could require that both you and your child appear in court regarding this matter.

ARTICLE E: ATTENDANCE REGULATIONS

1. MAKE-UP WORK

We believe that student attendance in class is critical to high levels of student learning. Thus, any absence from class has natural consequences and some (unexcused absences/truancies) have behavioral consequences.
A student who is absent for the following reasons will be permitted the same amount of time he/she was absent to complete make-up work. All work must be made up; all work will be assessed on the quality of work. Full credit will be given if full credit is earned based upon the content and standards being assessed. The reasons that qualify for make-up work are:

A. Work missed due to excused absence

B. Work missed due to suspension

2. GRADES

Grades in a course will not be reduced, per se, by excused absences from the class. However, since absences will affect the learning of the student, the interaction during class discussions, and the learning of the ability to function successfully in the business world, the overall evaluation of the student may be affected adversely. The absent student is expected to make up his/her schoolwork. Please note that tardiness may affect classroom participation credit.

HIGH SCHOOL - ABSENCES

Number of Absences per Class Period	First Semester	Second Semester
Any unexcused absence	- Auto call to parents.	- Auto call to parents.
5 total absences in a single semester	- Parent notification. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.	- Parent notification. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
10 total absences in a single semester	- Parent notification and administrator contact. Completion of loss of credit contract. - Student dropped from class (es) and/or placed on audit status for the remainder of the semester. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.	- Parent notification and administrator contact. - Completion of loss of credit contract. - Student dropped from class (es) and/or placed on audit status for the remainder of the semester. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
Total Absences During the Entire School Year		
15 total absences per year	- Parent notification and administrator contact. - Notification of state law. - Students with excessive excused absences may be required to provide medical documentation to remain in class and excuse any further absences.	
18 total absences per year	- Parent notification and administrator contact. - Refer to law enforcement for citation. - Withdrawal and re-enrollment process through the student's corresponding school. - Possible placement in alternative educational environment. - Students with excessive excused absences will be required to provide medical documentation to remain in class and excuse any further absences.	

ARTICLE E: ATTENDANCE REGULATIONS

HIGH SCHOOL - TARDIES

Number of Unexcused Tardies Per Class Period	First Semester	Second Semester
1 to 4 tardies	- Teacher intervention.	- Auto call to parents. - Teacher intervention.
5 total tardies per class in a single semester	- Parent notification. - Disciplinary consequence, such as lunch detention, etc., may occur. - Notification of future consequences.	- Parent notification. - Disciplinary consequence, such as lunch detention, etc., may occur. - Notification of future consequences.
10 total tardies per class in a single semester	- Parent notification. - Completion of loss of credit contract. - Student may be dropped from class (es) and/or placed on audit status for the remainder of the semester.	- Parent notification. - Completion of loss of credit contract. - Student may be dropped from class (es) and/or placed on audit status for the remainder of the semester.
Total Unexcused Tardies Per Semester		
15 total absences per year	- Parent notification and administrator contact. - Notification of state law. - Students with excessive excused absences may be required to provide medical documentation to remain in class and excuse any further absences.	
18 total absences per year	- Parent notification. - Disciplinary consequence, such as lunch detention, in-school suspension, etc., may occur. - Possible referral to law enforcement for citation.	

MIDDLE SCHOOL - ABSENCES

Number of Absences per Class Period	First Semester	Second Semester
Any unexcused absence	- Auto call to parents.	- Auto call to parents.
5 total absences in a single semester	- Parent notification. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.	- Parent notification. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
10 total absences in a single semester	- Parent notification and administrator contact. - Completion of loss of credit contract. - Student dropped from class (es) and/or placed on audit status for the remainder of the semester. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.	- Parent notification and administrator contact. Completion of loss of credit contract. Student dropped from class (es) and/or placed on audit status for the remainder of the semester. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
Total Absences During the Entire School Year		
15 total absences per year	- Parent notification and administrator contact. - Notification of state law. - Students with excessive excused absences may be required to provide medical documentation to remain in class and excuse any further absences.	
18 total absences per year	- Parent notification and administrator contact. - Refer to law enforcement for citation. - Withdrawal and re-enrollment process through the student's corresponding school. - Possible placement in alternative educational environment. Students with excessive excused absences will be required to provide medical documentation to remain in class and excuse any further absences.	

ARTICLE E: ATTENDANCE REGULATIONS

MIDDLE SCHOOL - TARDIES

Number of Unexcused Tardies Per Class Period	First Semester	Second Semester
1 to 4	- Teacher intervention.	- Auto call to parents.
5 total tardies per class in a single semester	- Parent notification. - Disciplinary consequence, such as lunch detention, etc., may occur. - Notification of future consequences.	- Parent notification. - If four or more are unexcused, then disciplinary consequence may occur. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
10 total tardies per class in a single semester	- Parent notification. - Disciplinary consequence, such as lunch detention, etc., may occur. - Possible in-school suspension.	- Parent notification. - Disciplinary consequence such as lunch detention, etc., may occur. - Possible in-school suspension.
Total Unexcused Tardies Per Semester		
15 total absences per year	- Parent notification. - Disciplinary consequence, such as lunch detention, in-school suspension, etc., may occur. - Notification of future consequences.	
18 total absences per year	- Parent notification. - Disciplinary consequence, such as lunch detention, in-school suspension, etc., may occur. - Possible referral to law enforcement for citation.	

ELEMENTARY (K-8) SCHOOL - ABSENCES

Number of Absences	Consequence
Any unexcused absence	- Auto call to parents.
5 total absences	- Parent notification. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
10 total absences	- Parent notification. - If five or more are unexcused, then possible referral to SRO for habitual truancy.
15 total absences	- Parent notification and administrator contact. - If five or more are unexcused, then possible referral to SRO for habitual truancy. - Possible attendance contract.
18 total absences	- Parent notification and administrator contact. - Refer to law enforcement for citation. - Withdrawal and re-enrollment process. - Students with excessive excused absences will be required to provide medical documentation to remain in class and excuse any further absences.

ELEMENTARY (K-8) SCHOOL - TARDIES

Number of Tardies	Consequence
1 to 4	- Administrator discretion.
5	- Parent notification. - Disciplinary consequence, such as lunch detention, etc., may occur (administrator's discretion).
10	- Parent contact by administrator. - Disciplinary consequence, such as lunch detention, etc., may occur.
15	- Parent meeting. - Disciplinary consequence, such as lunch detention, etc., may occur. - Notification of future consequences.
18 (or above)	- Parent meeting. - Disciplinary consequence, such as lunch detention, etc., may occur. - Possible referral to law enforcement for citation.

ARTICLE E: ATTENDANCE REGULATIONS

1. COURSE WITHDRAWAL (PER RECORD KEEPING GUIDELINES/SUSD HIGH SCHOOL PLANNING GUIDE)

Students who withdraw from a course after the first quarter mid-grade of each semester will receive a WP (athletically eligible) or WF (athletically ineligible). Credit recovery courses (online CR courses) cannot be taken to replace a WP or WF on a transcript. WP and WF do not impact the student's grade point average. Students who withdraw from a course after quarter 1 and quarter 3 will receive a mark of F (athletically ineligible) on their transcript, regardless of the current grade in the course. This policy may be waived by administration where emergencies or legitimate education plans exist.

DEFINITION OF TERMS

A. Definition of People

Students	
Inactive student	A student who previously attended and graduated, dropped out, withdrew or was expelled
Other student	Student not enrolled at the school (this includes students currently enrolled at a different school)
Student not verified in SAIS	A student who is currently enrolled at the school, but does not yet have a known SAIS ID due to technological delay (Note: student must be verified at a later date)
Student verified in SAIS	A student who is currently enrolled at the school and has a known SAIS ID
Non-Students	
ADE	Arizona Department of Education
Administrator	School or District administrative personnel
Cafeteria Staff	School or District personnel employed to assist in the preparation and serving of meals at the school
General Public	All persons not otherwise herein defined as a student, employee, or member of the faculty or staff
Governing Board	Governing Board, Scottsdale Unified School District No. 48
Intervention Planning Team (IPT)	A collaborative problem solving and systematic process to address student academic and/or behavior needs Team may be comprised of Psychologist, Administrator, Counselor, Teacher, Parent(s)/Guardian(s)
Juvenile Probation Officer (JPO)	A court appointed juvenile probation officer assigned to school(s)
LEA	Local Education Agency
Maintenance Staff	School or District personnel responsible for the upkeep and repair of school or District property or grounds
Multi-Disciplinary Team	Team may be comprised of Psychologist, Administrator, Counselor, Teacher, Parent(s)/Guardian(s)
Nurse or other Health Care Professional	Medical personnel (includes RNs and Health Assistants)
Office Staff	School or District personnel who provide clerical or office support
Other	Defined by LEA
Parent or Guardian	A parent or guardian of a student at the school
School Counselor	A school or District employee who assists students with academic achievement, personal or social development, and career development (American School Counselor Association)
Security Personnel	Personnel who ensure the safety and security of the school district's buildings and their occupants
Social Worker	A school or District employee who can assist with individual counseling with students with mental health difficulties and meeting with parents, teachers and school support personnel (National Association of Social Workers)
School Psychologist	A school or District employee who supports students' ability to learn and teachers' ability to teach. They apply expertise in mental health, learning and behavior to help children and youth succeed academically, socially, behaviorally and emotionally (National Association of School Psychologists)

School Resource Officer (SRO)	A law enforcement officer with sworn authority to maintain public order and make arrests with an assignment to a school or schools within that district
Student Teacher	Personnel who assist the instructor in the classroom to fulfill course requirements (includes Interns)
Substitute Teacher	A teacher employed by the school or District to temporarily provide instruction to students
Teacher	A teacher employed by the school or District to provide instruction to students
Teacher's Aide	A school or District employee who assists the instructor at the school
Transportation Staff	District personnel responsible for the delivery of students to and from school and school-related events
Trespasser	Any person on school property during business or non-business school hours without permission from the school administration or District
Vendor	A business representative conducting business on school site
Visitor	A person authorized to be present on school grounds for legitimate purposes

A. Definition of Actions

A.R.S.	Arizona Revised Statute
Make-up work	1) Class work – work that is initiated or completed on the day of excused absence i.e.: lab, group assignment, etc. Alternative assignment may be given 2) Long Term Homework – long term work that has been assigned prior to the absence and the due date given at time of assignment; make-up will not be allowed unless there are extenuating circumstances with administrative approval 3) Daily Homework – homework assigned the day prior to the absence
No Action Taken	No action was taken by the LEA in response to the incident
Property	Real property, and the improvements thereupon, owned by Scottsdale Unified School District No. 48
Restorative Practices	Restorative Practices can be used by administrators and teachers to resolve problems between parties that have experienced harm. These practices focus on repairing the harm that has been done. This is a non-traditional way of dealing with problems between students, as well as between staff and students. The goal is for students to come to an understanding of the root cause of the problem and to talk about it with an administrator or teacher trained in using Restorative Practices. These practices have proven to reduce suspensions, expulsions, and repeat behavior between the parties involved. Restorative Practices can also be used in conjunction with traditional disciplinary consequences.
Actions Within Due Process The right to due process in disciplinary proceedings is applicable in all instances where the behavior of the student is being evaluated for possible suspension or expulsion. The student must always be treated with fundamental fairness, has a right to be fully informed about his/her alleged breach of behavior and must be provided with an opportunity to respond to such charges.	
Appeal Review	When an appeal under section 615(k)(3) of the IDEA has been requested by either the parent or the LEA, the state or LEA shall arrange for an expedited hearing, which shall occur within 20 school days of the date the hearing is requested and shall result in a determination within ten school days after the hearing. IDEA 2004 [615(k) (4) (B)].

Disciplinary Hearing	An official meeting that is held to gather facts about a disciplinary action imposed on a student. This hearing is often done with a designated disciplinary hearing committee, one or more hearing officers, or school board
Individualized Education Program (IEP) Team Meeting	The IDEA federal regulations mandate that certain disciplinary actions by schools trigger the need for an IEP team meeting when: • A student is suspended for more than ten consecutive or cumulative days in a school year; • A student is considered for expulsion; • The IDEA regulations are not fully included here, but in brief, they require that IEP team meetings held to address disciplinary issues must perform these tasks: » Review the child's IEP to determine if it contains all of the required parts. » Determine if the IEP is appropriate, given the child's behavioral needs. » If the IEP is not appropriate, the team must develop appropriate goals, objectives, a behavior intervention plan, and support services such as counseling, referral to area mental health services, or other appropriate service to address any deficient areas on the plan. » Determine if the educational setting is appropriate for the child. » Does he need a more structured environment, an alternative program, day treatment, or other program? If the setting is not appropriate, the team must provide an appropriate placement. » Determine if the child's behavior is related to the disability. If the child's behavior is related to the disability, schools are not to continue suspending or expelling the student without providing special education services that are required by the IEP. Instead, they must focus on providing an appropriate program to accommodate the disability. Schools are required to provide a full continuum of educational placements to meet a broad range of needs. Schools must ensure that regardless of suspensions or expulsions: • Special education students receive the same services that regular education students receive during suspension or expulsion; • Special education students receive services required by the IEP; and • Services are provided in appropriate settings. Special circumstances exist when students are disciplined for weapons, assault with serious bodily injury or drugs, and different rules will apply.
Manifestation Determination	Within 10 school days of any decision to change the placement of a child with a disability because of a violation of a code of student conduct, the LEA, the parent, and relevant members of the child's IEP team(as determined by the parent and the LEA) must review all relevant information in the student's file, including the child's IEP, any teacher observations, and any relevant information provided by the parents to determine**:** • If the conduct in question was caused by, or had a direct and substantial relationship to the child's disability; or • If the conduct in question was the direct result of the LEA's failure to implement the IEP per the Office of Special Education Programs (OSEP).

Placement Review Committee	**A.R.S. §15-841**. Responsibilities of pupils; expulsion; alternative education programs; community service; placement review committee. Each school shall establish a placement review committee to determine the placement of a pupil if a teacher refuses to readmit the pupil to the teacher's class and to make recommendations to the Governing Board regarding the readmission of expelled pupils. The process for determining the placement of a pupil in a new class or replacement in the existing class shall not exceed three business days from the date the pupil was first removed from the existing class. The principal shall not return a pupil to the classroom from which the pupil was removed without the teacher's consent unless the committee determines that the return of the pupil to that classroom is the best or only practicable alternative. The committee shall be composed of two teachers who are employed at the school and who are selected by the faculty members of the school and one administrator who is employed by the school and who is selected by the principal. The faculty members of the school shall select a third teacher to serve as an alternate member of the committee. If the teacher who refuses to readmit the pupil is a member of the committee, that teacher shall be excused from participating in the determination of the pupil's readmission and the alternate teacher member shall replace that teacher on the committee until the conclusion of all matters relating to that pupil's readmission.
Board Review	School boards have the right to review student disciplinary actions imposed by a disciplinary hearing committee.

Expulsion:

A.R.S. §15-840(1). "Expulsion" means the permanent withdrawal of the privilege of attending a school unless the Governing Board reinstates the privilege of attending the school.

A.R.S. §15-841. Responsibilities of pupils; expulsion; alternative education programs; community service; placement review committee.

A pupil may be expelled for continued open defiance of authority, continued disruptive or disorderly behavior, violent behavior that includes use or display of a dangerous instrument or a deadly weapon as defined in section 13-105, use or possession of a gun, or excessive absenteeism. A pupil may be expelled for excessive absenteeism only if the pupil has reached the age or completed the grade after which school attendance is not required as prescribed in section 15-802. A school district may expel pupils for actions other than those listed in this subsection, as the school district deems appropriate.

A school district or charter school shall expel from school for a period of not less than one year a pupil who is determined to have brought a firearm to a school within the jurisdiction of the school district or the charter school, except that the school district or charter school may modify this expulsion requirement for a pupil on a case by case basis. This subsection shall be construed consistently with the requirements of the Individuals with Disabilities Education Act (20 U.S.C. §§ 1400 - § 1420).

*Expulsion with Services	The student was expelled from and is no longer enrolled in his or her regular school setting. Arrangements made for the provision of educational services.
*Expulsion without Services	The student was expelled from and is no longer enrolled in his or her regular school setting. Total cessation of educational services.

Suspension:

A.R.S. §15-840(2). "Suspension" means the temporary withdrawal of the privilege of attending a school for a specified period of time.

DEFINITION OF TERMS

*In School Suspension (ISS)	Instances in which a child is temporarily removed from his/her regular classroom(s) for disciplinary purposes but remains under the direct supervision of school personnel. Direct supervision means school personnel are physically in the same location as students under their supervision. (OSEP)
*Out of School Suspension (OSS)	Instances in which a child is temporarily removed from his/her regular school for disciplinary purposes to another setting (e.g., home, behavior center). (OSEP)
*Long Term Suspension	Instances in which a child is temporarily removed from his/her regular school for disciplinary purposes for a period of eleven days or more. (OSEP)
*Short Term Suspension	Instances in which a child is temporarily removed from his/her regular class. This includes both removals in which no IEP services are provided because the removal is 10 days or less as well as removals in which the child continues to receive services according his or her IEP. (OSEP)
*Suspension With Services	Instances in which a child is suspended and receives educational services.
*Suspension Without Services	Instances in which a child is suspended and does not receive educational services.

ALTERNATIVE EDUCATIONAL PROGRAMS

The District may reassign students who refuse to comply with District rules, refuse to pursue a required course of study, or refuse to submit to the authority of teachers, administrators, or the Governing Board to an alternative educational program. A student may also be reassigned to an alternative educational program in lieu of long-term suspension or expulsion. A student who has been placed in an alternative program may not participate in any activities of the regular school program, including the regular summer school program, and/or return to the regular school program without the approval of the District.

ATHLETICS AND EXTRA-CURRICULAR ACTIVITIES

The District offers a wide range of opportunities for students to participate on athletic teams at the high school and middle school level. Several sports offer competition at the freshman, junior varsity, and varsity levels. The District is a member of the Arizona Interscholastic Association and has high schools in the 6A, 5A, 4A, and 3A Conferences. For information regarding athletic policies, eligibility, and participation requirements, refer to the Athletic Code of Conduct, which is provided to every athlete at the beginning of the sports season. The Athletic Code of Conduct is complete in its entirety, applies during the school year, and is not inclusive of summer activities sponsored by the District.

Eligibility Requirements

SUSD has established a 2.0 current GPA as the minimal standard for participation

- State No Pass/No Play requirements are determined by no F's at the most recent marking period
- Students below a 2.0 GPA or with an F in the current marking period will be ineligible for interscholastic competition
  - » Require frequent grade checks -minimum every 4.5 weeks to determine current GPA and any Fs
- If a student has below a 2.0 GPA and participates in AIA sanctioned athletics the following applies:
  - » Students are eligible to practice before the next grade check
  - » Students who become academically ineligible are ineligible for one week and can compete when the student presents evidence to administration that he/she has a current GPA of above a 2.0 and no Fs after that week as prescribed by the SUSD Grade Check Calendar
  - » Transfer students will be evaluated based on their current transfer grades
- The general standards shall apply to special education students, except that such eligibility shall be determined by a case-by-case basis in relationship to the respective students' Individual Education Program. The general standards shall apply to English language learners determined by a case-by-case basis in relationship to their Individual Language Learning Plan
- Students who withdraw from a brick and mortar or full semester eLearning course after the first quarter mid-grade of a semester will receive a mark of WP (athletically eligible) or WF (athletically ineligible SUSD HSPG)
- Students who withdraw from a brick and mortar or full semester eLearning course after quarter 1 and quarter 3 will receive a mark of F on their transcript, regardless of the current grade in the course (SUSD HSPG)

GENERAL INFORMATION

BIRTHDAY, OTHER CELEBRATION AND NUTRITIONAL STANDARDS

We understand that parents and friends like to celebrate various occasions. However, balloons, cakes, candy, flowers, etc. cause many distractions and are not allowed on the bus. These items are disruptive in the classroom and are a safety concern on the bus. If they are delivered, they will be kept in the office. This helps ensure that instructional time is protected and that all students are treated equally.

When planning snacks for classroom parties/celebrations, state law requires that no home-cooked food be distributed to students during school hours. This practice is intended to protect students from the spread of communicable disease. For parties/celebrations/activities during the school day that include food for students, foods must comply with the Arizona Nutrition Standards (Policy reference JL and regulation JL-R). For more detailed information on the state nutrition standards, please refer to www.ade.az.gov/health-nutrition.

BUS ASSIGNMENTS

Students may be required to carry and/or wear a school identification card issued by the administration in order to utilize busing services. Students not previously assigned to ride a particular bus must seek permission to do so. Parents must request such permission from school administration and/ or designee, who will communicate to the driver accordingly. Students shall observe District policies, regulations and rules, including those outlined in Article B, while being transported.

CHILD ABUSE REPORTING

Per state law, and Governing Board policy, school employees and certain volunteers who reasonably believe that a child has been the victim of neglect, abuse, and/or non-accidental injury, or sexual offenses must report suspected activity to Department of Child Safety (DCS) and/or local law enforcement agencies. Where a parent or guardian is the alleged abuser, school personnel are not to notify parent or guardian. DCS and law enforcement agencies are responsible for notification. Should the alleged perpetrator be other than a member of the child's family, volunteer and school personnel shall follow reasonable notification procedures.

Individuals required to report reasonable suspected abuse are protected by state law from civil or criminal liability.

Schools shall comply with request by DCS or the Police Department to question any child who is a suspected abuse victim. The investigating agency will determine whether school personnel should be with the child during questioning. The DCS worker and/or the police may interview the child and all other children residing in the home, on school grounds outside of the presence of school personnel. They may conduct interviews of the child without permission or notice to the parents where the suspected perpetrator is a family member. DCS also has the authority, upon written request, to obtain school records. (A.R.S. §13-3620).

CLOSED CAMPUS

A. Elementary and Middle Schools are closed campuses and use the "gate to gate" system from time of student drop off to pick up. Consequences for violation are determined by the administration in accordance with Article B, Behavior.

B. High School campuses are closed to all students throughout their scheduled day, including lunchtime. Students who need to leave for medical reasons or special circumstances must obtain administrative permission in advance and may not leave campus without a pass from the front office or the nurse's office.

The principal (or designee) will have discretion to grant students permission to leave the campus during the school day. Consequences for violation are determined by the administration in accordance with Article B, Behavior.

COMMUNICATION IN LANGUAGES OTHER THAN ENGLISH

Written translation services are provided upon request in Spanish. Oral interpretation services are provided upon request in Spanish by Translation Services and in languages other than Spanish through the Language Line. For further assistance, call 480-484-5060.

Español:

Este documento y otra información se encuentra disponible en la oficina de su escuela o en la página Web del Distrito www.susd.org. Si necesitan servicios de interpretación, por favor comuníquense con la oficina de su escuela o llamen a Servicios de Traducción al 480-484-5060.

Francés:

Si vous avez des questions sur des parties du présent document ou si vous désirez obtenir des explications verbales sur des renseignements concernant l'école, veuillez communiquer avec les services de traduction au 480-484-5060.

Árabe:

فضلك اتصل بـ Translation Services (خدمات الترجمة) على إذا كانت لديك أسئلة حول أقسام هذه الوثيقة أو إذا كنتَ بحاجة إلى ترجمة المعلومات المدرسية شفهيا، من الرقم: 480-484-5060.

Ruso:

Если у Вас возникли вопросы по поводу информации, указанной вразделах данного документа, или Вам необходим устный перевод информации о школе, обратитесь в Службу переводов по телефону 480-484-5060.

Farsi:

خدمات ترجمه به شماره داشتید و یا نیاز داشتید اطلاعات مربوط به مدرسه بصورت شفاهی در صورتی که در مورد قسمت های [مختلف] این سند پرسشی 480-484-5060 تماس بگیرید ترجمه شود، لطفا با مرکز

COMMUNITY SERVICE

It is the parent/guardian/student's responsibility to find appropriate Community Service opportunities when given as a school consequence. Student must receive school site administrative approval before beginning service and provide documentation of completed service to site administration.

COMPUTER AND NETWORK RESOURCES

Please refer to Technology and Network Resource Policy.

CURFEW

Both the City of Scottsdale and City of Phoenix have curfew hours of 10:00 p.m. to 5:00 a.m. for minors fifteen years old or under, and midnight to 5:00 a.m. for minors who are sixteen or seventeen years old.

CUSTODY

In cases where custody/visitation affects the school, the school shall follow the most recent court order on file with the school. It is the responsibility of the custodial parent, or parents having joint custody, to provide the school with the most recent court order.

DRESS CODE/GROOMING

Student dress and grooming are generally a matter of personal choice. Therefore, unless a campus has a school uniform, the District allows for students to express their individual style and preference as long as students' dress and/or grooming do not pose a risk to the health, safety, or general welfare of students, staff or others.

=The Scottsdale Unified School District's Guidelines for Dress are as follows:

Students Must Wear:

- Clothing that covers private body parts (genitals, buttocks, chest or nipples, and navels) with non-see-through material

- Tops
- Bottoms
- Shoes, must have hard soles **
- School IDs*

Students May Wear:

- Clothing with images/logos that adhere to dress code guidelines
- Dresses, pants, shorts, skirts, sweatpants
- Fitted or tight pants including skinny jeans, non-see-through leggings or yoga pants
- Hats and any other head coverings that allow the face and ears to be visible to school staff are allowable, except when asked for it to be removed by a staff member
- Hoodie sweatshirts (no hoods worn inside classrooms or buildings)
- Religious headwear and other religious head/face coverings
- Ripped jeans, as long as underwear is not exposed
- Strapless, sleeveless, or off-the-shoulder tops or dresses, if worn under a non-see-through garment
- Tank tops, including those with spaghetti straps

Students Cannot Wear:

- Gang-identifying clothing or tattoos
- Hate speech, profanity, nudity, or pornography
- Images or language depicting alcohol, drugs, drug paraphernalia (or any illegal item or activity)
- Violent images or language
- Visible underwear
- Some specialized programs may require specialized attire

Consequences for Violation:

In addition to any disciplinary action taken pursuant to Article B, students who do not adhere to the District's Guidelines for Dress may be asked to do any of the following: turn inappropriate clothing inside out, change into clothing that may be provided by the school, have other clothing brought to school, or remove the accessory.

* Items indicated with an asterisk may only apply to middle school and high school

** Elementary-aged students must wear closed-toe shoes

FOOD DELIVERY

Due to food allergies and safety concerns, food for students may only be delivered to the front office by a parent/guardian for their child only. Outside delivery services are not permitted at any time.

GRADUATION REQUIREMENTS

Please refer to High/Middle School Planning Guides for SUSD graduation requirements.

IDENTIFICATION CARDS

During the school day, all middle and high school students are required to wear their school identification in such a manner that it is clearly visible at all times. Elementary students may be required to wear their school identification at certain times throughout the day as deemed appropriate based on grade level, nature of the activity, etc. Students must surrender their school identification card to any school employee upon request. Students must be in possession of their identification card at all school related functions (e.g., dances, activities, and athletics.) School identification is required to ride the school bus, purchase food on a lunch account, check out a library book or access an account at the bookstore. Identification cards must be from the current school year and may not be altered.

Initial identification cards are provided free of charge. Students are required to pay $5.00 for any lost or damaged identification cards.

IMMUNIZATIONS

Arizona law requires documentary proof of immunity against certain childhood diseases for students attending Arizona schools for the first time. Students subject to this requirement who lack documentary proof of immunizations may enroll but not attend classes until proof is provided. If required, immunizations become due during attendance, failure to comply will result in exclusion from school, in accordance with state law. Exemption from immunization requirements for medical reasons or personal beliefs is available. A detailed list of immunizations required, or further immunization information is available from the school nurse or on the SUSD website (Student Services – Health Services). *See A.R.S. §15-872*.

INSURANCE

The District does not carry insurance for students' medical or dental costs if they are injured during school activities. Parents are responsible for their child's insurance. Insurance is required to participate in SUSD Athletics and options for purchase are available through SUSD.

An optional school day or 24-hour accident policy is available at school through a private agency. Like most insurance policies, there are some coverage limitations and exclusions. Information on the policy is available from each school's office. The schools issue these forms or provide contact information as a service to students and parents; the District has no other connection with the insurance company. Parents may pick up additional forms and purchase insurance at any time throughout the school year.

In an emergency, the school may call paramedics who may decide that an ambulance should be called. The parent pays for these services.

LAW ENFORCEMENT OFFICERS

If a law enforcement officer requests an interview with a student regarding a criminal investigation, the school administrator shall make reasonable efforts to notify the student's parent of the interview request, unless the law enforcement officer deems that notification would interfere with the investigation.

If the law enforcement officer refuses to allow notification prior to the interview, either the law enforcement officer or a representative of the District will notify the student's parent within a reasonable time after the interview. Unless otherwise directed by the law enforcement officer, a school official may be present during the interview.

If a student is taken into custody (arrested) while on campus, the arresting officer will be asked to notify the student's parent or legal guardian. In addition, the school administrator shall make reasonable efforts to ensure the student's parent has been notified that the student has been taken into custody. The personnel of the District shall cooperate

fully with law enforcement officers. When the arrest is formally made, the District and its employees no longer exercise jurisdiction over the student.

No student will be surrendered to a special police officer serving a private organization.

MEDICATIONS

When it is necessary for a student to take medication during school hours, school personnel may cooperate if the following conditions are met:

All Medications:

A. All medication administered by school personnel must be approved by the U.S. Food and Drug Administration (FDA). Information on dosage, side effects and contraindications of any medication or medicinal like substance, e.g., homeopathic and herbal remedies, given by school personnel must be readily available from a professionally acknowledged resource (Physician' Desk Reference or other U.S. published drug reference book, FDA or USP website, etc.).

B. A student with special written request of the physician, parent / guardian and student *(See "Special Consent to Carry Medication")* below shall keep all medication in secured storage in the Health Center with the exception of emergency medications that may be carried.

C. Before the end of the school year, the parent or legal guardian will be notified to pick up any leftover personal medication from the Health Center. Medications not returned to the family will be discarded in an appropriate and legal manner.

Prescription Medications:

A. No student will be given prescription medication except upon order from a U.S. licensed physician, nurse practitioner, physician assistant or dentist who has the responsibility for medical management of the student.

B. Written parent/guardian request and consent (Form HMES-503) is required for the administration of prescription medication. Parent/guardian consent must be renewed annually.

C. Prescription medication must be in the original container with a pharmacy label listing the student's name, medication name, dosage and the prescriber's name. (Prescriber's phone number must be on the label or on file in the Health Center)

D. A written order from the prescriber must accompany any change in medication dosage.

E. No sample medication will be given unless accompanied by a written note from the prescribing physician/ healthcare provider.

F. Administration of the medication during the school day must be medically necessary. The school nurse will determine the schedule for medication administration unless specified by the prescriber.

G. The parent/guardian assumes full responsibility for the supply, appropriate transportation and maintenance of prescription medication.

H. Reasonable efforts will be made to ensure that the student receives his/her medication. If a student persistently skips medication doses, the parent will be notified.

I. Pursuant to the Arizona Medical Marijuana Act, ARS 36-2801, et seq., the District will not refuse to enroll a student or otherwise penalize a student for being a medical marijuana cardholder unless failure to do so would cause the school to lose a monetary or licensing benefit under federal law or regulations. A student medical marijuana cardholder shall not possess or engage in the use of marijuana on District property, in a District vehicle, or at a District-sponsored event.

Special Consent to Carry and Self-Administer Medication:

A. In cases of life-saving medication when time is of the essence, particularly asthma inhalers and self-injectable epinephrine, students may be allowed to carry and self-administer such medication on school grounds and/or at school functions.

B. Such situations require a release form signed by the healthcare provider, the parent/guardian and the student.

C. The above policy shall not be interpreted to allow a student to carry any medication a physician and parent should decide upon. This policy gives authorization for life saving/emergency medication only.

D. Students who have obtained permission for self-administration as set forth above must take extraordinary precautions to keep the medication secure, and must not, under any circumstances, make available, provide, or give the medication to another person. The student must immediately report the theft or loss of any medication brought on campus.

Non-prescription/Over-the-Counter (OTC) Medications:

A. If a parent/guardian wishes administration of an OTC medication, the parent/guardian will complete a "Parent Request for Administration of Medication" Form HMES-503 and supply the school with the medication.

B. Parent-supplied OTC medication must meet the guidelines of paragraph A of "All Medications" set forth above and must be in its original, unopened container and labeled with the student's name.

C. Administration of parent-supplied medication will be at the discretion of the school nurse and at a dosage in keeping with manufacturer's recommendations.

PARENT LIABILITY

Under Arizona law, upon complaint of the Governing Board, the parents of minors who cut, deface, or otherwise damage any school property shall be liable for all damages caused by their children. *See A.R.S. § 15-842(B)*.

PAYMENT FOR OPTIONAL MATERIALS/SERVICES AND/OR LOST AND DAMAGED ITEMS

When students enroll in school, there are some required and non-required materials and services. Basic course materials, identification cards, and some lockers are required and are provided free of charge. No student will be denied an education because of an inability to pay these supplementary charges. Some lockers and locks, activity cards, parking permits, yearbooks, and supplemental course materials and services are not required and are not provided free of charge.

Students are required to pay for any lost or damaged textbooks, identification cards, and/or other course materials. If students do not meet their financial obligations for lost or damaged materials, they may not be allowed to participate in extracurricular activities or graduation exercises.

PESTICIDES

Schools periodically apply pesticides. Information concerning these applications may be obtained by calling your school office.

PRODUCT SALES

Groups wishing to sell products on campus must be officially recognized school organizations and must have the sale approved by the principal and student council. All funds collected must be deposited in the school's student funds account.

GENERAL INFORMATION

SCIENCE/PERFORMING ARTS/VISUAL ARTS SAFETY

The Scottsdale Unified School District prioritizes safety for all students while providing hands on technical experience in science, performing arts and visual arts. It is imperative that all students comply with Science and Fine Arts Safety Contracts based on Occupational Safety and Health Administration (OSHA) Safety Standards within the Science, Visual Arts Photography, Auditorium and Theater Labs. In general, all students must (a) follow the teacher's instructions and safety procedures on the operation of lighting equipment, power saws and any additional electrical machinery; (b)understand the labels and the information of chemicals based on Material Safety Data Sheets posted in the classrooms; (c) protect their eyes, face, and hands during equipment manipulation and labs; (d) conduct themselves in a responsible manner at all times in the classroom, labs and on the stage; (e) abide by all of the safety regulations specified by OSHA Safety Standards.

SCOOTERS, SKATEBOARDS, OR ROLLERBLADES/SHOES

In order to protect the safety and well-being of students, faculty and others, students are prohibited from using scooters, skateboards, roller blades/shoes, hover-boards or similar devices used as a means of transportation on campus at any time. Violation of this rule will subject the student to discipline as set forth in Article B.

SEARCH AND SEIZURE

School administrators have the right to search students and seize property when administrators have a reasonable suspicion that the search will turn up evidence that the student has violated or is in violation of either the law or the rules of the school. District Security staff may also conduct student searches at the direction of a school or district administrator. Any search will be reasonable in scope and not excessively intrusive on the student, considering the age, sex of the student, and nature of the infraction. Inspections of school-provided storage space are not subject to the reasonable suspicion standard, and canines and/or other detection resources may be used to assist in these inspections. Application of this policy in selected contexts is discussed below, Board Policy JIH.

1. School-Provided Storage Space: Students have no reasonable expectation of privacy in school-provided storage space, such as lockers and desks. Such storage space, which is provided only as a convenience to students, remains the property of the school and is subject to its control and supervision. Thus, school authorities may inspect randomly at any time, with or without reason, without notice, without student consent, and without a search warrant, lockers, desks, and other school-provided storage space. However, personal belongings contained in backpacks or purses and stored in school-provided storage will be searched only if reasonable suspicion exists for such a search as provided below.

   Students who accept lockers or desks assume full responsibility for the security of their lockers or desks. Whenever a student is required to or exercises an option to provide his or her own lock to secure a school-provided storage space, the student must provide the combination or key to the school authority who issued the storage space.

2. Student's Person and Personal Belongings: Students have a reasonable expectation of privacy in the personal belongings they carry with them at school on their person or in items such as backpacks and purses. However, a search of a backpack, purse, or similar item is permissible when school authorities have a reasonable suspicion that the search will turn up evidence that the student has violated or is violating either the law or the rules of the school. Searches of a student's person are also permitted, based upon reasonable suspicion. Such searches may include a request to empty one's pockets or a request to remove outer garments, such as jackets or sweaters, but such a search will not include removal of other clothing. Strip searches are prohibited.

3. Vehicles in School Parking Lots: The school retains authority to conduct routine patrols of student parking lots and inspections of the exteriors of student automobiles on school property. Such patrols and inspections may be conducted without notice, without student consent, and without a search warrant. The interiors of student vehicles may be inspected whenever a school authority has a reasonable suspicion the search will turn up evidence that the student has violated or is violating either the law or the rules of the school, Board Policy JLIE-R. The school is not liable for items left in vehicles.

STUDENT CELL PHONES

While on campus, students will keep cell phones turned off and stored unless use is permitted by an administrator or teacher. If the use of the cell phone is permitted, it must remain on silent mode. The cell phone may not make any sounds that disrupt learning, cause a disturbance or jeopardize the safety of students. Students will be responsible for their own cell phone. Students will be responsible for the daily storing, carrying and taking home of their cell phone. The school/district is not responsible for lost, stolen or damaged cell phones. Students will charge their cell phone prior to use on campus. Student cell phone numbers may be requested as part of the registration process. Student cell phone numbers will be used by administrators only for emergencies, safety issues, etc. Teachers will not use student cell phone numbers for any reason.

SURVEILLANCE

Scottsdale Unified School District authorizes the use of surveillance cameras in school buses and on District property to ensure the health, welfare and safety of all students, employees and visitors, and to safeguard District facilities, vehicles and equipment. Video and/or audio recordings may be used as evidence in any disciplinary action, administrative proceeding or criminal proceeding, and, during certain circumstances, may become a part of a student's educational record.

TECHNOLOGY AND NETWORK RESOURCE POLICY

Expectations

Please read this document carefully. When you enroll in the Scottsdale Unified School District (SUSD), the Uniform Code of Student Conduct becomes an agreement between you and SUSD whereas the parent(s)/guardian(s) and students agree to abide by the conditions and guidelines established herein.

Terms and Conditions of This Agreement

These policies shall apply to:

1. Students who use computers located within, or issued by, the Scottsdale Unified School District.
2. Students who access network resources available through the Scottsdale Unified School District.
3. Students who use personal computing devices such as laptops, cell phones, smartphones, tablets, slates, etc. Students should refer to the SUSD Technology Responsible Use Agreement.

A. Personal Responsibility

Students will accept personal responsibility for reporting misuse of the network. Misuse can come in many forms, but it is commonly viewed as sending or receiving material that exhibits or promotes pornography or violence, unethical or illegal behavior, racism, sexism, or inappropriate language, or constitutes a violation of the guidelines set forth below. The District is not responsible for loss, damage or expenses incurred through the use of personal computing devices by a student. The District may restrict or prohibit the use of personal computing devices as appropriate. Uses of personal computing devices are subject to the Acceptable Use Guidelines as defined by this policy.

B. Acceptable Use Guidelines

- Student will use computers, network resources, and personal technology devices for educational purposes only.
- Student will not submit, publish, display, retrieve, distribute, or attempt to retrieve or distribute any defamatory, inaccurate, abusive, obscene, profane, threatening, sexually oriented, racially offensive, or illegal material.
- Student will abide by all copyright and trademark laws and regulations.

- Student will not reveal logins or passwords, nor will attempt to discover the login or password of others nor enter, modify or delete unauthorized computer files.
- Student will not reveal home addresses, personal phone numbers or personally, identifiable data unless authorized to do so by designated school authorities.
- Student will not use the network in any way that would disrupt the use of the network by others.
- Student will not use the network to earn money.
- Student will not attempt to harm, modify, add or destroy hardware or software, nor interfere with system security, including but not limited to, uploading or creating computer viruses, using anonymizing proxy site or software to bypass content filtering.
- Student understands that using non-educational gaming sites or making credit card purchases is prohibited. Further, use of electronic communication (i.e. email and texting) must comply with guidelines set forth in the SUSD Technology Responsible Use Agreement.

A. Privilege

The use of District computers and network resources is a privilege, not a right, and may be revoked at any time

B. Service

The Scottsdale Unified School District reserves the right to monitor use of District computers and network resources. In particular, electronic mail or direct electronic communication is not private and may be read and monitored by school employees. Should it become necessary, files may be deleted. All files are public records.

The Scottsdale Unified School District is not responsible or liable for any service interruptions, changes or consequences resulting from system use, even if these arise from circumstances under the control of the District.

The Scottsdale Unified School District may impose additional rules as needed for the operation of the system.

C. Consequences

Infractions of the provisions set forth in this agreement may result in suspension or termination of access privileges and/or appropriate disciplinary action, up to and including expulsion.

D. Parental Agreement

Technology and Network Policy and the SUSD Technology Responsibility Use Agreement. I understand that access to computers and network resources is provided for educational purposes only and that students are required to refrain from sending or receiving illegal or offensive material. I also accept full responsibility for supervision if and when my child's use is not in a school setting. I hereby give permission for my child to use network resources.

SUSD TECHNOLOGY RESPONSIBLE USE AGREEMENT

SUSD Technology Responsible Use Agreement applies to both district-owned technology and personal electronic devices. Personal electronic devices may include (but are not limited to) cell phones, laptops, tablets, smart watches, eReaders, iPods, iPads, gaming devices, and digital cameras. Parent(s) and/or guardian(s) are responsible for giving permission for their child to bring a personal electronic device to school for the purpose of instructional use. Students will not be required to bring a personal electronic device to school. Parents and students agree to take full responsibility for the device if it is brought onto a campus. SUSD Uniform Code of Conduct outlines the agreement students and parents make to abide by conditions and guidelines for personal responsibility, acceptable use, privileges, services and consequences established to ensure responsible use of District and personal devices. Agreements for using a personal electronic device at school include respectful use, responsible use, and safe and proper use.

Respectful Use:

Agreement #1:	While on campus, students will keep personal electronic devices off and stored unless use is permitted by an administrator or teacher.
Agreement #2:	If the use of a personal electronic device is permitted, the device must remain on silent mode. The device may not make sounds that disrupt learning, cause a disturbance or jeopardize the safety of students.
Agreement #3:	All media, messages and use of applications must be course related and used for instructional purposes.
Agreement #4:	Students will respect the property of others and not take or use another person's property without permission.
Agreement #5:	All media published about others, including (but not limited to) video, audio or images, must first be approved by the people involved and a teacher or administrator.

Responsible Use:

Agreement #6:	Students will treat all devices with respect and care.
Agreement #7:	Students shall be responsible for their own property. Students will be responsible for the daily storing, carrying and taking home of their personal device. The school/District is not responsible for lost, stolen or damaged property.
Agreement #8:	Harassment, cheating, plagiarism, bullying (including cyber-bullying) or any form of inappropriate use of a personal communication device and social media will not be tolerated. Students may lose usage privileges and be subject to school, District, and legal consequences for inappropriate use.
Agreement #9:	Students will charge their personal electronic devices prior to use on campus

Safe and Proper Use:

Agreement #10:	Students will follow safe and appropriate usage guidelines. [Always remember no message/ media is private – your digital footprint is permanent]
Agreement #11:	Students will work only with documents/materials that they have created and abide by all applicable copyright laws.
Agreement #12:	Students will only access the internet through the SUSD Secure Wi-Fi server while on campus. The school/District is not responsible for additional charges incurred for use during school while not on the SUSD server. Students will pay all fees for their data plan.
Agreement #13:	Students will keep logins, passwords and personal information confidential.
Agreement #14:	Students will access only legal, ethical and school appropriate material on the internet.
Agreement #15:	Students will report any misuse or inappropriate use of the SUSD network to a teacher or administrator.

GENERAL INFORMATION

TELEPHONE MESSAGES

Due to the disruptive impact on staff and the operations of the school, except in emergencies, telephone messages for students will not be accepted.

TRIP REDUCTION

As required by the Maricopa County Trip Reduction Plan, this serves as formal notification that SUSD supports ride sharing. For more information go to: www.sharetheride.com.

UNIVERSAL PRECAUTIONS (COMMUNICABLE/ INFECTIOUS DISEASES)

To prevent the spread of communicable diseases, the District has instituted "universal precautions" which are recommended by the Center for Disease Control http://www.cdc.gov and Maricopa County Department of Health http://www.maricopa.gov/publichealth/.

To safeguard students and staff, school-based employees regard all body fluids as potentially infectious. They are trained to avoid direct contact if possible, to wear gloves if necessary, to wash hands thoroughly and to report injuries to the nurse immediately.

Students are not to touch blood or body fluids and should seek adults for assistance.

VISITOR/GUEST PASSES

All visitors to any school during the school day must report to the school office upon arrival, must sign in on the visitor's log, and must obtain a visitor's pass. Visitors must provide identification upon request in order to obtain a visitor's pass. "Visitors" include (1) persons not enrolled in or employed by the District (including relatives of District employees), (2) District employees, when not working on District business, and (3) District students, when they are not at the site at which they are enrolled. Scottsdale Unified School District does not allow on-campus visitations by minors and non-students. Visitors who fail to comply with this rule may be in violation of criminal trespass laws, student behavioral expectations, or both. *See A.R.S. §13-1502(A)(1); see also Article B, Behavior ("Trespassing")*.

WITHDRAWN STUDENTS

Students who have been withdrawn from school and who are present on the school campus in violation of District policies and procedures regarding visitors are considered to be trespassing.

DRUG AND ALCOHOL USE BY STUDENTS

PROHIBITED CONDUCT

Students are prohibited from:

- Possessing, using, or distributing, alcohol or other drugs within the District's drug free school zone, regardless of whether the violation is sufficient to support prosecution under relevant criminal laws;
- Being under the influence of alcohol or other drugs within the District's drug free school zone, regardless of whether the level of intoxication is sufficient to support prosecution under relevant criminal laws, and regardless of whether the alcohol or drugs were consumed prior to entering the District's drug free school zone;
- Possessing, using, or distributing drug paraphernalia within the District's drug free school zone.

CONSEQUENCES

Students who violate this policy shall be subject to disciplinary actions in accordance with the Uniform Code of Conduct. In addition, students who violate this policy may be subject to prosecution in accordance with the provisions of law. If the student is a graduating senior and the offense occurs during the last 60 days of second semester, the student may participate in the graduation ceremony, only. A diploma will be granted only after drug/alcohol classes and community service hours are completed, with the following conditions:

- Student must be accompanied to the ceremony by a parent/guardian
- Student will not be allowed to participate in other graduation activities
- Student's diploma will be held until all aforementioned requirements have been completed

DEFINITIONS

"Distribution"
For purposes of this policy, the term "distribution" includes any transfer or attempted transfer of drugs or alcohol from one individual to another.

"Drugs"
For purposes of this policy, the term "drugs" means any potentially mind-altering substance or substance capable of producing a change in behavior, and includes, without limitation, the following substances:

- Any "controlled substance" as defined in A.R.S. §§ 36-2501 through 2516 (Controlled Substances, Schedules I-V);
- Any substance that may subject a person to criminal prosecution under A.R.S. §§13-3402 (Peyote), 13-3405 (Marijuana), 13-3407 (Dangerous Drugs), 13-3408 (Narcotic Drugs), and 13–3411(Possession, Use, Sale, Transfer of Drugs in a Drug Free School Zone);
- Any vapor releasing substance containing a toxic substance, as defined in A.R.S. §13–3401(38), except such vapor releasing substances properly used under the direct supervision of a District employee in connection with a school-related activity;
- Any prescription or over-the-counter medication not otherwise exempt from this definition. A prescription or over-the-counter medication is exempt from this definition if:
    1. Permission for possession and use of the prescription or over-the-counter medication in school has been granted pursuant to Board Policy JLCD *(see also Code of Conduct, General Information, "Medications")*; or
    2. Despite failure to obtain permission pursuant to Board Policy JLCD, the prescription or over-the-counter medication is:
        a. Prescribed for personal use and is used in accordance with the physician's written directions (prescription medication), or
        b. Possessed for personal use and is used in accordance with the manufacturer's written directions (over-the-counter medication).

NOTE: Such violations of Board Policy JLCD may still result in discipline under the District's "Medications" policy. See Code of Conduct, Article B, "Medications (Unauthorized Possession, Use)".

- Any substance that the user possesses, transfers, or represents to be a substance otherwise covered by this definition;
- Any alcoholic beverages.

"Drug Paraphernalia"
For purposes of this policy, the term drug paraphernalia includes, without limitation, items defined in A.R.S. § 13-3415, and any equipment, product, or material of any kind that is used, intended for use, or designed for use in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, containing, concealing, injecting, inhaling, or otherwise introducing into the human body a drug in violation of the law or this policy.

"Drug Free School Zone"
For purposes of this policy, the term "drug free school zone" includes, without limitation,

- Any property owned or leased by the District, including, without limitation, school grounds, school buildings, school parking lots, and school playing fields;
- The area within 300 hundred feet of a school or its accompanying grounds, and any public property within one thousand feet of a school or its accompanying grounds;
- Any off-campus property when used for a District function or school-related activity;
- School buses and other vehicles used by District employees to transport students to and from school or school-related activities; School bus stops;
- Any violation of this policy that occurs on the way to or from school;
- Any violation of this policy that is deemed to have a direct impact on the safety or general welfare of the school, staff, or students, or that otherwise adversely affects the school order, regardless of where or when the violation occurs.

"Possession"
For purposes of this policy, "possession" includes, without limitation, (1) having under one's control (e.g., on one's person, in one's personal belongings, in one's locker, in one's car), (2) purchasing, or (3) otherwise receiving drugs or alcohol.

"Under the Influence"
For the purposes of this policy, a student is "under the influence" if he or she exhibits one or more commonly accepted signs of intoxication.

LEGAL REFERENCES:
A.R.S.
4-241 and 4-244
15-345
13-3401 through 13-3408
13-3411
36-2501 through 36-2516
36-2802

CROSS REFERENCES:
JICH – Drug and Alcohol Use by Students
JLC – Students Health Services and Requirements
JLCD – Administering Medicines to Students
KF – Community Use of School Facilities

HAZING

There shall be no hazing, solicitation to engage in hazing, or aiding and abetting another who is engaged in hazing of any person enrolled, accepted for or promoted to enrollment, or intending to enroll or be promoted to District schools within twelve (12) calendar months. For purposes of this policy, a person as specified above shall be considered a "student" until graduation, transfer, promotion or withdrawal from the District school.

"Hazing" means any intentional, knowing or reckless act committed by a student, whether individually or in concert with other persons, against another student, and in which both of the following apply:

- The act was committed in connection with an initiation into, an affiliation with, or the maintenance of membership in any organization that is affiliated with an education institution.
- The act contributes to a substantial risk of potential physical injury, mental harm or degradation, or causes physical injury, mental harm or personal degradation.

"Organization" means an athletic team, association, order, society, corps, cooperative, club, or similar group that is affiliated with an educational institution and whose membership consists primarily of students enrolled at that educational institution.

It is not a defense to a violation of this policy that the act occurs during either of the following cases:

- Customary athletic events, contests or competitions that are sponsored by an educational institution.
- Any activity or conduct that furthers the goals of a legitimate educational curriculum, a legitimate extracurricular program, or a legitimate military training program.

All students, teachers and staff shall take reasonable measures within the scope of their individual authority to prevent violations of this policy.

Students and others may report hazing to any professional staff member.

Professional staff members must report the incident to the school administrator or next higher administrative supervisor, in writing, with such details as may have been provided. A failure by a staff member to timely inform the school administrator or next higher administrative supervisor of a hazing allegation or their observation of an incident of hazing may subject the staff member to disciplinary action in accord with District policies. The staff member shall preserve the confidentiality of those involved, disclosing the incident only to the appropriate school administrator or next higher administrative supervisor or as otherwise required by law. Any instance of reported or observed hazing which includes possible child abuse or violations of statutes known to the staff member shall be treated in accord with statutory requirements and be reported to a law enforcement agency. Any teacher or staff who knowingly permitted, authorized, or condoned the hazing activity is subject to disciplinary action by the educational institution.

School District Action

To assure that students and staff are aware of its content and intent, a notice of this policy and procedure shall be posted conspicuously in each school building and shall be made a part of the rights and responsibilities section of the student handbook. Forms for submitting complaints are to be available to students and staff in the school offices.

Upon receipt of a complaint or report of hazing, the District shall undertake or authorize an investigation by District officials or a third party designated by the District.

The School District may take immediate steps to protect the complainant, reporter, student(s), or others pending completion of an investigation of hazing.

Upon completion of the investigation, if the District determines that this policy has been violated, the District shall take appropriate action, which may include, but is not limited to, warning, suspension, exclusion, expulsion, transfer, or remediation (Ref. Code of Conduct, Article B). Disciplinary consequences will be sufficiently severe to deter

violations and to appropriately discipline prohibited behavior. District action taken for violation of this policy will be consistent with District policies and regulations and statutory authority.

If the investigation reveals that a group, club, or association knowingly permitted, authorized, or condoned the hazing activity, the entity's permission to conduct operations at the school in which the student victim was enrolled shall be revoked or suspended.

If the investigation reveals either direct violation of federal or state law, or that a student was caused or required to perform a task that violated federal or state law, the District will notify the local police department or the appropriate federal law enforcement agency.

Disposition of all reports/complaints shall be reported to the Superintendent. The Superintendent will determine if the policies of the District have been appropriately implemented and will make such reports and/or referrals to the Governing Board as may be necessary.

HARRASSMENT/INAPPROPRIATE LANGUAGE/VERBAL PROVOCATION

Students shall not harass or intimidate others because of race, color, religion, sex, age, national origin, ancestry, gender identity, sexual orientation or on the basis of a disability. Students shall not harass or intimidate others by name calling, using racial or derogatory slurs, or by wearing or possessing items depicting or implying racial prejudice or hatred. Students shall not wear or have in their possession any written material, either printed or in their own handwriting, that is racially divisive or creates ill will or hatred. Examples: any item that denotes the Ku Klux Klan, Aryan Nation, white supremacy, Confederate flags, Neo-Nazi groups or any other similar groups. This list is not intended to be all-inclusive.

NOTES

Scottsdale Unified School District
8500 E. Jackrabbit Rd.
Scottsdale, AZ 85250

(480) 484-6100
www.susd.org/

Arizona Department of Education

Office of English Language Acquisition Services

Home Language Survey

The responses to this Home Language Survey (HLS) are used by the school to provide the most appropriate instructional programs and services for the student. **The answers below will determine if a student will take the Arizona English Learner Assessment (AZELLA).** Please respond to each of the three questions as accurately as possible. If you need to correct any of your responses, this must be done **before** the student takes the AZELLA Placement Test.

1. **What language do people speak in the home *most* of the time?**

   Japanese

2. **What language does the student speak *most* of the time?**
   Japanese

3. **What language did the student first speak or understand?**
   Japanese

Student Name: Irie Linda Hohl	District Student ID:
Date of Birth: 01/26/2018	SSID:
Parent/Guardian Signature:	Date: 03/14/2023 15:08:24
District or Charter: Scottsdale Unified School District	
School:	

Please provide a copy of the Home Language Survey to the EL Coordinator/Main Contact on site.
In AzEDS, please enter all three HLS responses.

These HLS questions are in compliance with Arizona Administrative Code (R7-2-306(B)(1),(2)(a-c). (Revised 01-2020)